



EXECUTION COPY

\$200,000,000

CREDIT AGREEMENT

Dated as of March 15, 2021

among
FIRSTBANK CORP

as the Borrower

LENDCO PRIVATE CREDIT FUND II LP

as Administrative Agent and Lender

THE OTHER LENDERS PARTY HERETO

LENDCO CAPITAL MARKETS LLC

as Lead Arranger and Sole Bookrunner

Facility: \$150,000,000 Senior Secured Term Loan A | \$50,000,000 Revolving Credit Facility

Governing Law: New York

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Form of Joinder Agreement

CREDIT AGREEMENT

This CREDIT AGREEMENT (this "Agreement") is entered into as of March 15, 2021, among FirstBank Corp, a Delaware corporation (the "Borrower"), the Lenders party hereto from time to time, and LendCo Private Credit Fund II LP, as Administrative Agent (in such capacity, the "Administrative Agent").

PRELIMINARY STATEMENTS

The Borrower has requested that (a) the Term Lenders make Term Loans to the Borrower in an aggregate principal amount of \$150,000,000, and (b) from time to time, the Revolving Credit Lenders lend to the Borrower under a \$50,000,000 Revolving Credit Facility.

The applicable Lenders have indicated their willingness to lend, in each case, on the terms and subject to the conditions set forth in this Agreement.

In consideration of the mutual covenants and agreements contained in this Agreement, the parties hereto covenant and agree as follows:

ARTICLE I

DEFINITIONS AND ACCOUNTING TERMS

Section 1.01 Defined Terms. As used in this Agreement, the following terms shall have the meanings set forth below:

"Administrative Agent"

means LendCo Private Credit Fund II LP, in its capacity as administrative agent under any of the Loan Documents, or any successor administrative agent.

"Administrative Agent's Office"

means the Administrative Agent's address and, as appropriate, account as set forth on Schedule 10.02, or such other address or account as the Administrative Agent may from time to time notify in writing to the Borrower and the Lenders.

"Affiliate"

means, with respect to any Person, another Person that directly, or indirectly through one or more intermediaries, Controls or is Controlled by or is under common Control with the Person specified.

"Agreement"

has the meaning specified in the introductory paragraph hereof.

"Applicable Rate"

means, from time to time, the following percentages per annum, based upon the Net Leverage Ratio as set forth in the most recent Compliance Certificate received by the Administrative Agent pursuant to Section 6.02: Pricing Level 1 (Net Leverage Ratio > 4.50:1.00): SOFR + 4.00% per annum Pricing Level 2 (Net Leverage Ratio ≤ 4.50:1.00 but > 3.50:1.00): SOFR + 3.75% per annum Pricing Level 3 (Net Leverage Ratio ≤ 3.50:1.00 but > 2.50:1.00): SOFR + 3.50% per annum Pricing Level 4 (Net Leverage Ratio ≤ 2.50:1.00): SOFR + 3.25% per annum Any increase or decrease in the Applicable Rate resulting from a change in the Net Leverage Ratio shall become effective as of the first Business Day immediately following the date a Compliance Certificate is delivered pursuant to Section 6.02.

"Approved Fund"

means any Fund that is administered or managed by (a) a Lender, (b) an Affiliate of a Lender or (c) an entity or an Affiliate of an entity that administers or manages a Lender.

"Assignment and Assumption"

means an assignment and assumption entered into by a Lender and an Eligible Assignee (with the consent of any party whose consent is required by Section 10.07), and accepted by the Administrative Agent, in substantially the form of Exhibit E or any other form approved by the Administrative Agent.

"Attributable Indebtedness"

means, on any date, (a) in respect of any Capitalized Lease of any Person, the capitalized amount thereof that would appear on a balance sheet of such Person prepared as of such date in accordance with GAAP, and (b) in respect of any Synthetic Lease Obligation, the capitalized amount of the remaining lease payments under the relevant lease that would appear on a balance sheet of such Person prepared as of such date in accordance with GAAP if such lease were accounted for as a Capitalized Lease.

"Audited Financial Statements"

means the audited consolidated balance sheet of the Borrower and its Subsidiaries for the fiscal year ended December 31, 2020, and the related consolidated statements of income or operations, shareholders' equity and cash flows for such fiscal year of the Borrower, including the notes thereto.

"Base Rate"

means for any day a fluctuating rate per annum equal to the highest of (a) the Federal Funds Rate plus 0.50%, (b) the rate of interest in effect for such day as publicly announced from time to time by the Administrative Agent as its 'prime rate', and (c) the Term SOFR Rate for a one-month Interest Period plus 1.00%; provided that in no event shall the Base Rate be less than 1.00% per annum.

"Borrower"

has the meaning specified in the introductory paragraph hereof. As of the date hereof, the Borrower is FirstBank Corp, a Delaware corporation.

"Business Day"

means any day other than a Saturday, Sunday or other day on which commercial banks are authorized to close under the Laws of, or are in fact closed in, the state where the Administrative Agent's Office is located; provided that, when used in connection with a Term SOFR Loan, the term 'Business Day' shall also exclude any day that is not a U.S. Government Securities Business Day.

"Capital Expenditures"

means, for any period, the aggregate of all expenditures (whether paid in cash or accrued as liabilities and including in all events all amounts expended or capitalized under Capitalized Leases) by the Borrower and its Restricted Subsidiaries during such period that, in conformity with GAAP, are included in 'additions to property, plant or equipment' or comparable items reflected in the consolidated statement of cash flows of the Borrower and its Restricted Subsidiaries.

"Capitalized Lease"

means, as applied to any Person, any lease of any property by that Person as lessee which, in accordance with GAAP, is required to be accounted for as a finance lease on the balance sheet of that Person.

"Capitalized Lease Obligation"

means, as applied to any Person, the capitalized amount of any Capitalized Lease that would at such time be required to be capitalized and reflected as a liability on a balance sheet (excluding the footnotes thereto) prepared in accordance with GAAP.

"Cash Cap"

means \$25,000,000, as such amount may be adjusted from time to time pursuant to the terms of this Agreement. The Cash Cap represents the maximum amount of Unrestricted Cash that may be netted against Total Indebtedness in the calculation of Net Debt.

"Cash Equivalents"

means any of the following types of Investments, to the extent owned by the Borrower or any of its Restricted Subsidiaries free and clear of all Liens (other than Liens permitted pursuant to any Loan Document): (a) readily marketable obligations issued or directly and fully guaranteed or insured by the United States or any agency or instrumentality thereof having maturities of not more than one year from the date of acquisition thereof; (b) time deposits and certificates of deposit of any commercial bank having, or which is the principal banking subsidiary of a bank holding company having, a combined capital and surplus of not less than \$500,000,000; (c) commercial paper rated at least A-1 or the equivalent thereof by S&P; or at least P-1 or the equivalent thereof by Moody's and in either case maturing within one year after the date of acquisition thereof; and (d) Investments in money market funds substantially all of whose assets are comprised of securities of the types described in clauses (a) through (c) above.

"Change of Control"

means an event or series of events by which: (a) any 'person' or 'group' (as such terms are used in Sections 13(d) and 14(d) of the Securities Exchange Act of 1934) becomes the 'beneficial owner' (as defined in Rules 13d-3 and 13d-5 under the Securities Exchange Act of 1934), directly or indirectly, of more than 35% of the equity securities of the Borrower entitled to vote for members of the board of directors or equivalent governing body of the Borrower on a fully-diluted basis; (b) during any period of 12 consecutive months, a majority of the members of the board of directors or other equivalent governing body of the Borrower cease to be composed of individuals (i) who were members of that board or equivalent governing body on the first day of such period, (ii) whose election or nomination to that board or equivalent governing body was approved by individuals referred to in clause (i) above constituting at the time of such election or nomination at least a majority of that board or equivalent governing body, or (iii) whose election or nomination to that board or other equivalent governing body was approved by individuals referred to in clauses (i) and (ii) above constituting at the time of such election or nomination at least a majority of that board or equivalent governing body; or (c) the Borrower ceases to own, directly or indirectly, 100% of the Equity Interests of any Material Subsidiary.

"Closing Date"

means March 15, 2021, the date on which the conditions set forth in Section 4.01 were satisfied or waived and the initial Credit Extensions were made hereunder.

"Code"

means the Internal Revenue Code of 1986, as amended from time to time.

"Commitment"

means a Term Commitment or a Revolving Credit Commitment, as the context may require.

"Compliance Certificate"

means a certificate substantially in the form of Exhibit D, delivered by a Responsible Officer of the Borrower pursuant to Section 6.02(a), setting forth in reasonable detail the computations necessary to determine compliance with the Financial Covenants set forth in Section 7.10 for the applicable Test Period.

"Consolidated Cash Interest Expense"

means, for any period, Consolidated Interest Expense for such period, reduced by (a) the amount of any PIK Interest accrued but not paid in cash during such period, (b) any non-cash interest expense (including amortization of deferred financing costs and original issue discount), and (c) any interest expense attributable to Capitalized Lease Obligations to the extent not paid in cash; and increased by any cash payments made in respect of original issue discount during such period.

"Consolidated EBITDA"

means, for any period, Consolidated Net Income for such period plus, without duplication and to the extent deducted in computing Consolidated Net Income for such period, the sum of: (a) Consolidated Interest Expense for such period; (b) provision for taxes based on income, profits or capital, including federal, state, provincial, franchise, excise, withholding and similar taxes and any penalties and interest relating to any tax examinations; (c) total amount of depreciation and amortization expense, including expenses related to Capitalized Leases and software capitalization; (d) any non-cash charges, losses or expenses (including non-cash impairment charges, non-cash stock-based compensation expense, and non-cash charges arising from the application of purchase accounting), but excluding any non-cash charge relating to write-offs or write-downs of inventory or accounts receivable; (e) restructuring charges, severance payments, and costs associated with facility closures, workforce reductions, and operational consolidations; provided that the aggregate amount of add-backs pursuant to this clause (e) shall not exceed **10% of Consolidated EBITDA for such period** (the "Restructuring Add-Back Cap"); provided further that the Restructuring Add-Back Cap is calculated as a percentage of Consolidated EBITDA which itself includes the capped restructuring add-back, creating a circular reference that must be resolved by solving the resulting equation for Consolidated EBITDA (i.e., $\text{Consolidated EBITDA} = (\text{Base EBITDA} + \text{Non-Circular Add-Backs}) / (1 - 0.10)$) rather than by applying an iterative or fixed-dollar approximation; (f) transaction fees, costs and expenses incurred in connection with any Investment, Disposition, Equity Issuance or Debt Issuance (including fees and expenses related to the Facilities and any amendments, supplements and modifications thereof); provided that the aggregate amount of add-backs pursuant to this clause (f) shall not exceed \$5,000,000 in any trailing twelve-month period; (g) management, monitoring, consulting, transaction and advisory fees and related indemnities and expenses paid or accrued during such period to the Sponsor in accordance with the Management Agreement to the extent permitted to be paid under Section 7.08; provided that such fees shall not exceed \$2,000,000 per annum; (h) non-recurring or unusual losses or charges, including non-recurring legal settlements and judgments; provided that the aggregate amount of add-backs pursuant to this clause (h) shall not exceed \$5,000,000 in any trailing twelve-month period; (i) any other non-cash charges or expenses approved in writing by the Administrative Agent in its reasonable discretion; minus (j) non-cash income or gains included in Consolidated Net Income for such period (other than accruals of cash income in the ordinary course of business), including any non-cash mark-to-market gains on derivative instruments; minus (k) cash income tax refunds actually received during such period to the extent not included in Consolidated Net Income; minus (l) all cash payments made during such period on account of non-cash charges added back to Consolidated Net Income pursuant to clause (d) above in such period or in a prior period. For the avoidance of doubt, Consolidated EBITDA shall be calculated on a Last Twelve Months basis for purposes of the Financial Covenants set forth in Section 7.10.

"Consolidated Interest Expense"

means, for any period, the sum of (a) total interest expense (including the interest component under Capitalized Leases) of the Borrower and its Restricted Subsidiaries on a consolidated basis for such period, whether paid or accrued, including, without limitation, amortization of original issue discount, non-cash interest payments, the interest component of any deferred payment obligations, the interest component of all payments associated with Capitalized Lease Obligations, commissions, discounts and other fees and charges owed with respect to letters of credit and bankers' acceptance financing and net costs under Swap Contracts in respect of interest rates, plus (b) any PIK Interest accrued during such period.

"Consolidated Net Income"

means, for any period, the consolidated net income (or loss) of the Borrower and its Restricted Subsidiaries for such period, determined on a consolidated basis in accordance with GAAP; provided that there shall be excluded from Consolidated Net Income, without duplication: (i) any net after-tax extraordinary gains, losses or charges; (ii) the cumulative effect of a change in accounting principle(s) during such period; (iii) any net after-tax gains or losses realized upon the Disposition of assets outside the ordinary course of business; (iv) any net income or loss attributable to the early extinguishment of Indebtedness; (v) non-cash compensation charges, including any such charges arising from stock options, restricted stock grants or other equity-incentive programs; (vi) any impairment charge or asset write-off or write-down, including impairment charges or asset write-offs or write-downs related to intangible assets, long-lived assets, investments in debt and equity securities or obligations; (vii) any net unrealized gains and losses resulting from obligations under Swap Contracts or other derivative instruments entered into for the purpose of hedging interest rate risk; and (viii) any net gain or loss resulting from currency translation gains or losses.

"Consolidated Total Debt"

means, as of any date of determination, the aggregate outstanding principal amount of all Indebtedness of the Borrower and its Restricted Subsidiaries on a consolidated basis as of such date, consisting of Indebtedness for borrowed money, obligations in respect of Capitalized Leases, and letters of credit to the extent of amounts outstanding under standby letters of credit and unreimbursed for more than ten (10) days and obligations in respect of Indebtedness evidenced by bonds, debentures, notes or similar instruments; provided that Consolidated Total Debt shall not include Excluded Indebtedness.

"Control"

means the possession, directly or indirectly, of the power to direct or cause the direction of the management or policies of a Person, whether through the ability to exercise voting power, by contract or otherwise. 'Controlling' and 'Controlled' have meanings correlative thereto.

"Credit Extension"

means each of the following: (a) a Borrowing and (b) an L/C Credit Extension.

"Debt Issuance"

means the issuance by the Borrower or any Restricted Subsidiary of any Indebtedness for borrowed money (other than Indebtedness permitted under Section 7.03(a) through (e) and any refinancing thereof).

"Default"

means any event or condition that constitutes an Event of Default or that, with the giving of any notice, the passage of time, or both, would be an Event of Default.

"Default Rate"

means an interest rate equal to (a) with respect to any Obligation other than a Loan, the Base Rate plus the Applicable Rate plus 2.00% per annum, and (b) with respect to any Loan, the interest rate (including any Applicable Rate) otherwise applicable to such Loan plus 2.00% per annum, in each case, to the fullest extent permitted by applicable Laws.

"Disposition"

means, with respect to any property, any sale, lease, sale and leaseback, assignment, conveyance, transfer or other disposition thereof. The terms 'Dispose' and 'Disposed of' shall have correlative meanings.

"Eligible Assignee"

means any Person that meets the requirements to be an assignee under Section 10.07(b)(iii) and (v) (subject to such consents, if any, as may be required under Section 10.07(b)(iii)).

"Environmental Laws"

means any and all Federal, state, local, and foreign statutes, laws, regulations, ordinances, rules, judgments, orders, decrees, permits, concessions, grants, franchises, licenses, agreements or governmental restrictions relating to pollution and the protection of the environment or the release of any materials into the environment, including those related to hazardous substances or wastes, air emissions and discharges to waste or public systems.

"Equity Interests"

means, with respect to any Person, all of the shares of capital stock of (or other ownership or profit interests in) such Person, all of the warrants, options or other rights for the purchase or acquisition from such Person of shares of capital stock of (or other ownership or profit interests in) such Person, all of the securities convertible into or exchangeable for shares of capital stock of (or other ownership or profit interests in) such Person or warrants, rights or options for the purchase or acquisition from such Person of such shares (or such other interests), and all of the other ownership or profit interests in such Person (including partnership, member or trust interests therein), whether voting or nonvoting, and whether or not such shares, warrants, options, rights or other interests are outstanding on any date of determination.

"ERISA"

means the Employee Retirement Income Security Act of 1974, as amended from time to time.

"ERISA Affiliate"

means any trade or business (whether or not incorporated) under common control with the Borrower within the meaning of Section 414(b) or (c) of the Code (and Sections 414(m) and (o) of the Code for purposes of provisions relating to Section 412 of the Code).

"Event of Default"

has the meaning specified in Section 8.01.

"Excluded Indebtedness"

means (a) intercompany Indebtedness among the Borrower and its wholly-owned Restricted Subsidiaries; (b) deferred compensation obligations to employees; (c) earn-out obligations not yet required to be reflected on the balance sheet in accordance with GAAP; (d) obligations under operating leases (as distinguished from Capitalized Lease Obligations); and (e) Indebtedness that is (i) expressly subordinated to the Obligations pursuant to a written Subordination Agreement in form and substance reasonably acceptable to the Administrative Agent **AND** (ii) for which the Administrative Agent has provided its prior written consent to treat as Excluded Indebtedness, which consent shall be evidenced by a written instrument executed by the Administrative Agent and delivered to the Borrower (the "Excluded Indebtedness Consent"). For the avoidance of doubt, no Indebtedness shall constitute Excluded Indebtedness under clause (e) unless and until both conditions (i) and (ii) of such clause have been satisfied. The absence of an Excluded Indebtedness Consent with respect to any particular Indebtedness shall be conclusive evidence that such Indebtedness does not constitute Excluded Indebtedness.

"Existing Indebtedness"

means Indebtedness of the Borrower and its Subsidiaries in existence on the Closing Date and listed on Schedule 7.03, after giving effect to the application of proceeds of the initial Credit Extensions.

"Federal Funds Rate"

means, for any day, the rate per annum equal to the weighted average of the rates on overnight Federal funds transactions with members of the Federal Reserve System, as published by the Federal Reserve Bank of New York on the Business Day next succeeding such day; provided that (a) if such day is not a Business Day, the Federal Funds Rate for such day shall be such rate on such transactions on the next preceding Business Day as so published on the next succeeding Business Day, and (b) if no such rate is so published on such next succeeding Business Day, the Federal Funds Rate for such day shall be the average rate (rounded upward, if necessary, to a whole multiple of 1/100 of 1%) charged to the Administrative Agent on such day on such transactions as determined by the Administrative Agent.

"Financial Covenants"

means the covenants set forth in Section 7.10.

"Fixed Charge Coverage Ratio"

means, as of any date of determination, the ratio of (a) Consolidated EBITDA for the Test Period then most recently ended minus Unfinanced Capital Expenditures for such Test Period minus Cash Taxes Paid for such Test Period to (b) Fixed Charges for such Test Period. For purposes of this definition: "Cash Taxes Paid" means the aggregate amount of income taxes actually paid in cash by the Borrower and its Restricted Subsidiaries during the applicable Test Period. "Fixed Charges" means, for any Test Period, the sum of (i) Consolidated Cash Interest Expense for such Test Period, (ii) scheduled principal payments on Indebtedness of the Borrower and its Restricted Subsidiaries made during such Test Period (excluding any voluntary prepayments), and (iii) cash dividends or distributions paid to equity holders of the Borrower during such Test Period. "Unfinanced Capital Expenditures" means Capital Expenditures made during the applicable Test Period that are not financed with the proceeds of Indebtedness incurred for such purpose.

"GAAP"

means generally accepted accounting principles in the United States set forth in the opinions and pronouncements of the Accounting Principles Board and the American Institute of Certified Public Accountants and statements and pronouncements of the Financial Accounting Standards Board or such other principles as may be approved by a significant segment of the accounting profession in the United States, that are applicable to the circumstances as of the date of determination, consistently applied.

"Governmental Authority"

means the government of the United States or any other nation, or of any political subdivision thereof, whether state or local, and any agency, authority, instrumentality, regulatory body, court, central bank or other entity exercising executive, legislative, judicial, taxing, regulatory or administrative powers or functions of or pertaining to government (including any supra-national bodies such as the European Union or the European Central Bank).

"Guaranty"

means the Guaranty made by the Guarantors in favor of the Administrative Agent and the Lenders, substantially in the form of Exhibit F.

"Indebtedness"

means, as to any Person at a particular time, without duplication, all of the following, whether or not included as indebtedness or liabilities in accordance with GAAP: (a) all obligations of such Person for borrowed money and all obligations of such Person evidenced by bonds, debentures, notes, loan agreements or other similar instruments; (b) all direct or contingent obligations of such Person arising under letters of credit (including standby and commercial), bankers' acceptances, bank guaranties, surety bonds and similar instruments; (c) net obligations of such Person under any Swap Contract; (d) all obligations of such Person to pay the deferred purchase price of property or services (other than trade accounts payable in the ordinary course of business); (e) indebtedness (excluding prepaid interest thereon) secured by a Lien on property owned or being purchased by such Person (including indebtedness arising under conditional sales or other title retention agreements), whether or not such indebtedness shall have been assumed by such Person or is limited in recourse; (f) Capitalized Lease Obligations; (g) all obligations of such Person to purchase, redeem, retire, defease or otherwise make any payment in respect of any Equity Interest in such Person or any other Person, valued, in the case of a redeemable preferred interest, at the greater of its voluntary or involuntary liquidation preference plus accrued and unpaid dividends; and (h) all Guarantees of such Person in respect of any of the foregoing. For all purposes of this Agreement, the Indebtedness of any Person shall include the Indebtedness of any partnership or joint venture (other than a joint venture that is itself a corporation or limited liability company) in which such Person is a general partner or a joint venturer, unless such Indebtedness is expressly made non-recourse to such Person. The amount of any net obligation under any Swap Contract on any date shall be deemed to be the Swap Termination Value thereof as of such date.

"Interest Coverage Ratio"

means, as of any date of determination, the ratio of (a) Consolidated EBITDA for the Test Period then most recently ended to (b) Consolidated Cash Interest Expense for such Test Period.

"Interest Payment Date"

means, (a) as to any Term SOFR Loan, the last day of each Interest Period applicable to such Loan and the Maturity Date of the Facility under which such Loan was made; provided, however, that if any Interest Period for a Term SOFR Loan exceeds three months, the respective dates that fall every three months after the beginning of such Interest Period shall also be Interest Payment Dates; and (b) as to any Base Rate Loan, the last Business Day of each March, June, September and December and the Maturity Date of the Facility under which such Loan was made.

"Interest Period"

means, as to each Term SOFR Loan, the period commencing on the date such Term SOFR Loan is disbursed or converted to or continued as a Term SOFR Loan and ending on the date one, three or six months thereafter (in each case, subject to availability), as selected by the Borrower in its Committed Loan Notice; provided that: (i) any Interest Period that would otherwise end on a day that is not a Business Day shall be extended to the next succeeding Business Day unless such Business Day falls in another calendar month, in which case such Interest Period shall end on the next preceding Business Day; (ii) any Interest Period that begins on the last Business Day of a calendar month (or on a day for which there is no numerically corresponding day in the calendar month at the end of such Interest Period) shall end on the last Business Day of the calendar month at the end of such Interest Period; and (iii) no Interest Period shall extend beyond the Maturity Date.

"Last Twelve Months"

means, as of any date of determination, the period of twelve consecutive fiscal months of the Borrower most recently ended on or prior to such date for which financial statements have been delivered pursuant to Section 6.01. For purposes of the Financial Covenants set forth in Section 7.10, all calculations shall be made on a Last Twelve Months basis unless otherwise specified.

"Laws"

means, collectively, all international, foreign, Federal, state and local statutes, treaties, rules, guidelines, regulations, ordinances, codes and administrative or judicial precedents or authorities, including the interpretation or administration thereof by any Governmental Authority charged with the enforcement, interpretation or administration thereof, and all applicable administrative orders, directed duties, requests, licenses, authorizations and permits of, and agreements with, any Governmental Authority.

"Lender"

means each of the Persons identified as a 'Lender' on the signature pages hereto, each other Person that becomes a 'Lender' in accordance with this Agreement, and their successors and assigns pursuant to Section 10.07.

"Lien"

means any mortgage, pledge, hypothecation, assignment, deposit arrangement, encumbrance, lien (statutory or other), charge, or preference, priority or other security interest or preferential arrangement in the nature of a security interest of any kind or nature whatsoever (including any conditional sale or other title retention agreement, any easement, right of way or other encumbrance on title to real property, and any financing lease having substantially the same economic effect as any of the foregoing).

"Loan"

means an extension of credit by a Lender to the Borrower under Article II in the form of a Term Loan or a Revolving Credit Loan.

"Loan Documents"

means this Agreement, each Note, the Guaranty, the Security Agreement, each Joinder Agreement, each Assignment and Assumption, and each other document, instrument or agreement executed and delivered in connection herewith.

"Material Adverse Effect"

means (a) a material adverse change in, or a material adverse effect upon, the operations, business, properties, liabilities (actual or contingent), condition (financial or otherwise) or prospects of the Borrower and its Subsidiaries taken as a whole; (b) a material impairment of the rights and remedies of the Administrative Agent or any Lender under any Loan Document; or (c) a material adverse effect upon the legality, validity, binding effect or enforceability against any Loan Party of any Loan Document to which it is a party.

"Maturity Date"

means (a) with respect to the Term Loans, March 15, 2028, and (b) with respect to the Revolving Credit Facility, March 15, 2026, in each case, or if such date is not a Business Day, the immediately preceding Business Day; provided that the Maturity Date may be extended pursuant to Section 2.14.

"Minimum Consolidated EBITDA"

means that Consolidated EBITDA, calculated on a Last Twelve Months basis, shall not be less than \$95,000,000 for any Test Period; provided that such threshold may be adjusted pursuant to any amendment to this Agreement executed in accordance with Section 10.01.

"Net Debt"

means, as of any date of determination, Total Indebtedness as of such date minus Unrestricted Cash as of such date; provided that Unrestricted Cash shall not exceed the Cash Cap for purposes of this calculation. For the avoidance of doubt, Restricted Cash shall not be included in the calculation of Unrestricted Cash.

"Net Leverage Ratio"

means, as of any date of determination, the ratio of (a) Net Debt as of such date to (b) Consolidated EBITDA for the Test Period then most recently ended.

"Note"

means a Term Note or a Revolving Credit Note, as the context may require.

"Obligations"

means all advances to, and debts, liabilities, obligations, covenants and duties of, any Loan Party arising under any Loan Document or otherwise with respect to any Loan or Letter of Credit, whether direct or indirect (including those acquired by assumption), absolute or contingent, due or to become due, now existing or hereafter arising and including interest and fees that accrue after the commencement by or against any Loan Party or any Affiliate thereof of any proceeding under any Debtor Relief Laws naming such Person as the debtor in such proceeding, regardless of whether such interest and fees are allowed claims in such proceeding.

"Organization Documents"

means, (a) with respect to any corporation, the certificate or articles of incorporation and the bylaws (or equivalent or comparable constitutive documents with respect to any non-U.S. jurisdiction); (b) with respect to any limited liability company, the certificate or articles of formation or organization and operating agreement; and (c) with respect to any partnership, joint venture, trust or other form of business entity, the partnership, joint venture or other applicable agreement of formation or organization and any agreement, instrument, filing or notice with respect thereto filed in connection with its formation or organization with the applicable Governmental Authority in the jurisdiction of its formation or organization and, if applicable, any certificate or articles of formation or organization of such entity.

"Person"

means any natural person, corporation, limited liability company, trust, joint venture, association, company, partnership, Governmental Authority or other entity.

"PIK Interest"

means interest that is paid in kind by adding such interest to the outstanding principal balance of the applicable Indebtedness rather than being paid in cash.

"Pro Forma Basis"

means, with respect to any calculation of any financial ratio or test, that such calculation shall give pro forma effect to any Specified Transaction (including any related incurrence or repayment of Indebtedness) as if such Specified Transaction had occurred on the first day of the applicable Test Period.

"Responsible Officer"

means the chief executive officer, president, chief financial officer, treasurer, assistant treasurer, controller, secretary or assistant secretary of a Loan Party, or any other officer having substantially the same authority and responsibility; or, with respect to compliance with financial covenants, the chief financial officer or the treasurer of the Borrower. Any document delivered hereunder that is signed by a Responsible Officer of a Loan Party shall be conclusively presumed to have been authorized by all necessary corporate, partnership and/or other action on the part of such Loan Party and such Responsible Officer shall be conclusively presumed to have acted on behalf of such Loan Party.

"Restricted Cash"

means cash and cash equivalents of the Borrower and its Restricted Subsidiaries that are subject to any Lien, restriction or encumbrance (including cash pledged as collateral for letters of credit, cash held in blocked accounts subject to control agreements, and cash held in escrow), and that are not freely available for general corporate purposes.

"Restricted Payment"

means any dividend or other distribution (whether in cash, securities or other property) with respect to any Equity Interest in the Borrower or any Restricted Subsidiary, or any payment (whether in cash, securities or other property), including any sinking fund or similar deposit, on account of the purchase, redemption, retirement, acquisition, cancellation or termination of any such Equity Interest, or on account of any return of capital to the Borrower's stockholders, partners or members (or the equivalent Person thereof).

"Restricted Subsidiary"

means any Subsidiary of the Borrower other than an Unrestricted Subsidiary.

"Revolving Credit Commitment"

means, as to each Revolving Credit Lender, its obligation to (a) make Revolving Credit Loans to the Borrower pursuant to Section 2.01(b), (b) purchase participations in L/C Obligations, and (c) purchase participations in Swing Line Loans, in an aggregate principal amount at any one time outstanding not to exceed the amount set forth opposite such Lender's name on Schedule 1.01(a) under the caption 'Revolving Credit Commitment'. The aggregate Revolving Credit Commitments as of the Closing Date are \$50,000,000.

"Revolving Credit Facility"

means, at any time, the aggregate amount of the Revolving Credit Lenders' Revolving Credit Commitments at such time, being \$50,000,000 as of the Closing Date.

"SOFR"

means a rate equal to the secured overnight financing rate as administered by the SOFR Administrator.

"Subordination Agreement"

means a written agreement, in form and substance reasonably acceptable to the Administrative Agent, pursuant to which the holder of Indebtedness expressly subordinates the payment of such Indebtedness to the prior payment in full in cash of all Obligations. For the avoidance of doubt, an intercreditor agreement shall not constitute a Subordination Agreement unless it expressly provides for the subordination of payment (and not merely lien subordination) and has been approved in writing by the Administrative Agent as constituting a Subordination Agreement for purposes of the definition of Excluded Indebtedness.

"Subsidiary"

means, with respect to any Person (the 'parent') at any date, any corporation, limited liability company, partnership, association or other entity the accounts of which would be consolidated with those of the parent in the parent's consolidated financial statements if such financial statements were prepared in accordance with GAAP as of such date, as well as any other corporation, limited liability company, partnership, association or other entity (a) of which securities or other ownership interests representing more than 50% of the equity or more than 50% of the ordinary voting power or, in the case of a partnership, more than 50% of the general partnership interests are, as of such date, owned, controlled or held, or (b) that is, as of such date, otherwise Controlled, by the parent or one or more subsidiaries of the parent or by the parent and one or more subsidiaries of the parent.

"Swap Contract"

means (a) any and all rate swap transactions, basis swaps, credit derivative transactions, forward rate transactions, commodity swaps, commodity options, forward commodity contracts, equity or equity index swaps or options, bond or bond price or bond index swaps or options or forward bond or forward bond price or forward bond index transactions, interest rate options, forward foreign exchange transactions, cap transactions, floor transactions, collar transactions, currency swap transactions, cross-currency rate swap transactions, currency options, spot contracts, or any other similar transactions or any combination of any of the foregoing (including any options to enter into any of the foregoing), whether or not any such transaction is governed by or subject to any master agreement, and (b) any and all transactions of any kind, and the related confirmations, which are subject to the terms and conditions of, or governed by, any form of master agreement published by the International Swaps and Derivatives Association, Inc.

"Term Commitment"

means, as to each Term Lender, its obligation to make a Term Loan to the Borrower pursuant to Section 2.01(a) in an aggregate principal amount not to exceed the amount set forth opposite such Lender's name on Schedule 1.01(a) under the caption 'Term Commitment'. The aggregate Term Commitments as of the Closing Date are \$150,000,000.

"Term Loan"

means an advance made by a Term Lender to the Borrower pursuant to Section 2.01(a). The aggregate principal amount of Term Loans outstanding as of the Closing Date is \$150,000,000.

"Test Period"

means, at any date of determination, the period of four consecutive fiscal quarters of the Borrower most recently ended on or prior to such date for which financial statements have been delivered pursuant to Section 6.01 (i.e., the Last Twelve Months period). For the avoidance of doubt, the Test Period for any fiscal quarter end shall be the four fiscal quarters ending on such date.

"Total Indebtedness"

means, as of any date of determination, the aggregate outstanding principal amount of all Indebtedness of the Borrower and its Restricted Subsidiaries on a consolidated basis as of such date, determined in accordance with GAAP; provided that Total Indebtedness shall not include Excluded Indebtedness. For the avoidance of doubt, Total Indebtedness shall include (a) all drawn amounts under the Revolving Credit Facility, (b) all outstanding Term Loans, (c) all Capitalized Lease Obligations, (d) the face amount of all outstanding letters of credit, and (e) all other Indebtedness for borrowed money, in each case of the Borrower and its Restricted Subsidiaries on a consolidated basis.

"Unrestricted Cash"

means, as of any date of determination, the aggregate amount of cash and Cash Equivalents of the Borrower and its Restricted Subsidiaries that are not Restricted Cash as of such date; provided that, for purposes of calculating Net Debt, Unrestricted Cash shall not exceed the Cash Cap.

"Unrestricted Subsidiary"

means any Subsidiary of the Borrower designated by the board of directors of the Borrower as an Unrestricted Subsidiary pursuant to Section 6.14 subsequent to the Closing Date.

Section 1.02 Other Interpretive Provisions. With reference to this Agreement and each other Loan Document, unless otherwise specified herein or in such other Loan Document: (a) the definitions of terms herein shall apply equally to the singular and plural forms of the terms defined; (b) whenever the context may require, any pronoun shall include the corresponding masculine, feminine and neuter forms; (c) the words 'include', 'includes' and 'including' shall be deemed to be followed by the phrase 'without limitation'; (d) the word 'will' shall be construed to have the same meaning and effect as the word 'shall'; (e) any definition of or reference to any agreement, instrument or other document herein shall be construed as referring to such agreement, instrument or other document as from time to time amended, supplemented or otherwise modified (subject to any restrictions on such amendments, supplements or modifications set forth herein); (f) any reference herein to any Person shall be construed to include such Person's successors and assigns; (g) the words 'herein', 'hereof' and 'hereunder', and words of similar import, shall be construed to refer to this Agreement in its entirety and not to any particular provision hereof; (h) all references herein to Articles, Sections, Exhibits and Schedules shall be construed to refer to Articles and Sections of, and Exhibits and Schedules to, this Agreement; (i) any reference to any law shall include all statutory and regulatory provisions consolidating, amending, replacing or interpreting such law and any reference to any law or regulation shall, unless otherwise specified, refer to such law or regulation as amended, modified or supplemented from time to time; and (j) the word 'asset' and the word 'property' shall be construed to have the same meaning and effect and to refer to any and all tangible and intangible assets and properties, including cash, securities, accounts and contract rights.

Section 1.03 Accounting Terms. All accounting terms not specifically or completely defined herein shall be construed in conformity with, and all financial data (including financial ratios and other financial calculations) required to be submitted pursuant to this Agreement shall be prepared in conformity with, GAAP applied on a consistent basis, as in effect from time to time; provided, however, that if the Borrower notifies the Administrative Agent that the Borrower requests an amendment to any provision hereof to eliminate the effect of any change occurring after the date hereof in GAAP or in the application thereof on the operation of such provision (or if the Administrative Agent notifies the Borrower that the Required Lenders request an amendment to any provision hereof for such purpose), regardless of whether any such notice is given before or after such change in GAAP or in the application thereof, then such provision shall be interpreted on the basis of GAAP as in effect and applied immediately before such change shall have become effective until such notice shall have been withdrawn or such provision amended in accordance herewith.

Section 1.04 Pro Forma Calculations. Notwithstanding anything to the contrary herein, financial ratios and tests, including the Net Leverage Ratio, the Interest Coverage Ratio, the Fixed Charge Coverage Ratio, and Minimum Consolidated EBITDA, shall be calculated in the manner prescribed by this Section 1.04. In the event that the Borrower or any Restricted Subsidiary incurs, assumes, guarantees, redeems, retires or extinguishes any Indebtedness

(other than Indebtedness incurred or repaid under any revolving credit facility in the ordinary course of business for working capital purposes) or issues, repurchases or redeems Disqualified Equity Interests subsequent to the commencement of the period for which the financial ratio or test is being calculated but prior to or simultaneously with the event for which the calculation of the financial ratio is made, then the financial ratio or test shall be calculated giving pro forma effect to such incurrence, assumption, guarantee, redemption, retirement or extinguishment of Indebtedness, or such issuance, repurchase or redemption of Disqualified Equity Interests, as if the same had occurred at the beginning of the applicable Test Period.

Section 1.05 Rounding. Any financial ratios required to be maintained by the Borrower pursuant to this Agreement shall be calculated by dividing the appropriate component by the other component, carrying the result to one place more than the number of places by which such ratio is expressed herein and rounding the result up or down to the nearest number (with a rounding-up if there is no nearest number).

ARTICLE II

THE COMMITMENTS AND CREDIT EXTENSIONS

Section 2.01 The Loans. (a) *Term Loans.* Subject to the terms and conditions set forth herein, each Term Lender severally agrees to make a single term loan (a "Term Loan") to the Borrower on the Closing Date in an amount not to exceed such Term Lender's Term Commitment. The aggregate principal amount of Term Loans made on the Closing Date shall not exceed \$150,000,000. Amounts borrowed under this Section 2.01(a) and repaid or prepaid may not be reborrowed. Term Loans may be Base Rate Loans or Term SOFR Loans, as further provided herein.

(b) *Revolving Credit Loans.* Subject to the terms and conditions set forth herein, each Revolving Credit Lender severally agrees to make loans (each such loan, a "Revolving Credit Loan") to the Borrower from time to time, on any Business Day during the Availability Period, in an aggregate amount not to exceed at any time outstanding the amount of such Lender's Revolving Credit Commitment; provided that after giving effect to any Revolving Credit Borrowing, the Total Revolving Credit Outstandings shall not exceed the Revolving Credit Facility. Within the limits of each Revolving Credit Lender's Revolving Credit Commitment, and subject to the other terms and conditions hereof, the Borrower may borrow under this Section 2.01(b), prepay under Section 2.05, and reborrow under this Section 2.01(b).

Section 2.02 Borrowings, Conversions and Continuations of Loans. (a) Each Borrowing, each conversion of Loans from one Type to the other, and each continuation of Term SOFR Loans shall be made upon the Borrower's irrevocable notice to the Administrative Agent, which may be given by telephone. Each such notice must be received by the Administrative Agent not later than 11:00 a.m. (i) three Business Days prior to the requested date of any Borrowing of, conversion to or continuation of Term SOFR Loans or of any conversion of Term SOFR Loans to Base Rate Loans, and (ii) on the requested date of any Borrowing of Base Rate Loans.

Section 2.05 Prepayments. (a) *Optional.* The Borrower may, upon notice to the Administrative Agent, at any time or from time to time voluntarily prepay Loans in whole or in part without premium or penalty; provided that (i) such notice must be received by the Administrative Agent not later than 11:00 a.m. three Business Days prior to any date of prepayment of Term SOFR Loans, and (ii) any prepayment of Term SOFR Loans shall be accompanied by all accrued interest on the amount prepaid, together with any additional amounts required pursuant to Section 3.05.

(b) *Mandatory.* (i) *Excess Cash Flow Sweep.* Within five Business Days after financial statements have been delivered pursuant to Section 6.01(a) for any fiscal year of the Borrower, the Borrower shall prepay an aggregate principal amount of Term Loans equal to (A) 50% of Excess Cash Flow for such fiscal year if the Net Leverage Ratio as of the last day of such fiscal

year exceeds 3.50 to 1.00, (B) 25% of Excess Cash Flow for such fiscal year if the Net Leverage Ratio as of the last day of such fiscal year is greater than 2.50 to 1.00 but does not exceed 3.50 to 1.00, and (C) 0% of Excess Cash Flow for such fiscal year if the Net Leverage Ratio as of the last day of such fiscal year does not exceed 2.50 to 1.00.

Section 2.07 Repayment of Loans. (a) *Term Loans.* The Borrower shall repay to the Term Lenders the aggregate principal amount of all Term Loans outstanding on the last Business Day of each fiscal quarter, in an amount equal to 0.25% of the original aggregate principal amount of the Term Loans (i.e., 1.00% per annum), with the remaining balance due and payable on the Term Loan Maturity Date.

Section 2.08 Interest. (a) Subject to the provisions of Section 2.08(b), (i) each Term SOFR Loan shall bear interest on the outstanding principal amount thereof for each Interest Period at a rate per annum equal to the Term SOFR Rate for such Interest Period plus the Applicable Rate; and (ii) each Base Rate Loan shall bear interest on the outstanding principal amount thereof at a rate per annum equal to the Base Rate plus the Applicable Rate. (b) While any Event of Default exists, the Borrower shall pay interest on the principal amount of all outstanding Obligations at the Default Rate.

ARTICLE II (CONTINUED)

DETAILED LOAN MECHANICS AND PROCEDURES

Section 2.02 Borrowing Procedures.

Section 2.02.01 Notwithstanding anything to the contrary contained herein, borrowing procedures shall be subject to the terms and conditions set forth in this Section 2.02.01, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 2.02.02 For purposes of this Section 2.02.02, the term "borrowing procedures" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to borrowing procedures, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 2.02.03 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to borrowing procedures, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 2.02.04 In the event of any conflict between the provisions of this Section 2.02.04 and any other provision of this Agreement or any other Loan Document with respect to borrowing procedures, the provisions of this Section 2.02.04 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 2.02.04, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 2.02.05 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to borrowing procedures, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 2.02.06 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in

connection with borrowing procedures, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to borrowing procedures and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 2.02.07 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to borrowing procedures. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 2.02.08 To the extent that any provision of this Section 2.02.08 relating to borrowing procedures is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 2.02.09 Notwithstanding anything to the contrary contained herein, borrowing procedures shall be subject to the terms and conditions set forth in this Section 2.02.09, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 2.02.10 For purposes of this Section 2.02.10, the term "borrowing procedures" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to borrowing procedures, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 2.02.11 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to borrowing procedures, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented

from time to time.

Section 2.02.12 In the event of any conflict between the provisions of this Section 2.02.12 and any other provision of this Agreement or any other Loan Document with respect to borrowing procedures, the provisions of this Section 2.02.12 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 2.02.12, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 2.02.13 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to borrowing procedures, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 2.02.14 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with borrowing procedures, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to borrowing procedures and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 2.02.15 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to borrowing procedures. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 2.02.16 To the extent that any provision of this Section 2.02.16 relating to borrowing procedures is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 2.02.17 Notwithstanding anything to the contrary contained herein, borrowing procedures shall be subject to the terms and conditions set forth in this Section 2.02.17, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 2.02.18 For purposes of this Section 2.02.18, the term "borrowing procedures" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to borrowing procedures, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 2.02.19 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to borrowing procedures, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 2.02.20 In the event of any conflict between the provisions of this Section 2.02.20 and any other provision of this Agreement or any other Loan Document with respect to borrowing procedures, the provisions of this Section 2.02.20 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 2.02.20, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 2.02.01 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to borrowing procedures, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 2.02.02 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with borrowing procedures, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to borrowing procedures and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 2.02.03 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to borrowing procedures. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 2.02.04 To the extent that any provision of this Section 2.02.04 relating to borrowing procedures is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 2.03 Letter of Credit Procedures.

Section 2.03.01 Notwithstanding anything to the contrary contained herein, letter of credit procedures shall be subject to the terms and conditions set forth in this Section 2.03.01, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 2.03.02 For purposes of this Section 2.03.02, the term "letter of credit procedures" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to letter of credit procedures, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 2.03.03 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to letter of credit procedures, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 2.03.04 In the event of any conflict between the provisions of this Section 2.03.04 and any other provision of this Agreement or any other Loan Document with respect to letter of credit procedures, the provisions of this Section 2.03.04 shall control and govern. The Administrative

Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 2.03.04, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 2.03.05 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to letter of credit procedures, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 2.03.06 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with letter of credit procedures, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to letter of credit procedures and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 2.03.07 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to letter of credit procedures. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 2.03.08 To the extent that any provision of this Section 2.03.08 relating to letter of credit procedures is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 2.03.09 Notwithstanding anything to the contrary contained herein, letter of credit procedures shall be subject to the terms and conditions set forth in this Section 2.03.09, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken

without such consent shall be void and of no force or effect.

Section 2.03.10 For purposes of this Section 2.03.10, the term "letter of credit procedures" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to letter of credit procedures, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 2.03.11 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to letter of credit procedures, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 2.03.12 In the event of any conflict between the provisions of this Section 2.03.12 and any other provision of this Agreement or any other Loan Document with respect to letter of credit procedures, the provisions of this Section 2.03.12 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 2.03.12, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 2.03.13 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to letter of credit procedures, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 2.03.14 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with letter of credit procedures, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to letter of credit procedures and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 2.03.15 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this

Agreement with respect to letter of credit procedures. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 2.03.16 To the extent that any provision of this Section 2.03.16 relating to letter of credit procedures is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 2.03.17 Notwithstanding anything to the contrary contained herein, letter of credit procedures shall be subject to the terms and conditions set forth in this Section 2.03.17, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 2.03.18 For purposes of this Section 2.03.18, the term "letter of credit procedures" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to letter of credit procedures, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 2.03.19 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to letter of credit procedures, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 2.03.20 In the event of any conflict between the provisions of this Section 2.03.20 and any other provision of this Agreement or any other Loan Document with respect to letter of credit procedures, the provisions of this Section 2.03.20 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 2.03.20, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 2.03.01 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to letter of credit procedures, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 2.03.02 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with letter of credit procedures, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to letter of credit procedures and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 2.03.03 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to letter of credit procedures. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 2.03.04 To the extent that any provision of this Section 2.03.04 relating to letter of credit procedures is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 2.04 Swing Line Loan Procedures.

Section 2.04.01 Notwithstanding anything to the contrary contained herein, swing line loan procedures shall be subject to the terms and conditions set forth in this Section 2.04.01, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 2.04.02 For purposes of this Section 2.04.02, the term "swing line loan procedures" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to swing line loan procedures, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 2.04.03 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to swing line loan procedures, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 2.04.04 In the event of any conflict between the provisions of this Section 2.04.04 and any other provision of this Agreement or any other Loan Document with respect to swing line loan procedures, the provisions of this Section 2.04.04 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 2.04.04, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 2.04.05 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to swing line loan procedures, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 2.04.06 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with swing line loan procedures, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to swing line loan procedures and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 2.04.07 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to swing line loan procedures. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and

based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 2.04.08 To the extent that any provision of this Section 2.04.08 relating to swing line loan procedures is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 2.04.09 Notwithstanding anything to the contrary contained herein, swing line loan procedures shall be subject to the terms and conditions set forth in this Section 2.04.09, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 2.04.10 For purposes of this Section 2.04.10, the term "swing line loan procedures" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to swing line loan procedures, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 2.04.11 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to swing line loan procedures, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 2.04.12 In the event of any conflict between the provisions of this Section 2.04.12 and any other provision of this Agreement or any other Loan Document with respect to swing line loan procedures, the provisions of this Section 2.04.12 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 2.04.12, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 2.04.13 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and

covenants contained herein and therein with respect to swing line loan procedures, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 2.04.14 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with swing line loan procedures, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to swing line loan procedures and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 2.04.15 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to swing line loan procedures. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 2.04.16 To the extent that any provision of this Section 2.04.16 relating to swing line loan procedures is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 2.04.17 Notwithstanding anything to the contrary contained herein, swing line loan procedures shall be subject to the terms and conditions set forth in this Section 2.04.17, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 2.04.18 For purposes of this Section 2.04.18, the term "swing line loan procedures" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to swing line loan procedures, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note,

guaranty or other instrument.

Section 2.04.19 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to swing line loan procedures, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 2.04.20 In the event of any conflict between the provisions of this Section 2.04.20 and any other provision of this Agreement or any other Loan Document with respect to swing line loan procedures, the provisions of this Section 2.04.20 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 2.04.20, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 2.04.01 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to swing line loan procedures, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 2.04.02 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with swing line loan procedures, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to swing line loan procedures and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 2.04.03 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to swing line loan procedures. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 2.04.04 To the extent that any provision of this Section 2.04.04 relating to swing line loan procedures is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 2.05 Mandatory Prepayment Mechanics.

Section 2.05.01 Notwithstanding anything to the contrary contained herein, mandatory prepayment mechanics shall be subject to the terms and conditions set forth in this Section 2.05.01, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 2.05.02 For purposes of this Section 2.05.02, the term "mandatory prepayment mechanics" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to mandatory prepayment mechanics, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 2.05.03 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to mandatory prepayment mechanics, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 2.05.04 In the event of any conflict between the provisions of this Section 2.05.04 and any other provision of this Agreement or any other Loan Document with respect to mandatory prepayment mechanics, the provisions of this Section 2.05.04 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 2.05.04, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 2.05.05 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to mandatory prepayment mechanics, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and

remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 2.05.06 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with mandatory prepayment mechanics, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to mandatory prepayment mechanics and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 2.05.07 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to mandatory prepayment mechanics. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 2.05.08 To the extent that any provision of this Section 2.05.08 relating to mandatory prepayment mechanics is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 2.05.09 Notwithstanding anything to the contrary contained herein, mandatory prepayment mechanics shall be subject to the terms and conditions set forth in this Section 2.05.09, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 2.05.10 For purposes of this Section 2.05.10, the term "mandatory prepayment mechanics" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to mandatory prepayment mechanics, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 2.05.11 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to mandatory prepayment mechanics, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 2.05.12 In the event of any conflict between the provisions of this Section 2.05.12 and any other provision of this Agreement or any other Loan Document with respect to mandatory prepayment mechanics, the provisions of this Section 2.05.12 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 2.05.12, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 2.05.13 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to mandatory prepayment mechanics, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 2.05.14 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with mandatory prepayment mechanics, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to mandatory prepayment mechanics and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 2.05.15 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to mandatory prepayment mechanics. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 2.05.16 To the extent that any provision of this Section 2.05.16 relating to mandatory prepayment mechanics is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 2.05.17 Notwithstanding anything to the contrary contained herein, mandatory prepayment mechanics shall be subject to the terms and conditions set forth in this Section 2.05.17, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 2.05.18 For purposes of this Section 2.05.18, the term "mandatory prepayment mechanics" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to mandatory prepayment mechanics, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 2.05.19 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to mandatory prepayment mechanics, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 2.05.20 In the event of any conflict between the provisions of this Section 2.05.20 and any other provision of this Agreement or any other Loan Document with respect to mandatory prepayment mechanics, the provisions of this Section 2.05.20 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 2.05.20, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 2.05.01 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to mandatory prepayment mechanics, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 2.05.02 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with mandatory prepayment mechanics, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to mandatory prepayment mechanics and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 2.05.03 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to mandatory prepayment mechanics. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 2.05.04 To the extent that any provision of this Section 2.05.04 relating to mandatory prepayment mechanics is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 2.06 Commitment Reduction Procedures.

Section 2.06.01 Notwithstanding anything to the contrary contained herein, commitment reduction procedures shall be subject to the terms and conditions set forth in this Section 2.06.01, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 2.06.02 For purposes of this Section 2.06.02, the term "commitment reduction procedures" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to commitment reduction procedures, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 2.06.03 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to commitment reduction procedures, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 2.06.04 In the event of any conflict between the provisions of this Section 2.06.04 and any other provision of this Agreement or any other Loan Document with respect to commitment reduction procedures, the provisions of this Section 2.06.04 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 2.06.04, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 2.06.05 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to commitment reduction procedures, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 2.06.06 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with commitment reduction procedures, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to commitment reduction procedures and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 2.06.07 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to commitment reduction procedures. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 2.06.08 To the extent that any provision of this Section 2.06.08 relating to commitment reduction procedures is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 2.06.09 Notwithstanding anything to the contrary contained herein, commitment reduction procedures shall be subject to the terms and conditions set forth in this Section 2.06.09, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 2.06.10 For purposes of this Section 2.06.10, the term "commitment reduction procedures" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to commitment reduction procedures, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 2.06.11 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to commitment reduction procedures, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 2.06.12 In the event of any conflict between the provisions of this Section 2.06.12 and any other provision of this Agreement or any other Loan Document with respect to commitment reduction procedures, the provisions of this Section 2.06.12 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 2.06.12, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 2.06.13 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to commitment reduction procedures, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 2.06.14 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with commitment reduction procedures, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to commitment reduction procedures and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 2.06.15 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to commitment reduction procedures. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 2.06.16 To the extent that any provision of this Section 2.06.16 relating to commitment reduction procedures is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 2.06.17 Notwithstanding anything to the contrary contained herein, commitment reduction procedures shall be subject to the terms and conditions set forth in this Section 2.06.17, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 2.06.18 For purposes of this Section 2.06.18, the term "commitment reduction procedures" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to commitment reduction procedures, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 2.06.19 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to commitment reduction procedures, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and

injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 2.06.20 In the event of any conflict between the provisions of this Section 2.06.20 and any other provision of this Agreement or any other Loan Document with respect to commitment reduction procedures, the provisions of this Section 2.06.20 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 2.06.20, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 2.06.01 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to commitment reduction procedures, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 2.06.02 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with commitment reduction procedures, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to commitment reduction procedures and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 2.06.03 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to commitment reduction procedures. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 2.06.04 To the extent that any provision of this Section 2.06.04 relating to commitment reduction procedures is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall

be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 2.08 Interest Calculation Methodology.

Section 2.08.01 Notwithstanding anything to the contrary contained herein, interest calculation methodology shall be subject to the terms and conditions set forth in this Section 2.08.01, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 2.08.02 For purposes of this Section 2.08.02, the term "interest calculation methodology" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to interest calculation methodology, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 2.08.03 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to interest calculation methodology, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 2.08.04 In the event of any conflict between the provisions of this Section 2.08.04 and any other provision of this Agreement or any other Loan Document with respect to interest calculation methodology, the provisions of this Section 2.08.04 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 2.08.04, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 2.08.05 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to interest calculation methodology, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 2.08.06 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in

connection with interest calculation methodology, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to interest calculation methodology and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 2.08.07 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to interest calculation methodology. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 2.08.08 To the extent that any provision of this Section 2.08.08 relating to interest calculation methodology is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 2.08.09 Notwithstanding anything to the contrary contained herein, interest calculation methodology shall be subject to the terms and conditions set forth in this Section 2.08.09, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 2.08.10 For purposes of this Section 2.08.10, the term "interest calculation methodology" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to interest calculation methodology, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 2.08.11 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to interest calculation methodology, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented

from time to time.

Section 2.08.12 In the event of any conflict between the provisions of this Section 2.08.12 and any other provision of this Agreement or any other Loan Document with respect to interest calculation methodology, the provisions of this Section 2.08.12 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 2.08.12, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 2.08.13 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to interest calculation methodology, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 2.08.14 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with interest calculation methodology, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to interest calculation methodology and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 2.08.15 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to interest calculation methodology. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 2.08.16 To the extent that any provision of this Section 2.08.16 relating to interest calculation methodology is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not

affected in any manner materially adverse to any party hereto.

Section 2.08.17 Notwithstanding anything to the contrary contained herein, interest calculation methodology shall be subject to the terms and conditions set forth in this Section 2.08.17, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 2.08.18 For purposes of this Section 2.08.18, the term "interest calculation methodology" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to interest calculation methodology, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 2.08.19 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to interest calculation methodology, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 2.08.20 In the event of any conflict between the provisions of this Section 2.08.20 and any other provision of this Agreement or any other Loan Document with respect to interest calculation methodology, the provisions of this Section 2.08.20 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 2.08.20, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 2.08.01 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to interest calculation methodology, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 2.08.02 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with interest calculation methodology, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to

interest calculation methodology and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 2.08.03 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to interest calculation methodology. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 2.08.04 To the extent that any provision of this Section 2.08.04 relating to interest calculation methodology is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 2.09 Fee Computation and Payment.

Section 2.09.01 Notwithstanding anything to the contrary contained herein, fee computation and payment shall be subject to the terms and conditions set forth in this Section 2.09.01, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 2.09.02 For purposes of this Section 2.09.02, the term "fee computation and payment" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to fee computation and payment, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 2.09.03 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to fee computation and payment, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 2.09.04 In the event of any conflict between the provisions of this Section 2.09.04 and any other provision of this Agreement or any other Loan Document with respect to fee computation and payment, the provisions of this Section 2.09.04 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 2.09.04, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 2.09.05 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to fee computation and payment, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 2.09.06 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with fee computation and payment, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to fee computation and payment and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 2.09.07 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to fee computation and payment. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 2.09.08 To the extent that any provision of this Section 2.09.08 relating to fee computation and payment is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 2.09.09 Notwithstanding anything to the contrary contained herein, fee computation and payment shall be subject to the terms and conditions set forth in this Section 2.09.09, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 2.09.10 For purposes of this Section 2.09.10, the term "fee computation and payment" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to fee computation and payment, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 2.09.11 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to fee computation and payment, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 2.09.12 In the event of any conflict between the provisions of this Section 2.09.12 and any other provision of this Agreement or any other Loan Document with respect to fee computation and payment, the provisions of this Section 2.09.12 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 2.09.12, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 2.09.13 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to fee computation and payment, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 2.09.14 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with fee computation and payment, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to fee computation and payment and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 2.09.15 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to fee computation and payment. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 2.09.16 To the extent that any provision of this Section 2.09.16 relating to fee computation and payment is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 2.09.17 Notwithstanding anything to the contrary contained herein, fee computation and payment shall be subject to the terms and conditions set forth in this Section 2.09.17, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 2.09.18 For purposes of this Section 2.09.18, the term "fee computation and payment" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to fee computation and payment, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 2.09.19 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to fee computation and payment, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 2.09.20 In the event of any conflict between the provisions of this Section 2.09.20 and any other provision of this Agreement or any other Loan Document with respect to fee computation and payment, the provisions of this Section 2.09.20 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 2.09.20, and shall be entitled to rely conclusively upon any

certificate or other document delivered by the Borrower in connection therewith.

Section 2.09.01 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to fee computation and payment, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 2.09.02 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with fee computation and payment, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to fee computation and payment and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 2.09.03 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to fee computation and payment. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 2.09.04 To the extent that any provision of this Section 2.09.04 relating to fee computation and payment is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 2.11 Evidence of Indebtedness.

Section 2.11.01 Notwithstanding anything to the contrary contained herein, evidence of indebtedness shall be subject to the terms and conditions set forth in this Section 2.11.01, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action

taken without such consent shall be void and of no force or effect.

Section 2.11.02 For purposes of this Section 2.11.02, the term "evidence of indebtedness" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to evidence of indebtedness, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 2.11.03 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to evidence of indebtedness, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 2.11.04 In the event of any conflict between the provisions of this Section 2.11.04 and any other provision of this Agreement or any other Loan Document with respect to evidence of indebtedness, the provisions of this Section 2.11.04 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 2.11.04, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 2.11.05 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to evidence of indebtedness, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 2.11.06 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with evidence of indebtedness, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to evidence of indebtedness and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 2.11.07 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this

Agreement with respect to evidence of indebtedness. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 2.11.08 To the extent that any provision of this Section 2.11.08 relating to evidence of indebtedness is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 2.11.09 Notwithstanding anything to the contrary contained herein, evidence of indebtedness shall be subject to the terms and conditions set forth in this Section 2.11.09, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 2.11.10 For purposes of this Section 2.11.10, the term "evidence of indebtedness" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to evidence of indebtedness, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 2.11.11 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to evidence of indebtedness, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 2.11.12 In the event of any conflict between the provisions of this Section 2.11.12 and any other provision of this Agreement or any other Loan Document with respect to evidence of indebtedness, the provisions of this Section 2.11.12 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 2.11.12, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 2.11.13 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to evidence of indebtedness, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 2.11.14 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with evidence of indebtedness, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to evidence of indebtedness and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 2.11.15 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to evidence of indebtedness. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 2.11.16 To the extent that any provision of this Section 2.11.16 relating to evidence of indebtedness is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 2.11.17 Notwithstanding anything to the contrary contained herein, evidence of indebtedness shall be subject to the terms and conditions set forth in this Section 2.11.17, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 2.11.18 For purposes of this Section 2.11.18, the term "evidence of indebtedness" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the

Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to evidence of indebtedness, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 2.11.19 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to evidence of indebtedness, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 2.11.20 In the event of any conflict between the provisions of this Section 2.11.20 and any other provision of this Agreement or any other Loan Document with respect to evidence of indebtedness, the provisions of this Section 2.11.20 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 2.11.20, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 2.11.01 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to evidence of indebtedness, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 2.11.02 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with evidence of indebtedness, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to evidence of indebtedness and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 2.11.03 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to evidence of indebtedness. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this

Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 2.11.04 To the extent that any provision of this Section 2.11.04 relating to evidence of indebtedness is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 2.12 Payment Mechanics.

Section 2.12.01 Notwithstanding anything to the contrary contained herein, payment mechanics shall be subject to the terms and conditions set forth in this Section 2.12.01, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 2.12.02 For purposes of this Section 2.12.02, the term "payment mechanics" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to payment mechanics, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 2.12.03 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to payment mechanics, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 2.12.04 In the event of any conflict between the provisions of this Section 2.12.04 and any other provision of this Agreement or any other Loan Document with respect to payment mechanics, the provisions of this Section 2.12.04 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 2.12.04, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 2.12.05 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to payment mechanics, and that any breach

of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 2.12.06 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with payment mechanics, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to payment mechanics and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 2.12.07 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to payment mechanics. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 2.12.08 To the extent that any provision of this Section 2.12.08 relating to payment mechanics is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 2.12.09 Notwithstanding anything to the contrary contained herein, payment mechanics shall be subject to the terms and conditions set forth in this Section 2.12.09, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 2.12.10 For purposes of this Section 2.12.10, the term "payment mechanics" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to payment mechanics, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 2.12.11 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to payment mechanics, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 2.12.12 In the event of any conflict between the provisions of this Section 2.12.12 and any other provision of this Agreement or any other Loan Document with respect to payment mechanics, the provisions of this Section 2.12.12 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 2.12.12, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 2.12.13 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to payment mechanics, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 2.12.14 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with payment mechanics, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to payment mechanics and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 2.12.15 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to payment mechanics. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 2.12.16 To the extent that any provision of this Section 2.12.16 relating to payment mechanics is determined by a court of competent jurisdiction to be invalid, illegal or

unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 2.12.17 Notwithstanding anything to the contrary contained herein, payment mechanics shall be subject to the terms and conditions set forth in this Section 2.12.17, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 2.12.18 For purposes of this Section 2.12.18, the term "payment mechanics" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to payment mechanics, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 2.12.19 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to payment mechanics, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 2.12.20 In the event of any conflict between the provisions of this Section 2.12.20 and any other provision of this Agreement or any other Loan Document with respect to payment mechanics, the provisions of this Section 2.12.20 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 2.12.20, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 2.12.01 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to payment mechanics, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 2.12.02 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in

connection with payment mechanics, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to payment mechanics and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 2.12.03 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to payment mechanics. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 2.12.04 To the extent that any provision of this Section 2.12.04 relating to payment mechanics is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 2.13 Sharing of Payments.

Section 2.13.01 Notwithstanding anything to the contrary contained herein, sharing of payments shall be subject to the terms and conditions set forth in this Section 2.13.01, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 2.13.02 For purposes of this Section 2.13.02, the term "sharing of payments" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to sharing of payments, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 2.13.03 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to sharing of payments, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of

any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 2.13.04 In the event of any conflict between the provisions of this Section 2.13.04 and any other provision of this Agreement or any other Loan Document with respect to sharing of payments, the provisions of this Section 2.13.04 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 2.13.04, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 2.13.05 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to sharing of payments, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 2.13.06 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with sharing of payments, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to sharing of payments and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 2.13.07 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to sharing of payments. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 2.13.08 To the extent that any provision of this Section 2.13.08 relating to sharing of payments is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the

economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 2.13.09 Notwithstanding anything to the contrary contained herein, sharing of payments shall be subject to the terms and conditions set forth in this Section 2.13.09, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 2.13.10 For purposes of this Section 2.13.10, the term "sharing of payments" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to sharing of payments, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 2.13.11 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to sharing of payments, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 2.13.12 In the event of any conflict between the provisions of this Section 2.13.12 and any other provision of this Agreement or any other Loan Document with respect to sharing of payments, the provisions of this Section 2.13.12 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 2.13.12, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 2.13.13 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to sharing of payments, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 2.13.14 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with sharing of payments, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to sharing of payments

and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 2.13.15 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to sharing of payments. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 2.13.16 To the extent that any provision of this Section 2.13.16 relating to sharing of payments is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 2.13.17 Notwithstanding anything to the contrary contained herein, sharing of payments shall be subject to the terms and conditions set forth in this Section 2.13.17, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 2.13.18 For purposes of this Section 2.13.18, the term "sharing of payments" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to sharing of payments, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 2.13.19 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to sharing of payments, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 2.13.20 In the event of any conflict between the provisions of this Section 2.13.20 and any other provision of this Agreement or any other Loan Document with respect to sharing of payments, the provisions of this Section 2.13.20 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 2.13.20, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 2.13.01 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to sharing of payments, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 2.13.02 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with sharing of payments, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to sharing of payments and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 2.13.03 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to sharing of payments. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 2.13.04 To the extent that any provision of this Section 2.13.04 relating to sharing of payments is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 2.14 Incremental Facility Procedures.

Section 2.14.01 Notwithstanding anything to the contrary contained herein, incremental facility procedures shall be subject to the terms and conditions set forth in this Section 2.14.01, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 2.14.02 For purposes of this Section 2.14.02, the term "incremental facility procedures" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to incremental facility procedures, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 2.14.03 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to incremental facility procedures, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 2.14.04 In the event of any conflict between the provisions of this Section 2.14.04 and any other provision of this Agreement or any other Loan Document with respect to incremental facility procedures, the provisions of this Section 2.14.04 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 2.14.04, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 2.14.05 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to incremental facility procedures, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 2.14.06 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with incremental facility procedures, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to incremental facility procedures and shall make such records available for inspection by the

Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 2.14.07 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to incremental facility procedures. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 2.14.08 To the extent that any provision of this Section 2.14.08 relating to incremental facility procedures is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 2.14.09 Notwithstanding anything to the contrary contained herein, incremental facility procedures shall be subject to the terms and conditions set forth in this Section 2.14.09, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 2.14.10 For purposes of this Section 2.14.10, the term "incremental facility procedures" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to incremental facility procedures, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 2.14.11 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to incremental facility procedures, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 2.14.12 In the event of any conflict between the provisions of this Section 2.14.12 and any other provision of this Agreement or any other Loan Document with respect to incremental

facility procedures, the provisions of this Section 2.14.12 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 2.14.12, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 2.14.13 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to incremental facility procedures, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 2.14.14 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with incremental facility procedures, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to incremental facility procedures and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 2.14.15 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to incremental facility procedures. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 2.14.16 To the extent that any provision of this Section 2.14.16 relating to incremental facility procedures is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 2.14.17 Notwithstanding anything to the contrary contained herein, incremental facility procedures shall be subject to the terms and conditions set forth in this Section 2.14.17, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior

written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 2.14.18 For purposes of this Section 2.14.18, the term "incremental facility procedures" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to incremental facility procedures, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 2.14.19 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to incremental facility procedures, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 2.14.20 In the event of any conflict between the provisions of this Section 2.14.20 and any other provision of this Agreement or any other Loan Document with respect to incremental facility procedures, the provisions of this Section 2.14.20 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 2.14.20, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 2.14.01 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to incremental facility procedures, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 2.14.02 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with incremental facility procedures, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to incremental facility procedures and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 2.14.03 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as

it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to incremental facility procedures. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 2.14.04 To the extent that any provision of this Section 2.14.04 relating to incremental facility procedures is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 2.15 Extension Mechanics.

Section 2.15.01 Notwithstanding anything to the contrary contained herein, extension mechanics shall be subject to the terms and conditions set forth in this Section 2.15.01, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 2.15.02 For purposes of this Section 2.15.02, the term "extension mechanics" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to extension mechanics, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 2.15.03 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to extension mechanics, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 2.15.04 In the event of any conflict between the provisions of this Section 2.15.04 and any other provision of this Agreement or any other Loan Document with respect to extension mechanics, the provisions of this Section 2.15.04 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 2.15.04, and shall be entitled to rely conclusively upon any certificate or other

document delivered by the Borrower in connection therewith.

Section 2.15.05 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to extension mechanics, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 2.15.06 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with extension mechanics, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to extension mechanics and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 2.15.07 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to extension mechanics. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 2.15.08 To the extent that any provision of this Section 2.15.08 relating to extension mechanics is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 2.15.09 Notwithstanding anything to the contrary contained herein, extension mechanics shall be subject to the terms and conditions set forth in this Section 2.15.09, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 2.15.10 For purposes of this Section 2.15.10, the term "extension mechanics" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to extension mechanics, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 2.15.11 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to extension mechanics, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 2.15.12 In the event of any conflict between the provisions of this Section 2.15.12 and any other provision of this Agreement or any other Loan Document with respect to extension mechanics, the provisions of this Section 2.15.12 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 2.15.12, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 2.15.13 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to extension mechanics, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 2.15.14 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with extension mechanics, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to extension mechanics and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 2.15.15 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to extension mechanics. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and

based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 2.15.16 To the extent that any provision of this Section 2.15.16 relating to extension mechanics is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 2.15.17 Notwithstanding anything to the contrary contained herein, extension mechanics shall be subject to the terms and conditions set forth in this Section 2.15.17, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 2.15.18 For purposes of this Section 2.15.18, the term "extension mechanics" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to extension mechanics, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 2.15.19 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to extension mechanics, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 2.15.20 In the event of any conflict between the provisions of this Section 2.15.20 and any other provision of this Agreement or any other Loan Document with respect to extension mechanics, the provisions of this Section 2.15.20 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 2.15.20, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 2.15.01 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and

covenants contained herein and therein with respect to extension mechanics, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 2.15.02 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with extension mechanics, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to extension mechanics and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 2.15.03 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to extension mechanics. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 2.15.04 To the extent that any provision of this Section 2.15.04 relating to extension mechanics is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

ARTICLE III

TAXES, INCREASED COSTS PROTECTION AND ILLEGALITY

Section 3.01 Taxes. (a) *Payments Free of Taxes; Obligation to Withhold; Payments on Account of Taxes.* Any and all payments by or on account of any obligation of any Loan Party under any Loan Document shall be made without deduction or withholding for any Taxes, except as required by applicable Laws. If any applicable Laws (as determined in the good faith discretion of an applicable withholding agent) require the deduction or withholding of any Tax from any such payment by a withholding agent, then the applicable withholding agent shall be entitled to make such deduction or withholding and shall timely pay the full amount deducted or withheld to the relevant Governmental Authority in accordance with applicable Laws.

Section 3.04 Increased Cost and Reduced Return; Capital Adequacy. (a) If any Lender determines that as a result of the introduction of or any change in or in the interpretation of any Law, in each case after the date hereof, or such Lender's compliance therewith, there shall be any increase in the cost to such Lender of agreeing to make or making, funding or maintaining any Term SOFR Loan or (as the case may be) issuing or participating in Letters of Credit, or a reduction in the amount received or receivable by such Lender in connection with any of the foregoing (excluding for purposes of this Section 3.04(a) any such increased costs or reduction in amount resulting from (i) Indemnified Taxes, (ii) Excluded Taxes, or (iii) reserve requirements reflected in the Term SOFR Rate), then from time to time upon demand of such Lender (with a copy of such demand to the Administrative Agent), the Borrower shall pay to such Lender such additional amounts as will compensate such Lender for such increased cost or reduction.

ARTICLE IV

CONDITIONS PRECEDENT

Section 4.01 Conditions to Initial Credit Extension. The obligation of each Lender to make a Credit Extension on the Closing Date is subject to satisfaction of the following conditions precedent:

(a) Loan Documents. The Administrative Agent's receipt of the following, each of which shall be originals or telecopies (followed promptly by originals) unless otherwise specified, each properly executed by a Responsible Officer of the signing Loan Party, each dated the Closing Date (or, in the case of certificates of governmental officials, a recent date before the Closing Date) and each in form and substance satisfactory to the Administrative Agent and each of the Lenders: (i) executed counterparts of this Agreement; (ii) a Note executed by the Borrower in favor of each Lender requesting a Note; (iii) the Guaranty executed by each Guarantor; (iv) the Security Agreement executed by each Loan Party; and (v) such other documents as the Administrative Agent may reasonably request.

(b) Financial Statements. The Administrative Agent shall have received the Audited Financial Statements for the fiscal year ended December 31, 2020.

(c) No Default. No Default or Event of Default shall exist, or would result from the initial Credit Extensions or from the application of the proceeds thereof.

(d) Representations and Warranties. The representations and warranties of each Loan Party contained in Article V or any other Loan Document shall be true and correct in all material respects on and as of the Closing Date.

(e) Fees. The Administrative Agent shall have received all fees required to be paid, and all expenses for which invoices have been presented, on or before the Closing Date.

Section 4.02 Conditions to All Credit Extensions. The obligation of each Lender to honor any Request for Credit Extension (other than a Committed Loan Notice requesting only a conversion of Loans to the other Type or a continuation of Term SOFR Loans) is subject to the following conditions precedent: (a) the representations and warranties of the Borrower and each other Loan Party contained in Article V or any other Loan Document shall be true and correct in all material respects on and as of the proposed Credit Extension date; and (b) no Default or Event of Default shall exist, or would result from such proposed Credit Extension or from the application of the proceeds thereof.

ARTICLE V

REPRESENTATIONS AND WARRANTIES

The Borrower represents and warrants to the Administrative Agent and the Lenders that:

Section 5.01 Existence, Qualification and Power. The Borrower and each Restricted Subsidiary (a) is duly organized or formed, validly existing and, as applicable, in good standing under the Laws of the jurisdiction of its incorporation or organization; (b) has all requisite power and authority and all requisite governmental licenses, authorizations, consents and approvals to (i) own or lease its assets and carry on its business and (ii) execute, deliver and perform its obligations under the Loan Documents to which it is a party; and (c) is duly qualified and is licensed and, as applicable, in good standing under the Laws of each jurisdiction where its ownership, lease or operation of properties or the conduct of its business requires such qualification or license.

Section 5.02 Authorization; No Contravention. The execution, delivery and performance by each Loan Party of each Loan Document to which such Person is party have been duly authorized by all necessary corporate or other organizational action, and do not and will not (a) contravene the terms of any of such Person's Organization Documents; (b) conflict with or result in any breach or contravention of, or the creation of any Lien under, or require any payment to be made under (i) any Contractual Obligation to which such Person is a party or affecting such Person or the properties of such Person or any of its Subsidiaries or (ii) any order, injunction, writ or decree of any Governmental Authority or any arbitral award to which such Person or its property is subject; or (c) violate any Law.

Section 5.05 Financial Statements; No Material Adverse Effect. (a) The Audited Financial Statements (i) were prepared in accordance with GAAP consistently applied throughout the period covered thereby, except as otherwise expressly noted therein; (ii) fairly present the financial condition of the Borrower and its Subsidiaries as of the date thereof and their results of operations for the period covered thereby in accordance with GAAP consistently applied throughout the period covered thereby, except as otherwise expressly noted therein; and (iii) show all material indebtedness and other liabilities, direct or contingent, of the Borrower and its Subsidiaries as of the date thereof, including liabilities for taxes, material commitments and Indebtedness. (b) Since December 31, 2020, there has been no event or circumstance, either individually or in the aggregate, that has had or could reasonably be expected to have a Material Adverse Effect.

Section 5.06 Litigation. There are no actions, suits, proceedings, claims or disputes pending or, to the knowledge of the Borrower, threatened or contemplated, at law, in equity, in arbitration or before any Governmental Authority, by or against the Borrower or any of its Restricted Subsidiaries or against any of their properties or revenues that (a) purport to affect or pertain to

this Agreement or any other Loan Document, or any of the transactions contemplated hereby, or (b) either individually or in the aggregate, if determined adversely, could reasonably be expected to have a Material Adverse Effect.

Section 5.15 Solvency. The Borrower and its Subsidiaries, on a consolidated basis, are Solvent. No transfer of property is being made by the Borrower and no obligation is being incurred by the Borrower in connection with the transactions contemplated by this Agreement or the other Loan Documents with the intent to hinder, delay, or defraud either present or future creditors of the Borrower.

ARTICLE V (CONTINUED)

ADDITIONAL REPRESENTATIONS AND WARRANTIES

Section 5.07 Ownership of Property.

Section 5.07.01 Notwithstanding anything to the contrary contained herein, ownership of property shall be subject to the terms and conditions set forth in this Section 5.07.01, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 5.07.02 For purposes of this Section 5.07.02, the term "ownership of property" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to ownership of property, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 5.07.03 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to ownership of property, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 5.07.04 In the event of any conflict between the provisions of this Section 5.07.04 and any other provision of this Agreement or any other Loan Document with respect to ownership of property, the provisions of this Section 5.07.04 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 5.07.04, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 5.07.05 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to ownership of property, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 5.07.06 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in

connection with ownership of property, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to ownership of property and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 5.07.07 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to ownership of property. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 5.07.08 To the extent that any provision of this Section 5.07.08 relating to ownership of property is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 5.07.09 Notwithstanding anything to the contrary contained herein, ownership of property shall be subject to the terms and conditions set forth in this Section 5.07.09, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 5.07.10 For purposes of this Section 5.07.10, the term "ownership of property" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to ownership of property, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 5.07.11 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to ownership of property, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented

from time to time.

Section 5.07.12 In the event of any conflict between the provisions of this Section 5.07.12 and any other provision of this Agreement or any other Loan Document with respect to ownership of property, the provisions of this Section 5.07.12 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 5.07.12, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 5.07.13 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to ownership of property, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 5.07.14 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with ownership of property, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to ownership of property and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 5.07.15 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to ownership of property. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 5.07.16 To the extent that any provision of this Section 5.07.16 relating to ownership of property is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 5.08 Environmental Compliance.

Section 5.08.01 Notwithstanding anything to the contrary contained herein, environmental compliance shall be subject to the terms and conditions set forth in this Section 5.08.01, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 5.08.02 For purposes of this Section 5.08.02, the term "environmental compliance" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to environmental compliance, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 5.08.03 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to environmental compliance, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 5.08.04 In the event of any conflict between the provisions of this Section 5.08.04 and any other provision of this Agreement or any other Loan Document with respect to environmental compliance, the provisions of this Section 5.08.04 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 5.08.04, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 5.08.05 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to environmental compliance, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 5.08.06 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with environmental compliance, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to environmental compliance and shall make such records available for inspection by the

Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 5.08.07 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to environmental compliance. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 5.08.08 To the extent that any provision of this Section 5.08.08 relating to environmental compliance is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 5.08.09 Notwithstanding anything to the contrary contained herein, environmental compliance shall be subject to the terms and conditions set forth in this Section 5.08.09, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 5.08.10 For purposes of this Section 5.08.10, the term "environmental compliance" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to environmental compliance, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 5.08.11 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to environmental compliance, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 5.08.12 In the event of any conflict between the provisions of this Section 5.08.12 and any other provision of this Agreement or any other Loan Document with respect to environmental

compliance, the provisions of this Section 5.08.12 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 5.08.12, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 5.08.13 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to environmental compliance, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 5.08.14 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with environmental compliance, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to environmental compliance and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 5.08.15 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to environmental compliance. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 5.08.16 To the extent that any provision of this Section 5.08.16 relating to environmental compliance is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 5.09 Tax Matters.

Section 5.09.01 Notwithstanding anything to the contrary contained herein, tax matters shall be subject to the terms and conditions set forth in this Section 5.09.01, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 5.09.02 For purposes of this Section 5.09.02, the term "tax matters" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to tax matters, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 5.09.03 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to tax matters, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 5.09.04 In the event of any conflict between the provisions of this Section 5.09.04 and any other provision of this Agreement or any other Loan Document with respect to tax matters, the provisions of this Section 5.09.04 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 5.09.04, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 5.09.05 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to tax matters, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 5.09.06 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with tax matters, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to tax matters and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 5.09.07 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as

it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to tax matters. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 5.09.08 To the extent that any provision of this Section 5.09.08 relating to tax matters is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 5.09.09 Notwithstanding anything to the contrary contained herein, tax matters shall be subject to the terms and conditions set forth in this Section 5.09.09, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 5.09.10 For purposes of this Section 5.09.10, the term "tax matters" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to tax matters, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 5.09.11 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to tax matters, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 5.09.12 In the event of any conflict between the provisions of this Section 5.09.12 and any other provision of this Agreement or any other Loan Document with respect to tax matters, the provisions of this Section 5.09.12 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 5.09.12, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 5.09.13 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the

other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to tax matters, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 5.09.14 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with tax matters, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to tax matters and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 5.09.15 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to tax matters. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 5.09.16 To the extent that any provision of this Section 5.09.16 relating to tax matters is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 5.10 ERISA Compliance.

Section 5.10.01 Notwithstanding anything to the contrary contained herein, erisa compliance shall be subject to the terms and conditions set forth in this Section 5.10.01, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 5.10.02 For purposes of this Section 5.10.02, the term "erisa compliance" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument,

document or arrangement relating to erisa compliance, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 5.10.03 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to erisa compliance, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 5.10.04 In the event of any conflict between the provisions of this Section 5.10.04 and any other provision of this Agreement or any other Loan Document with respect to erisa compliance, the provisions of this Section 5.10.04 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 5.10.04, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 5.10.05 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to erisa compliance, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 5.10.06 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with erisa compliance, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to erisa compliance and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 5.10.07 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to erisa compliance. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 5.10.08 To the extent that any provision of this Section 5.10.08 relating to erisa compliance is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 5.10.09 Notwithstanding anything to the contrary contained herein, erisa compliance shall be subject to the terms and conditions set forth in this Section 5.10.09, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 5.10.10 For purposes of this Section 5.10.10, the term "erisa compliance" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to erisa compliance, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 5.10.11 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to erisa compliance, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 5.10.12 In the event of any conflict between the provisions of this Section 5.10.12 and any other provision of this Agreement or any other Loan Document with respect to erisa compliance, the provisions of this Section 5.10.12 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 5.10.12, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 5.10.13 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to erisa compliance, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 5.10.14 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in

connection with erisa compliance, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to erisa compliance and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 5.10.15 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to erisa compliance. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 5.10.16 To the extent that any provision of this Section 5.10.16 relating to erisa compliance is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 5.11 Subsidiaries and Equity Interests.

Section 5.11.01 Notwithstanding anything to the contrary contained herein, subsidiaries and equity interests shall be subject to the terms and conditions set forth in this Section 5.11.01, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 5.11.02 For purposes of this Section 5.11.02, the term "subsidiaries and equity interests" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to subsidiaries and equity interests, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 5.11.03 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to subsidiaries and equity interests, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and

injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 5.11.04 In the event of any conflict between the provisions of this Section 5.11.04 and any other provision of this Agreement or any other Loan Document with respect to subsidiaries and equity interests, the provisions of this Section 5.11.04 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 5.11.04, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 5.11.05 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to subsidiaries and equity interests, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 5.11.06 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with subsidiaries and equity interests, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to subsidiaries and equity interests and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 5.11.07 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to subsidiaries and equity interests. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 5.11.08 To the extent that any provision of this Section 5.11.08 relating to subsidiaries and equity interests is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained

herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 5.11.09 Notwithstanding anything to the contrary contained herein, subsidiaries and equity interests shall be subject to the terms and conditions set forth in this Section 5.11.09, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 5.11.10 For purposes of this Section 5.11.10, the term "subsidiaries and equity interests" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to subsidiaries and equity interests, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 5.11.11 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to subsidiaries and equity interests, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 5.11.12 In the event of any conflict between the provisions of this Section 5.11.12 and any other provision of this Agreement or any other Loan Document with respect to subsidiaries and equity interests, the provisions of this Section 5.11.12 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 5.11.12, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 5.11.13 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to subsidiaries and equity interests, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 5.11.14 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with subsidiaries and equity interests, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to

subsidiaries and equity interests and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 5.11.15 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to subsidiaries and equity interests. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 5.11.16 To the extent that any provision of this Section 5.11.16 relating to subsidiaries and equity interests is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 5.12 Margin Regulations.

Section 5.12.01 Notwithstanding anything to the contrary contained herein, margin regulations shall be subject to the terms and conditions set forth in this Section 5.12.01, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 5.12.02 For purposes of this Section 5.12.02, the term "margin regulations" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to margin regulations, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 5.12.03 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to margin regulations, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 5.12.04 In the event of any conflict between the provisions of this Section 5.12.04 and any other provision of this Agreement or any other Loan Document with respect to margin regulations, the provisions of this Section 5.12.04 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 5.12.04, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 5.12.05 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to margin regulations, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 5.12.06 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with margin regulations, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to margin regulations and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 5.12.07 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to margin regulations. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 5.12.08 To the extent that any provision of this Section 5.12.08 relating to margin regulations is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 5.12.09 Notwithstanding anything to the contrary contained herein, margin regulations shall be subject to the terms and conditions set forth in this Section 5.12.09, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 5.12.10 For purposes of this Section 5.12.10, the term "margin regulations" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to margin regulations, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 5.12.11 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to margin regulations, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 5.12.12 In the event of any conflict between the provisions of this Section 5.12.12 and any other provision of this Agreement or any other Loan Document with respect to margin regulations, the provisions of this Section 5.12.12 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 5.12.12, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 5.12.13 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to margin regulations, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 5.12.14 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with margin regulations, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to margin regulations and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 5.12.15 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to margin regulations. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 5.12.16 To the extent that any provision of this Section 5.12.16 relating to margin regulations is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 5.13 Disclosure.

Section 5.13.01 Notwithstanding anything to the contrary contained herein, disclosure shall be subject to the terms and conditions set forth in this Section 5.13.01, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 5.13.02 For purposes of this Section 5.13.02, the term "disclosure" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to disclosure, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 5.13.03 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to disclosure, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 5.13.04 In the event of any conflict between the provisions of this Section 5.13.04 and any other provision of this Agreement or any other Loan Document with respect to disclosure, the provisions of this Section 5.13.04 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 5.13.04, and shall be entitled to rely conclusively upon any certificate or other document

delivered by the Borrower in connection therewith.

Section 5.13.05 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to disclosure, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 5.13.06 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with disclosure, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to disclosure and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 5.13.07 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to disclosure. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 5.13.08 To the extent that any provision of this Section 5.13.08 relating to disclosure is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 5.13.09 Notwithstanding anything to the contrary contained herein, disclosure shall be subject to the terms and conditions set forth in this Section 5.13.09, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 5.13.10 For purposes of this Section 5.13.10, the term "disclosure" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its

Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to disclosure, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 5.13.11 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to disclosure, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 5.13.12 In the event of any conflict between the provisions of this Section 5.13.12 and any other provision of this Agreement or any other Loan Document with respect to disclosure, the provisions of this Section 5.13.12 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 5.13.12, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 5.13.13 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to disclosure, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 5.13.14 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with disclosure, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to disclosure and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 5.13.15 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to disclosure. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 5.13.16 To the extent that any provision of this Section 5.13.16 relating to disclosure is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 5.14 Intellectual Property.

Section 5.14.01 Notwithstanding anything to the contrary contained herein, intellectual property shall be subject to the terms and conditions set forth in this Section 5.14.01, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 5.14.02 For purposes of this Section 5.14.02, the term "intellectual property" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to intellectual property, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 5.14.03 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to intellectual property, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 5.14.04 In the event of any conflict between the provisions of this Section 5.14.04 and any other provision of this Agreement or any other Loan Document with respect to intellectual property, the provisions of this Section 5.14.04 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 5.14.04, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 5.14.05 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to intellectual property, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to

them under this Agreement, the other Loan Documents and applicable Law.

Section 5.14.06 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with intellectual property, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to intellectual property and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 5.14.07 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to intellectual property. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 5.14.08 To the extent that any provision of this Section 5.14.08 relating to intellectual property is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 5.14.09 Notwithstanding anything to the contrary contained herein, intellectual property shall be subject to the terms and conditions set forth in this Section 5.14.09, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 5.14.10 For purposes of this Section 5.14.10, the term "intellectual property" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to intellectual property, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 5.14.11 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to intellectual property, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 5.14.12 In the event of any conflict between the provisions of this Section 5.14.12 and any other provision of this Agreement or any other Loan Document with respect to intellectual property, the provisions of this Section 5.14.12 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 5.14.12, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 5.14.13 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to intellectual property, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 5.14.14 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with intellectual property, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to intellectual property and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 5.14.15 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to intellectual property. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 5.14.16 To the extent that any provision of this Section 5.14.16 relating to intellectual property is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable

in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 5.18 Labor Matters.

Section 5.18.01 Notwithstanding anything to the contrary contained herein, labor matters shall be subject to the terms and conditions set forth in this Section 5.18.01, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 5.18.02 For purposes of this Section 5.18.02, the term "labor matters" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to labor matters, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 5.18.03 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to labor matters, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 5.18.04 In the event of any conflict between the provisions of this Section 5.18.04 and any other provision of this Agreement or any other Loan Document with respect to labor matters, the provisions of this Section 5.18.04 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 5.18.04, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 5.18.05 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to labor matters, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 5.18.06 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with labor matters, including, without limitation, copies of all agreements, instruments,

documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to labor matters and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 5.18.07 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to labor matters. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 5.18.08 To the extent that any provision of this Section 5.18.08 relating to labor matters is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 5.18.09 Notwithstanding anything to the contrary contained herein, labor matters shall be subject to the terms and conditions set forth in this Section 5.18.09, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 5.18.10 For purposes of this Section 5.18.10, the term "labor matters" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to labor matters, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 5.18.11 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to labor matters, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 5.18.12 In the event of any conflict between the provisions of this Section 5.18.12 and any other provision of this Agreement or any other Loan Document with respect to labor matters,

the provisions of this Section 5.18.12 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 5.18.12, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 5.18.13 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to labor matters, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 5.18.14 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with labor matters, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to labor matters and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 5.18.15 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to labor matters. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 5.18.16 To the extent that any provision of this Section 5.18.16 relating to labor matters is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 5.19 Anti-Corruption Laws.

Section 5.19.01 Notwithstanding anything to the contrary contained herein, anti-corruption laws shall be subject to the terms and conditions set forth in this Section 5.19.01, and no Loan Party

shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 5.19.02 For purposes of this Section 5.19.02, the term "anti-corruption laws" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to anti-corruption laws, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 5.19.03 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to anti-corruption laws, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 5.19.04 In the event of any conflict between the provisions of this Section 5.19.04 and any other provision of this Agreement or any other Loan Document with respect to anti-corruption laws, the provisions of this Section 5.19.04 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 5.19.04, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 5.19.05 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to anti-corruption laws, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 5.19.06 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with anti-corruption laws, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to anti-corruption laws and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 5.19.07 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to anti-corruption laws. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 5.19.08 To the extent that any provision of this Section 5.19.08 relating to anti-corruption laws is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 5.19.09 Notwithstanding anything to the contrary contained herein, anti-corruption laws shall be subject to the terms and conditions set forth in this Section 5.19.09, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 5.19.10 For purposes of this Section 5.19.10, the term "anti-corruption laws" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to anti-corruption laws, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 5.19.11 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to anti-corruption laws, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 5.19.12 In the event of any conflict between the provisions of this Section 5.19.12 and any other provision of this Agreement or any other Loan Document with respect to anti-corruption laws, the provisions of this Section 5.19.12 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 5.19.12, and shall be entitled to rely conclusively upon any certificate or other document

delivered by the Borrower in connection therewith.

Section 5.19.13 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to anti-corruption laws, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 5.19.14 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with anti-corruption laws, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to anti-corruption laws and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 5.19.15 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to anti-corruption laws. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 5.19.16 To the extent that any provision of this Section 5.19.16 relating to anti-corruption laws is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 5.20 Sanctions.

Section 5.20.01 Notwithstanding anything to the contrary contained herein, sanctions shall be subject to the terms and conditions set forth in this Section 5.20.01, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent

shall be void and of no force or effect.

Section 5.20.02 For purposes of this Section 5.20.02, the term "sanctions" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to sanctions, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 5.20.03 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to sanctions, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 5.20.04 In the event of any conflict between the provisions of this Section 5.20.04 and any other provision of this Agreement or any other Loan Document with respect to sanctions, the provisions of this Section 5.20.04 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 5.20.04, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 5.20.05 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to sanctions, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 5.20.06 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with sanctions, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to sanctions and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 5.20.07 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to sanctions. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its

own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 5.20.08 To the extent that any provision of this Section 5.20.08 relating to sanctions is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 5.20.09 Notwithstanding anything to the contrary contained herein, sanctions shall be subject to the terms and conditions set forth in this Section 5.20.09, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 5.20.10 For purposes of this Section 5.20.10, the term "sanctions" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to sanctions, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 5.20.11 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to sanctions, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 5.20.12 In the event of any conflict between the provisions of this Section 5.20.12 and any other provision of this Agreement or any other Loan Document with respect to sanctions, the provisions of this Section 5.20.12 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 5.20.12, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 5.20.13 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to sanctions, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 5.20.14 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with sanctions, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to sanctions and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 5.20.15 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to sanctions. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 5.20.16 To the extent that any provision of this Section 5.20.16 relating to sanctions is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 5.21 Beneficial Ownership.

Section 5.21.01 Notwithstanding anything to the contrary contained herein, beneficial ownership shall be subject to the terms and conditions set forth in this Section 5.21.01, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 5.21.02 For purposes of this Section 5.21.02, the term "beneficial ownership" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to beneficial ownership, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 5.21.03 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to beneficial ownership, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of

any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 5.21.04 In the event of any conflict between the provisions of this Section 5.21.04 and any other provision of this Agreement or any other Loan Document with respect to beneficial ownership, the provisions of this Section 5.21.04 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 5.21.04, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 5.21.05 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to beneficial ownership, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 5.21.06 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with beneficial ownership, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to beneficial ownership and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 5.21.07 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to beneficial ownership. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 5.21.08 To the extent that any provision of this Section 5.21.08 relating to beneficial ownership is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained

herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 5.21.09 Notwithstanding anything to the contrary contained herein, beneficial ownership shall be subject to the terms and conditions set forth in this Section 5.21.09, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 5.21.10 For purposes of this Section 5.21.10, the term "beneficial ownership" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to beneficial ownership, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 5.21.11 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to beneficial ownership, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 5.21.12 In the event of any conflict between the provisions of this Section 5.21.12 and any other provision of this Agreement or any other Loan Document with respect to beneficial ownership, the provisions of this Section 5.21.12 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 5.21.12, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 5.21.13 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to beneficial ownership, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 5.21.14 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with beneficial ownership, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to beneficial ownership

and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 5.21.15 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to beneficial ownership. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 5.21.16 To the extent that any provision of this Section 5.21.16 relating to beneficial ownership is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

ARTICLE VI

AFFIRMATIVE COVENANTS

So long as any Lender shall have any Commitment hereunder, any Loan or other Obligation hereunder shall remain unpaid or unsatisfied, or any Letter of Credit shall remain outstanding, the Borrower shall, and shall (except in the case of the covenants set forth in Sections 6.01, 6.02, and 6.03) cause each Restricted Subsidiary to:

Section 6.01 Financial Statements. Deliver to the Administrative Agent and each Lender, in form and detail satisfactory to the Administrative Agent and the Required Lenders:

(a) as soon as available, but in any event within 90 days after the end of each fiscal year of the Borrower, a consolidated balance sheet of the Borrower and its Subsidiaries as at the end of such fiscal year, and the related consolidated statements of income or operations, shareholders' equity and cash flows for such fiscal year, setting forth in each case in comparative form the figures for the previous fiscal year, all in reasonable detail and prepared in accordance with GAAP, audited and accompanied by a report and opinion of an independent certified public accountant of nationally recognized standing reasonably acceptable to the Required Lenders, which report and opinion shall be prepared in accordance with generally accepted auditing standards and shall not be subject to any 'going concern' or like qualification or exception or any qualification or exception as to the scope of such audit;

(b) as soon as available, but in any event within 45 days after the end of each of the first three fiscal quarters of each fiscal year of the Borrower, a consolidated balance sheet of the Borrower and its Subsidiaries as at the end of such fiscal quarter, and the related consolidated statements of income or operations, shareholders' equity and cash flows for such fiscal quarter and for the portion of the Borrower's fiscal year then ended, setting forth in each case in comparative form the figures for the corresponding fiscal quarter of the previous fiscal year and the corresponding portion of the previous fiscal year, all in reasonable detail, certified by a Responsible Officer of the Borrower as fairly presenting the financial condition, results of operations, shareholders' equity and cash flows of the Borrower and its Subsidiaries in accordance with GAAP, subject only to normal year-end audit adjustments and the absence of footnotes.

Section 6.02 Certificates; Other Information. Deliver to the Administrative Agent and each Lender, in form and detail satisfactory to the Administrative Agent and the Required Lenders:

(a) concurrently with the delivery of the financial statements referred to in Sections 6.01(a) and (b), a duly completed Compliance Certificate signed by a Responsible Officer of the Borrower; provided that the Compliance Certificate delivered concurrently with the financial statements referred to in Section 6.01(a) shall be accompanied by a report and opinion of

the Borrower's independent certified public accountants to the effect that, based on their audit of the Borrower's financial statements, nothing has come to their attention that causes them to believe that the Compliance Certificate is not accurate in all material respects. Each Compliance Certificate shall set forth in reasonable detail the computations necessary to determine compliance with the Financial Covenants set forth in Section 7.10 for the applicable Test Period, including: (i) a calculation of Consolidated EBITDA for the Test Period, showing each component thereof and each add-back claimed, with a reference to the specific clause of the definition of Consolidated EBITDA in Section 1.01 that permits each such add-back, and the amount of each applicable cap; (ii) a calculation of Total Indebtedness as of the last day of the Test Period, identifying each item of Indebtedness included therein and each item claimed as Excluded Indebtedness (with a reference to the specific clause of the definition of Excluded Indebtedness in Section 1.01 that permits such exclusion and, in the case of clause (e) of such definition, a copy of the applicable Excluded Indebtedness Consent); (iii) a calculation of Net Debt as of the last day of the Test Period, showing Unrestricted Cash and the application of the Cash Cap; (iv) a calculation of each Financial Covenant set forth in Section 7.10, showing the computed ratio or amount and the applicable threshold; and (v) a statement as to whether any Default or Event of Default has occurred and is continuing as of the date of such Compliance Certificate. The Compliance Certificate shall be delivered within 45 days after the end of each fiscal quarter (and within 90 days after the end of each fiscal year). Failure to deliver a Compliance Certificate by the applicable deadline shall constitute an Event of Default under Section 8.01(c);

(b) promptly after the same are available, copies of each annual report, proxy or financial statement or other report or communication sent to the stockholders of the Borrower, and copies of all annual, regular, periodic and special reports and registration statements which the Borrower may file or be required to file with the SEC under Section 13 or 15(d) of the Securities Exchange Act of 1934, and not otherwise required to be delivered to the Administrative Agent pursuant hereto;

(c) promptly, and in any event within five Business Days after a Responsible Officer of the Borrower becomes aware of the existence of any Default or Event of Default or any event, development or occurrence that could reasonably be expected to have a Material Adverse Effect, a written notice specifying the nature and period of existence thereof and what action the Borrower has taken, is taking and proposes to take with respect thereto;

(d) promptly following any request therefor, provide information and documentation reasonably requested by the Administrative Agent or any Lender for purposes of compliance with applicable 'know your customer' and anti-money laundering rules and regulations, including the USA PATRIOT Act.

Section 6.03 Notices. Promptly notify the Administrative Agent and each Lender: (a) of the occurrence of any Default; (b) of any matter that has resulted or could reasonably be expected to

result in a Material Adverse Effect; (c) of the occurrence of any ERISA Event; (d) of any material change in accounting policies or financial reporting practices by the Borrower or any Restricted Subsidiary; and (e) of the commencement of, or any material development in, any litigation or proceeding affecting the Borrower or any Restricted Subsidiary.

Section 6.04 Payment of Obligations. Pay and discharge as the same shall become due and payable, all its obligations and liabilities, including (a) all tax liabilities, assessments and governmental charges or levies upon it or its properties or assets, unless the same are being contested in good faith by appropriate proceedings diligently conducted and adequate reserves in accordance with GAAP are being maintained by the Borrower or such Restricted Subsidiary; (b) all lawful claims which, if unpaid, would by law become a Lien upon its property; and (c) all Indebtedness, as and when due and payable, but subject to any subordination provisions contained in any instrument or agreement evidencing such Indebtedness.

Section 6.05 Preservation of Existence, Etc. (a) Preserve, renew and maintain in full force and effect its legal existence and good standing under the Laws of the jurisdiction of its organization except in a transaction permitted by Section 7.04 or 7.05; (b) take all reasonable action to maintain all rights, privileges, permits, licenses and franchises necessary or desirable in the normal conduct of its business, except to the extent that failure to do so could not reasonably be expected to have a Material Adverse Effect; and (c) preserve or renew all of its registered patents, trademarks, trade names and service marks, the non-preservation of which could reasonably be expected to have a Material Adverse Effect.

Section 6.07 Maintenance of Insurance. Maintain with financially sound and reputable insurance companies not Affiliates of the Borrower, insurance with respect to its properties and business against loss or damage of the kinds customarily insured against by Persons engaged in the same or similar business, of such types and in such amounts (after giving effect to any self-insurance compatible with the following standards) as are customarily carried under similar circumstances by such other Persons.

ARTICLE VI (CONTINUED)

ADDITIONAL AFFIRMATIVE COVENANTS

Section 6.06 Maintenance of Properties.

Section 6.06.01 Notwithstanding anything to the contrary contained herein, maintenance of properties shall be subject to the terms and conditions set forth in this Section 6.06.01, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 6.06.02 For purposes of this Section 6.06.02, the term "maintenance of properties" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to maintenance of properties, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 6.06.03 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to maintenance of properties, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 6.06.04 In the event of any conflict between the provisions of this Section 6.06.04 and any other provision of this Agreement or any other Loan Document with respect to maintenance of properties, the provisions of this Section 6.06.04 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 6.06.04, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 6.06.05 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to maintenance of properties, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 6.06.06 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in

connection with maintenance of properties, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to maintenance of properties and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 6.06.07 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to maintenance of properties. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 6.06.08 To the extent that any provision of this Section 6.06.08 relating to maintenance of properties is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 6.06.09 Notwithstanding anything to the contrary contained herein, maintenance of properties shall be subject to the terms and conditions set forth in this Section 6.06.09, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 6.06.10 For purposes of this Section 6.06.10, the term "maintenance of properties" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to maintenance of properties, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 6.06.11 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to maintenance of properties, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented

from time to time.

Section 6.06.12 In the event of any conflict between the provisions of this Section 6.06.12 and any other provision of this Agreement or any other Loan Document with respect to maintenance of properties, the provisions of this Section 6.06.12 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 6.06.12, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 6.06.13 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to maintenance of properties, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 6.06.14 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with maintenance of properties, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to maintenance of properties and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 6.06.15 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to maintenance of properties. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 6.06.16 To the extent that any provision of this Section 6.06.16 relating to maintenance of properties is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 6.07 Maintenance of Insurance.

Section 6.07.01 Notwithstanding anything to the contrary contained herein, maintenance of insurance shall be subject to the terms and conditions set forth in this Section 6.07.01, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 6.07.02 For purposes of this Section 6.07.02, the term "maintenance of insurance" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to maintenance of insurance, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 6.07.03 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to maintenance of insurance, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 6.07.04 In the event of any conflict between the provisions of this Section 6.07.04 and any other provision of this Agreement or any other Loan Document with respect to maintenance of insurance, the provisions of this Section 6.07.04 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 6.07.04, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 6.07.05 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to maintenance of insurance, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 6.07.06 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with maintenance of insurance, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to maintenance of insurance and shall make such records available for inspection by the Administrative Agent and

its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 6.07.07 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to maintenance of insurance. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 6.07.08 To the extent that any provision of this Section 6.07.08 relating to maintenance of insurance is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 6.07.09 Notwithstanding anything to the contrary contained herein, maintenance of insurance shall be subject to the terms and conditions set forth in this Section 6.07.09, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 6.07.10 For purposes of this Section 6.07.10, the term "maintenance of insurance" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to maintenance of insurance, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 6.07.11 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to maintenance of insurance, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 6.07.12 In the event of any conflict between the provisions of this Section 6.07.12 and any other provision of this Agreement or any other Loan Document with respect to maintenance

of insurance, the provisions of this Section 6.07.12 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 6.07.12, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 6.07.13 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to maintenance of insurance, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 6.07.14 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with maintenance of insurance, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to maintenance of insurance and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 6.07.15 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to maintenance of insurance. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 6.07.16 To the extent that any provision of this Section 6.07.16 relating to maintenance of insurance is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 6.08 Compliance with Laws.

Section 6.08.01 Notwithstanding anything to the contrary contained herein, compliance with laws shall be subject to the terms and conditions set forth in this Section 6.08.01, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 6.08.02 For purposes of this Section 6.08.02, the term "compliance with laws" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to compliance with laws, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 6.08.03 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to compliance with laws, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 6.08.04 In the event of any conflict between the provisions of this Section 6.08.04 and any other provision of this Agreement or any other Loan Document with respect to compliance with laws, the provisions of this Section 6.08.04 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 6.08.04, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 6.08.05 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to compliance with laws, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 6.08.06 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with compliance with laws, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to compliance with laws and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 6.08.07 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to compliance with laws. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 6.08.08 To the extent that any provision of this Section 6.08.08 relating to compliance with laws is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 6.08.09 Notwithstanding anything to the contrary contained herein, compliance with laws shall be subject to the terms and conditions set forth in this Section 6.08.09, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 6.08.10 For purposes of this Section 6.08.10, the term "compliance with laws" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to compliance with laws, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 6.08.11 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to compliance with laws, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 6.08.12 In the event of any conflict between the provisions of this Section 6.08.12 and any other provision of this Agreement or any other Loan Document with respect to compliance with laws, the provisions of this Section 6.08.12 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 6.08.12, and shall be entitled to rely conclusively upon any certificate or other

document delivered by the Borrower in connection therewith.

Section 6.08.13 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to compliance with laws, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 6.08.14 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with compliance with laws, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to compliance with laws and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 6.08.15 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to compliance with laws. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 6.08.16 To the extent that any provision of this Section 6.08.16 relating to compliance with laws is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 6.09 Books and Records.

Section 6.09.01 Notwithstanding anything to the contrary contained herein, books and records shall be subject to the terms and conditions set forth in this Section 6.09.01, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without

such consent shall be void and of no force or effect.

Section 6.09.02 For purposes of this Section 6.09.02, the term "books and records" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to books and records, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 6.09.03 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to books and records, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 6.09.04 In the event of any conflict between the provisions of this Section 6.09.04 and any other provision of this Agreement or any other Loan Document with respect to books and records, the provisions of this Section 6.09.04 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 6.09.04, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 6.09.05 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to books and records, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 6.09.06 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with books and records, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to books and records and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 6.09.07 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this

Agreement with respect to books and records. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 6.09.08 To the extent that any provision of this Section 6.09.08 relating to books and records is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 6.09.09 Notwithstanding anything to the contrary contained herein, books and records shall be subject to the terms and conditions set forth in this Section 6.09.09, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 6.09.10 For purposes of this Section 6.09.10, the term "books and records" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to books and records, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 6.09.11 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to books and records, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 6.09.12 In the event of any conflict between the provisions of this Section 6.09.12 and any other provision of this Agreement or any other Loan Document with respect to books and records, the provisions of this Section 6.09.12 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 6.09.12, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 6.09.13 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to books and records, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 6.09.14 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with books and records, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to books and records and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 6.09.15 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to books and records. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 6.09.16 To the extent that any provision of this Section 6.09.16 relating to books and records is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 6.10 Inspection Rights.

Section 6.10.01 Notwithstanding anything to the contrary contained herein, inspection rights shall be subject to the terms and conditions set forth in this Section 6.10.01, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 6.10.02 For purposes of this Section 6.10.02, the term "inspection rights" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to inspection rights, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 6.10.03 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to inspection rights, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 6.10.04 In the event of any conflict between the provisions of this Section 6.10.04 and any other provision of this Agreement or any other Loan Document with respect to inspection rights, the provisions of this Section 6.10.04 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 6.10.04, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 6.10.05 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to inspection rights, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 6.10.06 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with inspection rights, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to inspection rights and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 6.10.07 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to inspection rights. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this

Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 6.10.08 To the extent that any provision of this Section 6.10.08 relating to inspection rights is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 6.10.09 Notwithstanding anything to the contrary contained herein, inspection rights shall be subject to the terms and conditions set forth in this Section 6.10.09, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 6.10.10 For purposes of this Section 6.10.10, the term "inspection rights" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to inspection rights, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 6.10.11 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to inspection rights, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 6.10.12 In the event of any conflict between the provisions of this Section 6.10.12 and any other provision of this Agreement or any other Loan Document with respect to inspection rights, the provisions of this Section 6.10.12 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 6.10.12, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 6.10.13 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to inspection rights, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 6.10.14 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with inspection rights, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to inspection rights and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 6.10.15 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to inspection rights. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 6.10.16 To the extent that any provision of this Section 6.10.16 relating to inspection rights is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 6.11 Use of Proceeds.

Section 6.11.01 Notwithstanding anything to the contrary contained herein, use of proceeds shall be subject to the terms and conditions set forth in this Section 6.11.01, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 6.11.02 For purposes of this Section 6.11.02, the term "use of proceeds" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to use of proceeds, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 6.11.03 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to use of proceeds, including, without limitation, all federal, state and

local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 6.11.04 In the event of any conflict between the provisions of this Section 6.11.04 and any other provision of this Agreement or any other Loan Document with respect to use of proceeds, the provisions of this Section 6.11.04 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 6.11.04, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 6.11.05 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to use of proceeds, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 6.11.06 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with use of proceeds, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to use of proceeds and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 6.11.07 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to use of proceeds. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 6.11.08 To the extent that any provision of this Section 6.11.08 relating to use of proceeds is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the

economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 6.11.09 Notwithstanding anything to the contrary contained herein, use of proceeds shall be subject to the terms and conditions set forth in this Section 6.11.09, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 6.11.10 For purposes of this Section 6.11.10, the term "use of proceeds" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to use of proceeds, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 6.11.11 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to use of proceeds, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 6.11.12 In the event of any conflict between the provisions of this Section 6.11.12 and any other provision of this Agreement or any other Loan Document with respect to use of proceeds, the provisions of this Section 6.11.12 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 6.11.12, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 6.11.13 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to use of proceeds, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 6.11.14 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with use of proceeds, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to use of proceeds and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior

notice.

Section 6.11.15 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to use of proceeds. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 6.11.16 To the extent that any provision of this Section 6.11.16 relating to use of proceeds is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 6.12 Additional Subsidiaries.

Section 6.12.01 Notwithstanding anything to the contrary contained herein, additional subsidiaries shall be subject to the terms and conditions set forth in this Section 6.12.01, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 6.12.02 For purposes of this Section 6.12.02, the term "additional subsidiaries" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to additional subsidiaries, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 6.12.03 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to additional subsidiaries, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 6.12.04 In the event of any conflict between the provisions of this Section 6.12.04 and any other provision of this Agreement or any other Loan Document with respect to additional

subsidiaries, the provisions of this Section 6.12.04 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 6.12.04, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 6.12.05 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to additional subsidiaries, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 6.12.06 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with additional subsidiaries, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to additional subsidiaries and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 6.12.07 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to additional subsidiaries. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 6.12.08 To the extent that any provision of this Section 6.12.08 relating to additional subsidiaries is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 6.12.09 Notwithstanding anything to the contrary contained herein, additional subsidiaries shall be subject to the terms and conditions set forth in this Section 6.12.09, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior

written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 6.12.10 For purposes of this Section 6.12.10, the term "additional subsidiaries" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to additional subsidiaries, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 6.12.11 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to additional subsidiaries, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 6.12.12 In the event of any conflict between the provisions of this Section 6.12.12 and any other provision of this Agreement or any other Loan Document with respect to additional subsidiaries, the provisions of this Section 6.12.12 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 6.12.12, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 6.12.13 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to additional subsidiaries, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 6.12.14 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with additional subsidiaries, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to additional subsidiaries and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 6.12.15 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as

it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to additional subsidiaries. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 6.12.16 To the extent that any provision of this Section 6.12.16 relating to additional subsidiaries is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 6.13 Further Assurances.

Section 6.13.01 Notwithstanding anything to the contrary contained herein, further assurances shall be subject to the terms and conditions set forth in this Section 6.13.01, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 6.13.02 For purposes of this Section 6.13.02, the term "further assurances" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to further assurances, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 6.13.03 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to further assurances, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 6.13.04 In the event of any conflict between the provisions of this Section 6.13.04 and any other provision of this Agreement or any other Loan Document with respect to further assurances, the provisions of this Section 6.13.04 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 6.13.04, and shall be entitled to rely conclusively upon any certificate or other

document delivered by the Borrower in connection therewith.

Section 6.13.05 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to further assurances, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 6.13.06 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with further assurances, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to further assurances and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 6.13.07 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to further assurances. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 6.13.08 To the extent that any provision of this Section 6.13.08 relating to further assurances is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 6.13.09 Notwithstanding anything to the contrary contained herein, further assurances shall be subject to the terms and conditions set forth in this Section 6.13.09, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 6.13.10 For purposes of this Section 6.13.10, the term "further assurances" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to further assurances, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 6.13.11 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to further assurances, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 6.13.12 In the event of any conflict between the provisions of this Section 6.13.12 and any other provision of this Agreement or any other Loan Document with respect to further assurances, the provisions of this Section 6.13.12 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 6.13.12, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 6.13.13 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to further assurances, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 6.13.14 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with further assurances, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to further assurances and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 6.13.15 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to further assurances. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and

based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 6.13.16 To the extent that any provision of this Section 6.13.16 relating to further assurances is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 6.14 Anti-Corruption Laws.

Section 6.14.01 Notwithstanding anything to the contrary contained herein, anti-corruption laws shall be subject to the terms and conditions set forth in this Section 6.14.01, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 6.14.02 For purposes of this Section 6.14.02, the term "anti-corruption laws" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to anti-corruption laws, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 6.14.03 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to anti-corruption laws, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 6.14.04 In the event of any conflict between the provisions of this Section 6.14.04 and any other provision of this Agreement or any other Loan Document with respect to anti-corruption laws, the provisions of this Section 6.14.04 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 6.14.04, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 6.14.05 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the

other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to anti-corruption laws, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 6.14.06 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with anti-corruption laws, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to anti-corruption laws and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 6.14.07 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to anti-corruption laws. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 6.14.08 To the extent that any provision of this Section 6.14.08 relating to anti-corruption laws is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 6.14.09 Notwithstanding anything to the contrary contained herein, anti-corruption laws shall be subject to the terms and conditions set forth in this Section 6.14.09, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 6.14.10 For purposes of this Section 6.14.10, the term "anti-corruption laws" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to anti-corruption laws, whether now existing or

hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 6.14.11 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to anti-corruption laws, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 6.14.12 In the event of any conflict between the provisions of this Section 6.14.12 and any other provision of this Agreement or any other Loan Document with respect to anti-corruption laws, the provisions of this Section 6.14.12 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 6.14.12, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 6.14.13 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to anti-corruption laws, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 6.14.14 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with anti-corruption laws, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to anti-corruption laws and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 6.14.15 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to anti-corruption laws. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 6.14.16 To the extent that any provision of this Section 6.14.16 relating to anti-corruption laws is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 6.15 Sanctions.

Section 6.15.01 Notwithstanding anything to the contrary contained herein, sanctions shall be subject to the terms and conditions set forth in this Section 6.15.01, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 6.15.02 For purposes of this Section 6.15.02, the term "sanctions" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to sanctions, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 6.15.03 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to sanctions, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 6.15.04 In the event of any conflict between the provisions of this Section 6.15.04 and any other provision of this Agreement or any other Loan Document with respect to sanctions, the provisions of this Section 6.15.04 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 6.15.04, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 6.15.05 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to sanctions, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 6.15.06 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with sanctions, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to sanctions and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 6.15.07 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to sanctions. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 6.15.08 To the extent that any provision of this Section 6.15.08 relating to sanctions is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 6.15.09 Notwithstanding anything to the contrary contained herein, sanctions shall be subject to the terms and conditions set forth in this Section 6.15.09, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 6.15.10 For purposes of this Section 6.15.10, the term "sanctions" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to sanctions, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 6.15.11 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to sanctions, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 6.15.12 In the event of any conflict between the provisions of this Section 6.15.12 and any other provision of this Agreement or any other Loan Document with respect to sanctions, the provisions of this Section 6.15.12 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 6.15.12, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 6.15.13 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to sanctions, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 6.15.14 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with sanctions, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to sanctions and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 6.15.15 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to sanctions. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 6.15.16 To the extent that any provision of this Section 6.15.16 relating to sanctions is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 6.16 Post-Closing Obligations.

Section 6.16.01 Notwithstanding anything to the contrary contained herein, post-closing obligations shall be subject to the terms and conditions set forth in this Section 6.16.01, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 6.16.02 For purposes of this Section 6.16.02, the term "post-closing obligations" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to post-closing obligations, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 6.16.03 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to post-closing obligations, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 6.16.04 In the event of any conflict between the provisions of this Section 6.16.04 and any other provision of this Agreement or any other Loan Document with respect to post-closing obligations, the provisions of this Section 6.16.04 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 6.16.04, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 6.16.05 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to post-closing obligations, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 6.16.06 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with post-closing obligations, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to post-closing obligations and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 6.16.07 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to post-closing obligations. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 6.16.08 To the extent that any provision of this Section 6.16.08 relating to post-closing obligations is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 6.16.09 Notwithstanding anything to the contrary contained herein, post-closing obligations shall be subject to the terms and conditions set forth in this Section 6.16.09, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 6.16.10 For purposes of this Section 6.16.10, the term "post-closing obligations" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to post-closing obligations, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 6.16.11 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to post-closing obligations, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 6.16.12 In the event of any conflict between the provisions of this Section 6.16.12 and any other provision of this Agreement or any other Loan Document with respect to post-closing obligations, the provisions of this Section 6.16.12 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 6.16.12, and shall be entitled to rely conclusively upon any certificate or other

document delivered by the Borrower in connection therewith.

Section 6.16.13 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to post-closing obligations, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 6.16.14 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with post-closing obligations, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to post-closing obligations and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 6.16.15 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to post-closing obligations. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 6.16.16 To the extent that any provision of this Section 6.16.16 relating to post-closing obligations is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 6.17 Collateral Matters.

Section 6.17.01 Notwithstanding anything to the contrary contained herein, collateral matters shall be subject to the terms and conditions set forth in this Section 6.17.01, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without

such consent shall be void and of no force or effect.

Section 6.17.02 For purposes of this Section 6.17.02, the term "collateral matters" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to collateral matters, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 6.17.03 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to collateral matters, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 6.17.04 In the event of any conflict between the provisions of this Section 6.17.04 and any other provision of this Agreement or any other Loan Document with respect to collateral matters, the provisions of this Section 6.17.04 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 6.17.04, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 6.17.05 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to collateral matters, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 6.17.06 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with collateral matters, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to collateral matters and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 6.17.07 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this

Agreement with respect to collateral matters. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 6.17.08 To the extent that any provision of this Section 6.17.08 relating to collateral matters is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 6.17.09 Notwithstanding anything to the contrary contained herein, collateral matters shall be subject to the terms and conditions set forth in this Section 6.17.09, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 6.17.10 For purposes of this Section 6.17.10, the term "collateral matters" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to collateral matters, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 6.17.11 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to collateral matters, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 6.17.12 In the event of any conflict between the provisions of this Section 6.17.12 and any other provision of this Agreement or any other Loan Document with respect to collateral matters, the provisions of this Section 6.17.12 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 6.17.12, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 6.17.13 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to collateral matters, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 6.17.14 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with collateral matters, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to collateral matters and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 6.17.15 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to collateral matters. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 6.17.16 To the extent that any provision of this Section 6.17.16 relating to collateral matters is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

ARTICLE VII

NEGATIVE COVENANTS

So long as any Lender shall have any Commitment hereunder, any Loan or other Obligation hereunder shall remain unpaid or unsatisfied, or any Letter of Credit shall remain outstanding, the Borrower shall not, nor shall it permit any Restricted Subsidiary to, directly or indirectly:

Section 7.01 Liens. Create, incur, assume or suffer to exist any Lien upon any of its property, assets or revenues, whether now owned or hereafter acquired, other than the following ("Permitted Liens"): (a) Liens pursuant to any Loan Document; (b) Liens existing on the Closing Date and listed on Schedule 7.01 and any renewals or extensions thereof; (c) Liens for taxes not yet due or which are being contested in good faith and by appropriate proceedings diligently conducted, if adequate reserves with respect thereto are maintained on the books of the applicable Person in accordance with GAAP; (d) carriers', warehousemen's, mechanics', materialmen's, repairmen's or other like Liens arising in the ordinary course of business which are not overdue for a period of more than 30 days or which are being contested in good faith and by appropriate proceedings diligently conducted; (e) pledges or deposits in the ordinary course of business in connection with workers' compensation, unemployment insurance and other social security legislation; (f) deposits to secure the performance of bids, trade contracts and leases (other than Indebtedness), statutory obligations, surety bonds (other than bonds related to judgments or litigation), performance bonds and other obligations of a like nature incurred in the ordinary course of business; and (g) Liens securing Indebtedness permitted under Section 7.03.

Section 7.03 Indebtedness. Create, incur, assume or suffer to exist any Indebtedness, except: (a) Indebtedness under the Loan Documents; (b) Indebtedness outstanding on the Closing Date and listed on Schedule 7.03 and any Permitted Refinancing thereof; (c) Capitalized Lease Obligations and purchase money obligations not to exceed in the aggregate at any time outstanding \$20,000,000; (d) Indebtedness of the Borrower or any Restricted Subsidiary owing to the Borrower or any other Restricted Subsidiary; (e) Guarantees by the Borrower or any Restricted Subsidiary in respect of Indebtedness of the Borrower or any Restricted Subsidiary otherwise permitted hereunder; (f) Indebtedness in respect of Swap Contracts not incurred for speculative purposes; (g) Indebtedness representing deferred compensation to employees of the Borrower or any Restricted Subsidiary; (h) Indebtedness consisting of obligations for indemnification or the adjustment of the purchase price incurred under agreements for a Permitted Acquisition; and (i) other Indebtedness not to exceed in the aggregate at any time outstanding \$15,000,000.

Section 7.06 Restricted Payments. Declare or make, directly or indirectly, any Restricted Payment, except: (a) each Restricted Subsidiary may make Restricted Payments to the Borrower and to other Restricted Subsidiaries; (b) the Borrower and each Restricted Subsidiary

may declare and make dividend payments or other distributions payable solely in the Equity Interests of such Person; (c) the Borrower and its Restricted Subsidiaries may make Restricted Payments to pay taxes; (d) so long as no Default or Event of Default shall have occurred and be continuing or would result therefrom, and the Net Leverage Ratio (after giving pro forma effect to such Restricted Payment) shall not exceed 4.50 to 1.00, the Borrower and its Restricted Subsidiaries may make Restricted Payments in an aggregate amount not to exceed \$15,000,000 in any fiscal year; and (e) the Borrower may pay management fees to the Sponsor in accordance with the Management Agreement in an amount not to exceed \$2,000,000 per annum.

Section 7.10 Financial Covenants.

The Borrower shall not permit:

(a) Net Leverage Ratio. The Net Leverage Ratio as of the last day of any fiscal quarter of the Borrower, commencing with the fiscal quarter ending on the first fiscal quarter end date following the Closing Date, to be greater than the ratio set forth below opposite such fiscal quarter:

Fiscal Period	Maximum Net Leverage Ratio
Fiscal quarters ending Q3-2021 through Q2-2022	6.00 to 1.00
Fiscal quarters ending Q3-2022 through Q2-2023	5.75 to 1.00
Fiscal quarters ending Q3-2023 through Q2-2024	5.50 to 1.00
Fiscal quarters ending Q3-2024 through Q2-2025 (as amended by Amendment No. 3)	5.00 to 1.00
Fiscal quarters ending Q3-2025 through Q2-2026	4.50 to 1.00
Fiscal quarters ending Q3-2026 and thereafter	4.00 to 1.00

For the avoidance of doubt, the Net Leverage Ratio shall be calculated as of the last day of each fiscal quarter on a Last Twelve Months basis, using Consolidated EBITDA for the four fiscal quarters then most recently ended and Net Debt as of such last day. The Restructuring Add-Back Cap set forth in clause (e) of the definition of Consolidated EBITDA shall be applied using the correct circular resolution methodology described therein.

(b) Interest Coverage Ratio. The Interest Coverage Ratio as of the last day of any fiscal quarter of the Borrower, commencing with the fiscal quarter ending on the first fiscal quarter end date following the Closing Date, to be less than the ratio set forth below opposite such fiscal quarter:

Fiscal Period	Minimum Interest Coverage Ratio
Fiscal quarters ending Q3-2021 through Q2-2022	1.75 to 1.00
Fiscal quarters ending Q3-2022 through Q2-2023	2.00 to 1.00
Fiscal quarters ending Q3-2023 and thereafter	2.50 to 1.00

(c) Fixed Charge Coverage Ratio. The Fixed Charge Coverage Ratio as of the last day of any fiscal quarter of the Borrower, commencing with the fiscal quarter ending on the first fiscal quarter end date following the Closing Date, to be less than the ratio set forth below opposite such fiscal quarter:

Fiscal Period	Minimum Fixed Charge Coverage Ratio
Fiscal quarters ending Q3-2021 through Q2-2022	1.10 to 1.00
Fiscal quarters ending Q3-2022 and thereafter	1.20 to 1.00

(d) Minimum Consolidated EBITDA. Consolidated EBITDA for any Test Period to be less than \$95,000,000; provided that such threshold shall be adjusted as set forth in any amendment to this Agreement executed in accordance with Section 10.01.

Springing Covenant. Notwithstanding the foregoing, the Financial Covenants set forth in this Section 7.10 shall only be tested with respect to the Revolving Credit Facility if, as of the last day of any fiscal quarter, the aggregate outstanding principal amount of Revolving Credit Loans plus the aggregate face amount of outstanding Letters of Credit exceeds 40% of the aggregate Revolving Credit Commitments at such time. The Financial Covenants shall be tested with respect to the Term Loans at all times regardless of Revolving Credit utilization.

ARTICLE VII (CONTINUED)

ADDITIONAL NEGATIVE COVENANTS AND RESTRICTIONS

Section 7.01 Permitted Liens (Detailed).

Section 7.01.01 Notwithstanding anything to the contrary contained herein, permitted liens (detailed) shall be subject to the terms and conditions set forth in this Section 7.01.01, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 7.01.02 For purposes of this Section 7.01.02, the term "permitted liens (detailed)" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to permitted liens (detailed), whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 7.01.03 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to permitted liens (detailed), including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 7.01.04 In the event of any conflict between the provisions of this Section 7.01.04 and any other provision of this Agreement or any other Loan Document with respect to permitted liens (detailed), the provisions of this Section 7.01.04 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 7.01.04, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 7.01.05 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to permitted liens (detailed), and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 7.01.06 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in

connection with permitted liens (detailed), including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to permitted liens (detailed) and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 7.01.07 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to permitted liens (detailed). Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 7.01.08 To the extent that any provision of this Section 7.01.08 relating to permitted liens (detailed) is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 7.01.09 Notwithstanding anything to the contrary contained herein, permitted liens (detailed) shall be subject to the terms and conditions set forth in this Section 7.01.09, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 7.01.10 For purposes of this Section 7.01.10, the term "permitted liens (detailed)" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to permitted liens (detailed), whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 7.01.11 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to permitted liens (detailed), including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented

from time to time.

Section 7.01.12 In the event of any conflict between the provisions of this Section 7.01.12 and any other provision of this Agreement or any other Loan Document with respect to permitted liens (detailed), the provisions of this Section 7.01.12 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 7.01.12, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 7.01.13 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to permitted liens (detailed), and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 7.01.14 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with permitted liens (detailed), including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to permitted liens (detailed) and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 7.01.15 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to permitted liens (detailed). Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 7.01.16 To the extent that any provision of this Section 7.01.16 relating to permitted liens (detailed) is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 7.01.17 Notwithstanding anything to the contrary contained herein, permitted liens (detailed) shall be subject to the terms and conditions set forth in this Section 7.01.17, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 7.01.18 For purposes of this Section 7.01.18, the term "permitted liens (detailed)" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to permitted liens (detailed), whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 7.01.19 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to permitted liens (detailed), including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 7.01.20 In the event of any conflict between the provisions of this Section 7.01.20 and any other provision of this Agreement or any other Loan Document with respect to permitted liens (detailed), the provisions of this Section 7.01.20 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 7.01.20, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 7.01.01 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to permitted liens (detailed), and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 7.01.02 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with permitted liens (detailed), including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to permitted liens (detailed) and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 7.01.03 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to permitted liens (detailed). Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 7.01.04 To the extent that any provision of this Section 7.01.04 relating to permitted liens (detailed) is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 7.02 Permitted Investments (Detailed).

Section 7.02.01 Notwithstanding anything to the contrary contained herein, permitted investments (detailed) shall be subject to the terms and conditions set forth in this Section 7.02.01, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 7.02.02 For purposes of this Section 7.02.02, the term "permitted investments (detailed)" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to permitted investments (detailed), whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 7.02.03 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to permitted investments (detailed), including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 7.02.04 In the event of any conflict between the provisions of this Section 7.02.04 and any other provision of this Agreement or any other Loan Document with respect to permitted investments (detailed), the provisions of this Section 7.02.04 shall control and govern. The

Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 7.02.04, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 7.02.05 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to permitted investments (detailed), and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 7.02.06 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with permitted investments (detailed), including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to permitted investments (detailed) and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 7.02.07 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to permitted investments (detailed). Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 7.02.08 To the extent that any provision of this Section 7.02.08 relating to permitted investments (detailed) is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 7.02.09 Notwithstanding anything to the contrary contained herein, permitted investments (detailed) shall be subject to the terms and conditions set forth in this Section 7.02.09, and no Loan Party shall take any action inconsistent with the provisions of this Section

without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 7.02.10 For purposes of this Section 7.02.10, the term "permitted investments (detailed)" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to permitted investments (detailed), whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 7.02.11 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to permitted investments (detailed), including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 7.02.12 In the event of any conflict between the provisions of this Section 7.02.12 and any other provision of this Agreement or any other Loan Document with respect to permitted investments (detailed), the provisions of this Section 7.02.12 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 7.02.12, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 7.02.13 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to permitted investments (detailed), and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 7.02.14 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with permitted investments (detailed), including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to permitted investments (detailed) and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 7.02.15 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to permitted investments (detailed). Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 7.02.16 To the extent that any provision of this Section 7.02.16 relating to permitted investments (detailed) is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 7.02.17 Notwithstanding anything to the contrary contained herein, permitted investments (detailed) shall be subject to the terms and conditions set forth in this Section 7.02.17, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 7.02.18 For purposes of this Section 7.02.18, the term "permitted investments (detailed)" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to permitted investments (detailed), whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 7.02.19 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to permitted investments (detailed), including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 7.02.20 In the event of any conflict between the provisions of this Section 7.02.20 and any other provision of this Agreement or any other Loan Document with respect to permitted investments (detailed), the provisions of this Section 7.02.20 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 7.02.20, and shall be entitled to rely conclusively upon any

certificate or other document delivered by the Borrower in connection therewith.

Section 7.02.01 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to permitted investments (detailed), and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 7.02.02 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with permitted investments (detailed), including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to permitted investments (detailed) and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 7.02.03 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to permitted investments (detailed). Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 7.02.04 To the extent that any provision of this Section 7.02.04 relating to permitted investments (detailed) is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 7.03 Permitted Indebtedness (Detailed).

Section 7.03.01 Notwithstanding anything to the contrary contained herein, permitted indebtedness (detailed) shall be subject to the terms and conditions set forth in this Section 7.03.01, and no Loan Party shall take any action inconsistent with the provisions of this Section

without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 7.03.02 For purposes of this Section 7.03.02, the term "permitted indebtedness (detailed)" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to permitted indebtedness (detailed), whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 7.03.03 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to permitted indebtedness (detailed), including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 7.03.04 In the event of any conflict between the provisions of this Section 7.03.04 and any other provision of this Agreement or any other Loan Document with respect to permitted indebtedness (detailed), the provisions of this Section 7.03.04 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 7.03.04, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 7.03.05 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to permitted indebtedness (detailed), and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 7.03.06 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with permitted indebtedness (detailed), including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to permitted indebtedness (detailed) and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 7.03.07 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to permitted indebtedness (detailed). Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 7.03.08 To the extent that any provision of this Section 7.03.08 relating to permitted indebtedness (detailed) is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 7.03.09 Notwithstanding anything to the contrary contained herein, permitted indebtedness (detailed) shall be subject to the terms and conditions set forth in this Section 7.03.09, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 7.03.10 For purposes of this Section 7.03.10, the term "permitted indebtedness (detailed)" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to permitted indebtedness (detailed), whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 7.03.11 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to permitted indebtedness (detailed), including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 7.03.12 In the event of any conflict between the provisions of this Section 7.03.12 and any other provision of this Agreement or any other Loan Document with respect to permitted indebtedness (detailed), the provisions of this Section 7.03.12 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 7.03.12, and shall be entitled to rely conclusively upon any

certificate or other document delivered by the Borrower in connection therewith.

Section 7.03.13 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to permitted indebtedness (detailed), and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 7.03.14 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with permitted indebtedness (detailed), including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to permitted indebtedness (detailed) and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 7.03.15 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to permitted indebtedness (detailed). Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 7.03.16 To the extent that any provision of this Section 7.03.16 relating to permitted indebtedness (detailed) is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 7.03.17 Notwithstanding anything to the contrary contained herein, permitted indebtedness (detailed) shall be subject to the terms and conditions set forth in this Section 7.03.17, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 7.03.18 For purposes of this Section 7.03.18, the term "permitted indebtedness (detailed)" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to permitted indebtedness (detailed), whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 7.03.19 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to permitted indebtedness (detailed), including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 7.03.20 In the event of any conflict between the provisions of this Section 7.03.20 and any other provision of this Agreement or any other Loan Document with respect to permitted indebtedness (detailed), the provisions of this Section 7.03.20 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 7.03.20, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 7.03.01 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to permitted indebtedness (detailed), and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 7.03.02 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with permitted indebtedness (detailed), including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to permitted indebtedness (detailed) and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 7.03.03 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to permitted indebtedness (detailed). Each Lender also acknowledges

that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 7.03.04 To the extent that any provision of this Section 7.03.04 relating to permitted indebtedness (detailed) is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 7.04 Fundamental Changes.

Section 7.04.01 Notwithstanding anything to the contrary contained herein, fundamental changes shall be subject to the terms and conditions set forth in this Section 7.04.01, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 7.04.02 For purposes of this Section 7.04.02, the term "fundamental changes" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to fundamental changes, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 7.04.03 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to fundamental changes, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 7.04.04 In the event of any conflict between the provisions of this Section 7.04.04 and any other provision of this Agreement or any other Loan Document with respect to fundamental changes, the provisions of this Section 7.04.04 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 7.04.04, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 7.04.05 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to fundamental changes, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 7.04.06 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with fundamental changes, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to fundamental changes and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 7.04.07 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to fundamental changes. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 7.04.08 To the extent that any provision of this Section 7.04.08 relating to fundamental changes is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 7.04.09 Notwithstanding anything to the contrary contained herein, fundamental changes shall be subject to the terms and conditions set forth in this Section 7.04.09, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 7.04.10 For purposes of this Section 7.04.10, the term "fundamental changes" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the

Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to fundamental changes, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 7.04.11 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to fundamental changes, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 7.04.12 In the event of any conflict between the provisions of this Section 7.04.12 and any other provision of this Agreement or any other Loan Document with respect to fundamental changes, the provisions of this Section 7.04.12 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 7.04.12, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 7.04.13 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to fundamental changes, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 7.04.14 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with fundamental changes, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to fundamental changes and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 7.04.15 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to fundamental changes. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this

Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 7.04.16 To the extent that any provision of this Section 7.04.16 relating to fundamental changes is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 7.04.17 Notwithstanding anything to the contrary contained herein, fundamental changes shall be subject to the terms and conditions set forth in this Section 7.04.17, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 7.04.18 For purposes of this Section 7.04.18, the term "fundamental changes" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to fundamental changes, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 7.04.19 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to fundamental changes, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 7.04.20 In the event of any conflict between the provisions of this Section 7.04.20 and any other provision of this Agreement or any other Loan Document with respect to fundamental changes, the provisions of this Section 7.04.20 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 7.04.20, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 7.04.01 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to fundamental changes, and that any breach of such representations, warranties or covenants shall constitute an Event of Default

hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 7.04.02 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with fundamental changes, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to fundamental changes and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 7.04.03 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to fundamental changes. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 7.04.04 To the extent that any provision of this Section 7.04.04 relating to fundamental changes is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 7.05 Dispositions.

Section 7.05.01 Notwithstanding anything to the contrary contained herein, dispositions shall be subject to the terms and conditions set forth in this Section 7.05.01, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 7.05.02 For purposes of this Section 7.05.02, the term "dispositions" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to dispositions, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 7.05.03 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to dispositions, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 7.05.04 In the event of any conflict between the provisions of this Section 7.05.04 and any other provision of this Agreement or any other Loan Document with respect to dispositions, the provisions of this Section 7.05.04 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 7.05.04, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 7.05.05 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to dispositions, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 7.05.06 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with dispositions, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to dispositions and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 7.05.07 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to dispositions. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 7.05.08 To the extent that any provision of this Section 7.05.08 relating to dispositions is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid,

illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 7.05.09 Notwithstanding anything to the contrary contained herein, dispositions shall be subject to the terms and conditions set forth in this Section 7.05.09, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 7.05.10 For purposes of this Section 7.05.10, the term "dispositions" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to dispositions, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 7.05.11 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to dispositions, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 7.05.12 In the event of any conflict between the provisions of this Section 7.05.12 and any other provision of this Agreement or any other Loan Document with respect to dispositions, the provisions of this Section 7.05.12 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 7.05.12, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 7.05.13 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to dispositions, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 7.05.14 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with dispositions, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to dispositions and shall make such records available for inspection by the Administrative Agent and its representatives at all

reasonable times during normal business hours upon reasonable prior notice.

Section 7.05.15 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to dispositions. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 7.05.16 To the extent that any provision of this Section 7.05.16 relating to dispositions is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 7.05.17 Notwithstanding anything to the contrary contained herein, dispositions shall be subject to the terms and conditions set forth in this Section 7.05.17, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 7.05.18 For purposes of this Section 7.05.18, the term "dispositions" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to dispositions, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 7.05.19 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to dispositions, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 7.05.20 In the event of any conflict between the provisions of this Section 7.05.20 and any other provision of this Agreement or any other Loan Document with respect to dispositions, the provisions of this Section 7.05.20 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 7.05.20, and shall be entitled to rely conclusively upon any certificate or other document

delivered by the Borrower in connection therewith.

Section 7.05.01 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to dispositions, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 7.05.02 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with dispositions, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to dispositions and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 7.05.03 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to dispositions. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 7.05.04 To the extent that any provision of this Section 7.05.04 relating to dispositions is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 7.06 Restricted Payments (Detailed).

Section 7.06.01 Notwithstanding anything to the contrary contained herein, restricted payments (detailed) shall be subject to the terms and conditions set forth in this Section 7.06.01, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 7.06.02 For purposes of this Section 7.06.02, the term "restricted payments (detailed)" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to restricted payments (detailed), whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 7.06.03 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to restricted payments (detailed), including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 7.06.04 In the event of any conflict between the provisions of this Section 7.06.04 and any other provision of this Agreement or any other Loan Document with respect to restricted payments (detailed), the provisions of this Section 7.06.04 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 7.06.04, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 7.06.05 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to restricted payments (detailed), and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 7.06.06 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with restricted payments (detailed), including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to restricted payments (detailed) and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 7.06.07 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to restricted payments (detailed). Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and

based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 7.06.08 To the extent that any provision of this Section 7.06.08 relating to restricted payments (detailed) is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 7.06.09 Notwithstanding anything to the contrary contained herein, restricted payments (detailed) shall be subject to the terms and conditions set forth in this Section 7.06.09, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 7.06.10 For purposes of this Section 7.06.10, the term "restricted payments (detailed)" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to restricted payments (detailed), whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 7.06.11 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to restricted payments (detailed), including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 7.06.12 In the event of any conflict between the provisions of this Section 7.06.12 and any other provision of this Agreement or any other Loan Document with respect to restricted payments (detailed), the provisions of this Section 7.06.12 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 7.06.12, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 7.06.13 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and

covenants contained herein and therein with respect to restricted payments (detailed), and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 7.06.14 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with restricted payments (detailed), including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to restricted payments (detailed) and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 7.06.15 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to restricted payments (detailed). Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 7.06.16 To the extent that any provision of this Section 7.06.16 relating to restricted payments (detailed) is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 7.06.17 Notwithstanding anything to the contrary contained herein, restricted payments (detailed) shall be subject to the terms and conditions set forth in this Section 7.06.17, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 7.06.18 For purposes of this Section 7.06.18, the term "restricted payments (detailed)" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to restricted payments (detailed), whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note,

guaranty or other instrument.

Section 7.06.19 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to restricted payments (detailed), including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 7.06.20 In the event of any conflict between the provisions of this Section 7.06.20 and any other provision of this Agreement or any other Loan Document with respect to restricted payments (detailed), the provisions of this Section 7.06.20 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 7.06.20, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 7.06.01 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to restricted payments (detailed), and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 7.06.02 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with restricted payments (detailed), including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to restricted payments (detailed) and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 7.06.03 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to restricted payments (detailed). Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 7.06.04 To the extent that any provision of this Section 7.06.04 relating to restricted payments (detailed) is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 7.07 Change in Nature of Business.

Section 7.07.01 Notwithstanding anything to the contrary contained herein, change in nature of business shall be subject to the terms and conditions set forth in this Section 7.07.01, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 7.07.02 For purposes of this Section 7.07.02, the term "change in nature of business" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to change in nature of business, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 7.07.03 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to change in nature of business, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 7.07.04 In the event of any conflict between the provisions of this Section 7.07.04 and any other provision of this Agreement or any other Loan Document with respect to change in nature of business, the provisions of this Section 7.07.04 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 7.07.04, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 7.07.05 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to change in nature of business, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies

available to them under this Agreement, the other Loan Documents and applicable Law.

Section 7.07.06 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with change in nature of business, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to change in nature of business and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 7.07.07 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to change in nature of business. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 7.07.08 To the extent that any provision of this Section 7.07.08 relating to change in nature of business is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 7.07.09 Notwithstanding anything to the contrary contained herein, change in nature of business shall be subject to the terms and conditions set forth in this Section 7.07.09, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 7.07.10 For purposes of this Section 7.07.10, the term "change in nature of business" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to change in nature of business, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 7.07.11 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to change in nature of business, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 7.07.12 In the event of any conflict between the provisions of this Section 7.07.12 and any other provision of this Agreement or any other Loan Document with respect to change in nature of business, the provisions of this Section 7.07.12 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 7.07.12, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 7.07.13 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to change in nature of business, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 7.07.14 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with change in nature of business, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to change in nature of business and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 7.07.15 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to change in nature of business. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 7.07.16 To the extent that any provision of this Section 7.07.16 relating to change in nature of business is determined by a court of competent jurisdiction to be invalid, illegal or

unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 7.07.17 Notwithstanding anything to the contrary contained herein, change in nature of business shall be subject to the terms and conditions set forth in this Section 7.07.17, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 7.07.18 For purposes of this Section 7.07.18, the term "change in nature of business" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to change in nature of business, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 7.07.19 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to change in nature of business, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 7.07.20 In the event of any conflict between the provisions of this Section 7.07.20 and any other provision of this Agreement or any other Loan Document with respect to change in nature of business, the provisions of this Section 7.07.20 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 7.07.20, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 7.07.01 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to change in nature of business, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 7.07.02 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in

connection with change in nature of business, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to change in nature of business and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 7.07.03 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to change in nature of business. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 7.07.04 To the extent that any provision of this Section 7.07.04 relating to change in nature of business is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 7.08 Transactions with Affiliates.

Section 7.08.01 Notwithstanding anything to the contrary contained herein, transactions with affiliates shall be subject to the terms and conditions set forth in this Section 7.08.01, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 7.08.02 For purposes of this Section 7.08.02, the term "transactions with affiliates" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to transactions with affiliates, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 7.08.03 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to transactions with affiliates, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and

injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 7.08.04 In the event of any conflict between the provisions of this Section 7.08.04 and any other provision of this Agreement or any other Loan Document with respect to transactions with affiliates, the provisions of this Section 7.08.04 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 7.08.04, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 7.08.05 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to transactions with affiliates, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 7.08.06 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with transactions with affiliates, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to transactions with affiliates and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 7.08.07 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to transactions with affiliates. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 7.08.08 To the extent that any provision of this Section 7.08.08 relating to transactions with affiliates is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained

herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 7.08.09 Notwithstanding anything to the contrary contained herein, transactions with affiliates shall be subject to the terms and conditions set forth in this Section 7.08.09, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 7.08.10 For purposes of this Section 7.08.10, the term "transactions with affiliates" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to transactions with affiliates, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 7.08.11 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to transactions with affiliates, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 7.08.12 In the event of any conflict between the provisions of this Section 7.08.12 and any other provision of this Agreement or any other Loan Document with respect to transactions with affiliates, the provisions of this Section 7.08.12 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 7.08.12, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 7.08.13 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to transactions with affiliates, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 7.08.14 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with transactions with affiliates, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to transactions with

affiliates and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 7.08.15 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to transactions with affiliates. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 7.08.16 To the extent that any provision of this Section 7.08.16 relating to transactions with affiliates is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 7.08.17 Notwithstanding anything to the contrary contained herein, transactions with affiliates shall be subject to the terms and conditions set forth in this Section 7.08.17, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 7.08.18 For purposes of this Section 7.08.18, the term "transactions with affiliates" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to transactions with affiliates, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 7.08.19 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to transactions with affiliates, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 7.08.20 In the event of any conflict between the provisions of this Section 7.08.20 and any other provision of this Agreement or any other Loan Document with respect to transactions with affiliates, the provisions of this Section 7.08.20 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 7.08.20, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 7.08.01 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to transactions with affiliates, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 7.08.02 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with transactions with affiliates, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to transactions with affiliates and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 7.08.03 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to transactions with affiliates. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 7.08.04 To the extent that any provision of this Section 7.08.04 relating to transactions with affiliates is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 7.09 Burdensome Agreements.

Section 7.09.01 Notwithstanding anything to the contrary contained herein, burdensome agreements shall be subject to the terms and conditions set forth in this Section 7.09.01, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 7.09.02 For purposes of this Section 7.09.02, the term "burdensome agreements" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to burdensome agreements, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 7.09.03 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to burdensome agreements, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 7.09.04 In the event of any conflict between the provisions of this Section 7.09.04 and any other provision of this Agreement or any other Loan Document with respect to burdensome agreements, the provisions of this Section 7.09.04 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 7.09.04, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 7.09.05 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to burdensome agreements, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 7.09.06 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with burdensome agreements, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to burdensome agreements and shall make such records available for inspection by the Administrative Agent

and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 7.09.07 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to burdensome agreements. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 7.09.08 To the extent that any provision of this Section 7.09.08 relating to burdensome agreements is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 7.09.09 Notwithstanding anything to the contrary contained herein, burdensome agreements shall be subject to the terms and conditions set forth in this Section 7.09.09, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 7.09.10 For purposes of this Section 7.09.10, the term "burdensome agreements" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to burdensome agreements, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 7.09.11 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to burdensome agreements, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 7.09.12 In the event of any conflict between the provisions of this Section 7.09.12 and any other provision of this Agreement or any other Loan Document with respect to burdensome

agreements, the provisions of this Section 7.09.12 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 7.09.12, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 7.09.13 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to burdensome agreements, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 7.09.14 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with burdensome agreements, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to burdensome agreements and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 7.09.15 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to burdensome agreements. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 7.09.16 To the extent that any provision of this Section 7.09.16 relating to burdensome agreements is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 7.09.17 Notwithstanding anything to the contrary contained herein, burdensome agreements shall be subject to the terms and conditions set forth in this Section 7.09.17, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior

written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 7.09.18 For purposes of this Section 7.09.18, the term "burdensome agreements" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to burdensome agreements, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 7.09.19 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to burdensome agreements, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 7.09.20 In the event of any conflict between the provisions of this Section 7.09.20 and any other provision of this Agreement or any other Loan Document with respect to burdensome agreements, the provisions of this Section 7.09.20 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 7.09.20, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 7.09.01 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to burdensome agreements, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 7.09.02 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with burdensome agreements, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to burdensome agreements and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 7.09.03 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as

it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to burdensome agreements. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 7.09.04 To the extent that any provision of this Section 7.09.04 relating to burdensome agreements is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 7.11 Amendments of Certain Documents.

Section 7.11.01 Notwithstanding anything to the contrary contained herein, amendments of certain documents shall be subject to the terms and conditions set forth in this Section 7.11.01, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 7.11.02 For purposes of this Section 7.11.02, the term "amendments of certain documents" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to amendments of certain documents, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 7.11.03 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to amendments of certain documents, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 7.11.04 In the event of any conflict between the provisions of this Section 7.11.04 and any other provision of this Agreement or any other Loan Document with respect to amendments of certain documents, the provisions of this Section 7.11.04 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 7.11.04, and shall be entitled to rely conclusively upon any

certificate or other document delivered by the Borrower in connection therewith.

Section 7.11.05 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to amendments of certain documents, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 7.11.06 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with amendments of certain documents, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to amendments of certain documents and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 7.11.07 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to amendments of certain documents. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 7.11.08 To the extent that any provision of this Section 7.11.08 relating to amendments of certain documents is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 7.11.09 Notwithstanding anything to the contrary contained herein, amendments of certain documents shall be subject to the terms and conditions set forth in this Section 7.11.09, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 7.11.10 For purposes of this Section 7.11.10, the term "amendments of certain documents" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to amendments of certain documents, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 7.11.11 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to amendments of certain documents, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 7.11.12 In the event of any conflict between the provisions of this Section 7.11.12 and any other provision of this Agreement or any other Loan Document with respect to amendments of certain documents, the provisions of this Section 7.11.12 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 7.11.12, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 7.11.13 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to amendments of certain documents, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 7.11.14 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with amendments of certain documents, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to amendments of certain documents and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 7.11.15 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to amendments of certain documents. Each Lender also acknowledges

that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 7.11.16 To the extent that any provision of this Section 7.11.16 relating to amendments of certain documents is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 7.11.17 Notwithstanding anything to the contrary contained herein, amendments of certain documents shall be subject to the terms and conditions set forth in this Section 7.11.17, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 7.11.18 For purposes of this Section 7.11.18, the term "amendments of certain documents" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to amendments of certain documents, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 7.11.19 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to amendments of certain documents, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 7.11.20 In the event of any conflict between the provisions of this Section 7.11.20 and any other provision of this Agreement or any other Loan Document with respect to amendments of certain documents, the provisions of this Section 7.11.20 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 7.11.20, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 7.11.01 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the

other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to amendments of certain documents, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 7.11.02 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with amendments of certain documents, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to amendments of certain documents and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 7.11.03 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to amendments of certain documents. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 7.11.04 To the extent that any provision of this Section 7.11.04 relating to amendments of certain documents is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 7.12 Accounting Changes.

Section 7.12.01 Notwithstanding anything to the contrary contained herein, accounting changes shall be subject to the terms and conditions set forth in this Section 7.12.01, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 7.12.02 For purposes of this Section 7.12.02, the term "accounting changes" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to accounting changes, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 7.12.03 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to accounting changes, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 7.12.04 In the event of any conflict between the provisions of this Section 7.12.04 and any other provision of this Agreement or any other Loan Document with respect to accounting changes, the provisions of this Section 7.12.04 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 7.12.04, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 7.12.05 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to accounting changes, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 7.12.06 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with accounting changes, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to accounting changes and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 7.12.07 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to accounting changes. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and

based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 7.12.08 To the extent that any provision of this Section 7.12.08 relating to accounting changes is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 7.12.09 Notwithstanding anything to the contrary contained herein, accounting changes shall be subject to the terms and conditions set forth in this Section 7.12.09, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 7.12.10 For purposes of this Section 7.12.10, the term "accounting changes" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to accounting changes, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 7.12.11 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to accounting changes, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 7.12.12 In the event of any conflict between the provisions of this Section 7.12.12 and any other provision of this Agreement or any other Loan Document with respect to accounting changes, the provisions of this Section 7.12.12 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 7.12.12, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 7.12.13 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and

covenants contained herein and therein with respect to accounting changes, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 7.12.14 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with accounting changes, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to accounting changes and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 7.12.15 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to accounting changes. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 7.12.16 To the extent that any provision of this Section 7.12.16 relating to accounting changes is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 7.12.17 Notwithstanding anything to the contrary contained herein, accounting changes shall be subject to the terms and conditions set forth in this Section 7.12.17, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 7.12.18 For purposes of this Section 7.12.18, the term "accounting changes" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to accounting changes, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or

other instrument.

Section 7.12.19 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to accounting changes, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 7.12.20 In the event of any conflict between the provisions of this Section 7.12.20 and any other provision of this Agreement or any other Loan Document with respect to accounting changes, the provisions of this Section 7.12.20 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 7.12.20, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 7.12.01 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to accounting changes, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 7.12.02 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with accounting changes, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to accounting changes and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 7.12.03 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to accounting changes. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 7.12.04 To the extent that any provision of this Section 7.12.04 relating to accounting changes is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 7.13 Prepayments of Indebtedness.

Section 7.13.01 Notwithstanding anything to the contrary contained herein, prepayments of indebtedness shall be subject to the terms and conditions set forth in this Section 7.13.01, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 7.13.02 For purposes of this Section 7.13.02, the term "prepayments of indebtedness" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to prepayments of indebtedness, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 7.13.03 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to prepayments of indebtedness, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 7.13.04 In the event of any conflict between the provisions of this Section 7.13.04 and any other provision of this Agreement or any other Loan Document with respect to prepayments of indebtedness, the provisions of this Section 7.13.04 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 7.13.04, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 7.13.05 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to prepayments of indebtedness, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies

available to them under this Agreement, the other Loan Documents and applicable Law.

Section 7.13.06 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with prepayments of indebtedness, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to prepayments of indebtedness and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 7.13.07 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to prepayments of indebtedness. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 7.13.08 To the extent that any provision of this Section 7.13.08 relating to prepayments of indebtedness is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 7.13.09 Notwithstanding anything to the contrary contained herein, prepayments of indebtedness shall be subject to the terms and conditions set forth in this Section 7.13.09, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 7.13.10 For purposes of this Section 7.13.10, the term "prepayments of indebtedness" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to prepayments of indebtedness, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 7.13.11 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to prepayments of indebtedness, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 7.13.12 In the event of any conflict between the provisions of this Section 7.13.12 and any other provision of this Agreement or any other Loan Document with respect to prepayments of indebtedness, the provisions of this Section 7.13.12 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 7.13.12, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 7.13.13 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to prepayments of indebtedness, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 7.13.14 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with prepayments of indebtedness, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to prepayments of indebtedness and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 7.13.15 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to prepayments of indebtedness. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 7.13.16 To the extent that any provision of this Section 7.13.16 relating to prepayments of indebtedness is determined by a court of competent jurisdiction to be invalid, illegal or

unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 7.13.17 Notwithstanding anything to the contrary contained herein, prepayments of indebtedness shall be subject to the terms and conditions set forth in this Section 7.13.17, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 7.13.18 For purposes of this Section 7.13.18, the term "prepayments of indebtedness" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to prepayments of indebtedness, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 7.13.19 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to prepayments of indebtedness, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 7.13.20 In the event of any conflict between the provisions of this Section 7.13.20 and any other provision of this Agreement or any other Loan Document with respect to prepayments of indebtedness, the provisions of this Section 7.13.20 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 7.13.20, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 7.13.01 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to prepayments of indebtedness, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 7.13.02 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in

connection with prepayments of indebtedness, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to prepayments of indebtedness and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 7.13.03 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to prepayments of indebtedness. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 7.13.04 To the extent that any provision of this Section 7.13.04 relating to prepayments of indebtedness is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 7.14 Limitations on Holdings.

Section 7.14.01 Notwithstanding anything to the contrary contained herein, limitations on holdings shall be subject to the terms and conditions set forth in this Section 7.14.01, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 7.14.02 For purposes of this Section 7.14.02, the term "limitations on holdings" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to limitations on holdings, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 7.14.03 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to limitations on holdings, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and

injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 7.14.04 In the event of any conflict between the provisions of this Section 7.14.04 and any other provision of this Agreement or any other Loan Document with respect to limitations on holdings, the provisions of this Section 7.14.04 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 7.14.04, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 7.14.05 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to limitations on holdings, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 7.14.06 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with limitations on holdings, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to limitations on holdings and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 7.14.07 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to limitations on holdings. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 7.14.08 To the extent that any provision of this Section 7.14.08 relating to limitations on holdings is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the

economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 7.14.09 Notwithstanding anything to the contrary contained herein, limitations on holdings shall be subject to the terms and conditions set forth in this Section 7.14.09, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 7.14.10 For purposes of this Section 7.14.10, the term "limitations on holdings" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to limitations on holdings, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 7.14.11 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to limitations on holdings, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 7.14.12 In the event of any conflict between the provisions of this Section 7.14.12 and any other provision of this Agreement or any other Loan Document with respect to limitations on holdings, the provisions of this Section 7.14.12 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 7.14.12, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 7.14.13 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to limitations on holdings, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 7.14.14 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with limitations on holdings, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to limitations on

holdings and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 7.14.15 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to limitations on holdings. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 7.14.16 To the extent that any provision of this Section 7.14.16 relating to limitations on holdings is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 7.14.17 Notwithstanding anything to the contrary contained herein, limitations on holdings shall be subject to the terms and conditions set forth in this Section 7.14.17, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 7.14.18 For purposes of this Section 7.14.18, the term "limitations on holdings" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to limitations on holdings, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 7.14.19 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to limitations on holdings, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 7.14.20 In the event of any conflict between the provisions of this Section 7.14.20 and any other provision of this Agreement or any other Loan Document with respect to limitations on holdings, the provisions of this Section 7.14.20 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 7.14.20, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 7.14.01 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to limitations on holdings, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 7.14.02 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with limitations on holdings, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to limitations on holdings and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 7.14.03 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to limitations on holdings. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 7.14.04 To the extent that any provision of this Section 7.14.04 relating to limitations on holdings is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

ARTICLE VIII

EVENTS OF DEFAULT AND REMEDIES

Section 8.01 Events of Default. Any of the following shall constitute an Event of Default:

(a) Non-Payment. The Borrower or any other Loan Party fails to pay (i) when and as required to be paid herein, any amount of principal of any Loan or any L/C Borrowing, or (ii) within five Business Days after the same becomes due, any interest on any Loan or on any L/C Borrowing, or any fee due hereunder, or (iii) within ten Business Days after the same becomes due, any other amount payable hereunder or under any other Loan Document.

(b) Specific Covenants. Any Loan Party fails to perform or observe any term, covenant or agreement contained in any of Section 6.03(a), Section 6.05(a) (solely with respect to the Borrower) or Article 7 (subject to, in the case of the covenants contained in Section 7.10, the provisions of Section 8.04).

(c) Other Defaults. Any Loan Party fails to perform or observe any other covenant or agreement (not specified in Section 8.01(a) or (b) above) contained in any Loan Document on its part to be performed or observed and such failure continues for 30 days after notice thereof by the Administrative Agent to the Borrower; provided that failure to deliver a Compliance Certificate by the deadline specified in Section 6.02(a) shall constitute an immediate Event of Default without any cure period.

(d) Representations and Warranties. Any representation, warranty, certification or statement of fact made or deemed made by or on behalf of the Borrower or any other Loan Party herein, in any other Loan Document, or in any document delivered in connection herewith or therewith shall be incorrect or misleading in any material respect when made or deemed made. For the avoidance of doubt, any material misrepresentation in a Compliance Certificate, including any incorrect calculation of any Financial Covenant or any unsupported exclusion of Indebtedness from Total Indebtedness, shall constitute an Event of Default under this clause (d).

(e) Cross-Default. Any Loan Party or any Restricted Subsidiary (i) fails to make any payment beyond the applicable grace period with respect thereto, if any, in respect of any Indebtedness (other than Indebtedness hereunder) having an aggregate outstanding principal amount of not less than \$10,000,000, or (ii) fails to observe or perform any other agreement or condition relating to any such Indebtedness, the effect of which default or other event is to cause such Indebtedness to become due prior to its stated maturity.

(f) Insolvency Proceedings. The Borrower or any Restricted Subsidiary institutes or consents to the institution of any proceeding under any Debtor Relief Law, or makes an assignment for the benefit of creditors; or applies for or consents to the appointment of any

receiver, trustee, custodian, conservator, liquidator, rehabilitator or similar officer for it or for all or any material part of its property; or any such proceeding is instituted without the consent of such Person and continues undismissed or unstayed for 60 calendar days.

(g) Inability to Pay Debts. The Borrower or any Restricted Subsidiary becomes unable or admits in writing its inability or fails generally to pay its debts as they become due.

(h) Judgments. There is entered against the Borrower or any Restricted Subsidiary one or more final judgments or orders for the payment of money in an aggregate amount exceeding \$10,000,000 (to the extent not covered by independent third-party insurance as to which the insurer does not dispute coverage), and the same shall remain unsatisfied, unvacated and unstayed pending appeal for a period of 30 days after the entry thereof.

(i) ERISA. An ERISA Event occurs with respect to a Pension Plan or Multiemployer Plan which has resulted or could reasonably be expected to result in liability of the Borrower under Title IV of ERISA to the Pension Plan, Multiemployer Plan or the PBGC in an aggregate amount in excess of \$10,000,000.

(j) Change of Control. There occurs any Change of Control.

(k) Invalidity of Loan Documents. Any material provision of any Loan Document, at any time after its execution and delivery and for any reason other than as expressly permitted hereunder or thereunder, ceases to be in full force and effect; or any Loan Party contests in writing the validity or enforceability of any provision of any Loan Document.

Section 8.02 Remedies upon Event of Default. If any Event of Default occurs and is continuing, the Administrative Agent shall, at the request of, or may, with the consent of, the Required Lenders, take any or all of the following actions: (a) declare the Commitment of each Lender to make Loans and any obligation of the L/C Issuer to make L/C Credit Extensions to be terminated; (b) declare the unpaid principal amount of all outstanding Loans, all interest accrued and unpaid thereon, and all other amounts owing or payable hereunder or under any other Loan Document to be immediately due and payable, without presentment, demand, protest or other notice of any kind; and (c) exercise on behalf of itself and the Lenders all rights and remedies available to it and the Lenders under the Loan Documents or applicable Law.

Section 8.04 Equity Cure. (a) Notwithstanding anything to the contrary contained in Section 8.01, but subject to Sections 8.04(b) and (c), for the purpose of determining whether an Event of Default has occurred under any covenant set forth in Section 7.10 as of any date, the Borrower may apply the Net Cash Proceeds of any Permitted Equity Issuance (a "Cure Amount") received by the Borrower during the applicable fiscal quarter or on or prior to the tenth Business Day after the date on which financial statements are required to be delivered with respect to such fiscal quarter pursuant to Section 6.01(b) to increase Consolidated EBITDA for the Test Period ending on the last day of such fiscal quarter; provided that (i) such Cure Amount shall be no greater than the amount required to cure any Event of Default under Section 7.10 as of such date, (ii) the

Cure Amount shall be deemed to be Consolidated EBITDA solely for purposes of determining compliance with Section 7.10 and shall not be included in Consolidated EBITDA for any other purpose, and (iii) there shall be no more than two Cure Amounts applied in any period of four consecutive fiscal quarters and no more than four Cure Amounts applied during the term of this Agreement.

(b) The Borrower shall not be permitted to exercise the equity cure right set forth in Section 8.04(a) unless the Borrower delivers written notice to the Administrative Agent of its intent to exercise such right no later than the date on which the applicable Compliance Certificate is required to be delivered pursuant to Section 6.02(a).

ARTICLE IX

ADMINISTRATIVE AGENT AND OTHER AGENTS

Section 9.01 Appointment and Authority. Each of the Lenders hereby irrevocably appoints LendCo Private Credit Fund II LP to act on its behalf as the Administrative Agent hereunder and under the other Loan Documents and authorizes the Administrative Agent to take such actions on its behalf and to exercise such powers as are delegated to the Administrative Agent by the terms hereof or thereof, together with such actions and powers as are reasonably incidental thereto.

Section 9.03 Exculpatory Provisions. The Administrative Agent shall not have any duties or obligations except those expressly set forth herein and in the other Loan Documents. Without limiting the generality of the foregoing, the Administrative Agent: (a) shall not be subject to any fiduciary or other implied duties, regardless of whether a Default has occurred and is continuing; (b) shall not have any duty to take any discretionary action or exercise any discretionary powers, except discretionary rights and powers expressly contemplated hereby or by the other Loan Documents that the Administrative Agent is required to exercise as directed in writing by the Required Lenders; and (c) shall not, except as expressly set forth herein and in the other Loan Documents, have any duty to disclose, and shall not be liable for the failure to disclose, any information relating to the Borrower or any of its Affiliates that is communicated to or obtained by the Person serving as the Administrative Agent or any of its Affiliates in any capacity.

ARTICLE X

MISCELLANEOUS

Section 10.01 Amendments, Etc. No amendment or waiver of any provision of this Agreement or any other Loan Document, and no consent to any departure by the Borrower or any other Loan Party therefrom, shall be effective unless in writing signed by the Required Lenders and the Borrower or the applicable Loan Party, as the case may be, and acknowledged by the Administrative Agent; provided that no such amendment, waiver or consent shall: (a) extend or increase the Commitment of any Lender without the written consent of such Lender; (b) postpone any date fixed by this Agreement or any other Loan Document for any payment of principal, interest, fees or other amounts due to the Lenders (or any of them) hereunder or under any other Loan Document without the written consent of each Lender directly affected thereby; (c) reduce the principal of, or the rate of interest specified herein on, any Loan or L/C Borrowing, or any fees or other amounts payable hereunder or under any other Loan Document without the written consent of each Lender directly affected thereby; (d) change Section 2.13 or the definition of 'Required Lenders' or any other provision hereof specifying the number or percentage of Lenders required to amend, waive or otherwise modify any rights hereunder or make any determination or grant any consent hereunder, without the written consent of each Lender; or (e) release all or substantially all of the Collateral in any transaction or series of related transactions without the written consent of each Lender.

Section 10.07 Successors and Assigns. (a) The provisions of this Agreement shall be binding upon and inure to the benefit of the parties hereto and their respective successors and assigns permitted hereby, except that (i) the Borrower may not assign or otherwise transfer any of its rights or obligations hereunder without the prior written consent of each Lender (and any attempted assignment or transfer by the Borrower without such consent shall be null and void) and (ii) no Lender may assign or otherwise transfer its rights or obligations hereunder except in accordance with this Section.

Section 10.08 Confidentiality. Each of the Administrative Agent and the Lenders agrees to maintain the confidentiality of the Information (as defined below), except that Information may be disclosed (a) to its Affiliates and to its and its Affiliates' respective partners, directors, officers, employees, agents, advisors and other representatives (it being understood that the Persons to whom such disclosure is made will be informed of the confidential nature of such Information and instructed to keep such Information confidential); (b) to the extent requested by any regulatory authority purporting to have jurisdiction over it; (c) to the extent required by applicable Laws or regulations or by any subpoena or similar legal process; (d) to any other party hereto; (e) in connection with the exercise of any remedies hereunder or under any other Loan Document or any action or proceeding relating to this Agreement or any other Loan Document or the enforcement of rights hereunder or thereunder; (f) subject to an agreement containing provisions

substantially the same as those of this Section, to any assignee of or Participant in, or any prospective assignee of or Participant in, any of its rights or obligations under this Agreement.

Section 10.15 GOVERNING LAW. THIS AGREEMENT AND THE OTHER LOAN DOCUMENTS AND ANY CLAIMS, CONTROVERSY, DISPUTE OR CAUSE OF ACTION (WHETHER IN CONTRACT OR TORT OR OTHERWISE) BASED UPON, ARISING OUT OF OR RELATING TO THIS AGREEMENT OR ANY OTHER LOAN DOCUMENT AND THE TRANSACTIONS CONTEMPLATED HEREBY AND THEREBY SHALL BE GOVERNED BY, AND CONSTRUED IN ACCORDANCE WITH, THE LAW OF THE STATE OF NEW YORK.

Section 10.16 WAIVER OF RIGHT TO TRIAL BY JURY. EACH PARTY HERETO HEREBY IRREVOCABLY WAIVES, TO THE FULLEST EXTENT PERMITTED BY APPLICABLE LAW, ANY RIGHT IT MAY HAVE TO A TRIAL BY JURY IN ANY LEGAL PROCEEDING DIRECTLY OR INDIRECTLY ARISING OUT OF OR RELATING TO THIS AGREEMENT OR ANY OTHER LOAN DOCUMENT OR THE TRANSACTIONS CONTEMPLATED HEREBY OR THEREBY (WHETHER BASED ON CONTRACT, TORT OR ANY OTHER THEORY).

ARTICLE IX (CONTINUED)

ADMINISTRATIVE AGENT PROVISIONS (DETAILED)

Section 9.02 Rights as a Lender.

Section 9.02.01 Notwithstanding anything to the contrary contained herein, rights as a lender shall be subject to the terms and conditions set forth in this Section 9.02.01, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 9.02.02 For purposes of this Section 9.02.02, the term "rights as a lender" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to rights as a lender, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 9.02.03 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to rights as a lender, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 9.02.04 In the event of any conflict between the provisions of this Section 9.02.04 and any other provision of this Agreement or any other Loan Document with respect to rights as a lender, the provisions of this Section 9.02.04 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 9.02.04, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 9.02.05 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to rights as a lender, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 9.02.06 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in

connection with rights as a lender, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to rights as a lender and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 9.02.07 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to rights as a lender. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 9.02.08 To the extent that any provision of this Section 9.02.08 relating to rights as a lender is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 9.02.09 Notwithstanding anything to the contrary contained herein, rights as a lender shall be subject to the terms and conditions set forth in this Section 9.02.09, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 9.02.10 For purposes of this Section 9.02.10, the term "rights as a lender" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to rights as a lender, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 9.02.11 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to rights as a lender, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to

time.

Section 9.02.12 In the event of any conflict between the provisions of this Section 9.02.12 and any other provision of this Agreement or any other Loan Document with respect to rights as a lender, the provisions of this Section 9.02.12 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 9.02.12, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 9.02.13 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to rights as a lender, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 9.02.14 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with rights as a lender, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to rights as a lender and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 9.02.15 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to rights as a lender. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 9.02.16 To the extent that any provision of this Section 9.02.16 relating to rights as a lender is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 9.03 Exculpatory Provisions (Detailed).

Section 9.03.01 Notwithstanding anything to the contrary contained herein, exculpatory provisions (detailed) shall be subject to the terms and conditions set forth in this Section 9.03.01, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 9.03.02 For purposes of this Section 9.03.02, the term "exculpatory provisions (detailed)" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to exculpatory provisions (detailed), whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 9.03.03 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to exculpatory provisions (detailed), including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 9.03.04 In the event of any conflict between the provisions of this Section 9.03.04 and any other provision of this Agreement or any other Loan Document with respect to exculpatory provisions (detailed), the provisions of this Section 9.03.04 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 9.03.04, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 9.03.05 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to exculpatory provisions (detailed), and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 9.03.06 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with exculpatory provisions (detailed), including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to

exculpatory provisions (detailed) and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 9.03.07 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to exculpatory provisions (detailed). Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 9.03.08 To the extent that any provision of this Section 9.03.08 relating to exculpatory provisions (detailed) is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 9.03.09 Notwithstanding anything to the contrary contained herein, exculpatory provisions (detailed) shall be subject to the terms and conditions set forth in this Section 9.03.09, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 9.03.10 For purposes of this Section 9.03.10, the term "exculpatory provisions (detailed)" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to exculpatory provisions (detailed), whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 9.03.11 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to exculpatory provisions (detailed), including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 9.03.12 In the event of any conflict between the provisions of this Section 9.03.12 and any other provision of this Agreement or any other Loan Document with respect to exculpatory provisions (detailed), the provisions of this Section 9.03.12 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 9.03.12, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 9.03.13 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to exculpatory provisions (detailed), and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 9.03.14 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with exculpatory provisions (detailed), including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to exculpatory provisions (detailed) and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 9.03.15 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to exculpatory provisions (detailed). Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 9.03.16 To the extent that any provision of this Section 9.03.16 relating to exculpatory provisions (detailed) is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 9.04 Reliance by Administrative Agent.

Section 9.04.01 Notwithstanding anything to the contrary contained herein, reliance by administrative agent shall be subject to the terms and conditions set forth in this Section 9.04.01, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 9.04.02 For purposes of this Section 9.04.02, the term "reliance by administrative agent" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to reliance by administrative agent, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 9.04.03 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to reliance by administrative agent, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 9.04.04 In the event of any conflict between the provisions of this Section 9.04.04 and any other provision of this Agreement or any other Loan Document with respect to reliance by administrative agent, the provisions of this Section 9.04.04 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 9.04.04, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 9.04.05 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to reliance by administrative agent, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 9.04.06 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with reliance by administrative agent, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to reliance by administrative agent and shall make such records available for inspection by the

Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 9.04.07 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to reliance by administrative agent. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 9.04.08 To the extent that any provision of this Section 9.04.08 relating to reliance by administrative agent is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 9.04.09 Notwithstanding anything to the contrary contained herein, reliance by administrative agent shall be subject to the terms and conditions set forth in this Section 9.04.09, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 9.04.10 For purposes of this Section 9.04.10, the term "reliance by administrative agent" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to reliance by administrative agent, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 9.04.11 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to reliance by administrative agent, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 9.04.12 In the event of any conflict between the provisions of this Section 9.04.12 and any other provision of this Agreement or any other Loan Document with respect to reliance by

administrative agent, the provisions of this Section 9.04.12 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 9.04.12, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 9.04.13 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to reliance by administrative agent, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 9.04.14 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with reliance by administrative agent, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to reliance by administrative agent and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 9.04.15 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to reliance by administrative agent. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 9.04.16 To the extent that any provision of this Section 9.04.16 relating to reliance by administrative agent is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 9.05 Delegation of Duties.

Section 9.05.01 Notwithstanding anything to the contrary contained herein, delegation of duties shall be subject to the terms and conditions set forth in this Section 9.05.01, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 9.05.02 For purposes of this Section 9.05.02, the term "delegation of duties" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to delegation of duties, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 9.05.03 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to delegation of duties, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 9.05.04 In the event of any conflict between the provisions of this Section 9.05.04 and any other provision of this Agreement or any other Loan Document with respect to delegation of duties, the provisions of this Section 9.05.04 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 9.05.04, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 9.05.05 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to delegation of duties, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 9.05.06 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with delegation of duties, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to delegation of duties and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 9.05.07 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to delegation of duties. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 9.05.08 To the extent that any provision of this Section 9.05.08 relating to delegation of duties is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 9.05.09 Notwithstanding anything to the contrary contained herein, delegation of duties shall be subject to the terms and conditions set forth in this Section 9.05.09, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 9.05.10 For purposes of this Section 9.05.10, the term "delegation of duties" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to delegation of duties, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 9.05.11 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to delegation of duties, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 9.05.12 In the event of any conflict between the provisions of this Section 9.05.12 and any other provision of this Agreement or any other Loan Document with respect to delegation of duties, the provisions of this Section 9.05.12 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 9.05.12, and shall be entitled to rely conclusively upon any certificate or other document

delivered by the Borrower in connection therewith.

Section 9.05.13 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to delegation of duties, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 9.05.14 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with delegation of duties, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to delegation of duties and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 9.05.15 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to delegation of duties. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 9.05.16 To the extent that any provision of this Section 9.05.16 relating to delegation of duties is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 9.06 Resignation of Administrative Agent.

Section 9.06.01 Notwithstanding anything to the contrary contained herein, resignation of administrative agent shall be subject to the terms and conditions set forth in this Section 9.06.01, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action

taken without such consent shall be void and of no force or effect.

Section 9.06.02 For purposes of this Section 9.06.02, the term "resignation of administrative agent" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to resignation of administrative agent, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 9.06.03 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to resignation of administrative agent, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 9.06.04 In the event of any conflict between the provisions of this Section 9.06.04 and any other provision of this Agreement or any other Loan Document with respect to resignation of administrative agent, the provisions of this Section 9.06.04 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 9.06.04, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 9.06.05 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to resignation of administrative agent, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 9.06.06 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with resignation of administrative agent, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to resignation of administrative agent and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 9.06.07 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as

it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to resignation of administrative agent. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 9.06.08 To the extent that any provision of this Section 9.06.08 relating to resignation of administrative agent is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 9.06.09 Notwithstanding anything to the contrary contained herein, resignation of administrative agent shall be subject to the terms and conditions set forth in this Section 9.06.09, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 9.06.10 For purposes of this Section 9.06.10, the term "resignation of administrative agent" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to resignation of administrative agent, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 9.06.11 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to resignation of administrative agent, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 9.06.12 In the event of any conflict between the provisions of this Section 9.06.12 and any other provision of this Agreement or any other Loan Document with respect to resignation of administrative agent, the provisions of this Section 9.06.12 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 9.06.12, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 9.06.13 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to resignation of administrative agent, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 9.06.14 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with resignation of administrative agent, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to resignation of administrative agent and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 9.06.15 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to resignation of administrative agent. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 9.06.16 To the extent that any provision of this Section 9.06.16 relating to resignation of administrative agent is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 9.07 Non-Reliance on Administrative Agent.

Section 9.07.01 Notwithstanding anything to the contrary contained herein, non-reliance on administrative agent shall be subject to the terms and conditions set forth in this Section 9.07.01, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action

taken without such consent shall be void and of no force or effect.

Section 9.07.02 For purposes of this Section 9.07.02, the term "non-reliance on administrative agent" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to non-reliance on administrative agent, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 9.07.03 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to non-reliance on administrative agent, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 9.07.04 In the event of any conflict between the provisions of this Section 9.07.04 and any other provision of this Agreement or any other Loan Document with respect to non-reliance on administrative agent, the provisions of this Section 9.07.04 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 9.07.04, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 9.07.05 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to non-reliance on administrative agent, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 9.07.06 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with non-reliance on administrative agent, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to non-reliance on administrative agent and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 9.07.07 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as

it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to non-reliance on administrative agent. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 9.07.08 To the extent that any provision of this Section 9.07.08 relating to non-reliance on administrative agent is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 9.07.09 Notwithstanding anything to the contrary contained herein, non-reliance on administrative agent shall be subject to the terms and conditions set forth in this Section 9.07.09, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 9.07.10 For purposes of this Section 9.07.10, the term "non-reliance on administrative agent" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to non-reliance on administrative agent, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 9.07.11 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to non-reliance on administrative agent, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 9.07.12 In the event of any conflict between the provisions of this Section 9.07.12 and any other provision of this Agreement or any other Loan Document with respect to non-reliance on administrative agent, the provisions of this Section 9.07.12 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 9.07.12, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 9.07.13 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to non-reliance on administrative agent, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 9.07.14 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with non-reliance on administrative agent, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to non-reliance on administrative agent and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 9.07.15 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to non-reliance on administrative agent. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 9.07.16 To the extent that any provision of this Section 9.07.16 relating to non-reliance on administrative agent is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 9.08 Collateral and Guaranty Matters.

Section 9.08.01 Notwithstanding anything to the contrary contained herein, collateral and guaranty matters shall be subject to the terms and conditions set forth in this Section 9.08.01, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action

taken without such consent shall be void and of no force or effect.

Section 9.08.02 For purposes of this Section 9.08.02, the term "collateral and guaranty matters" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to collateral and guaranty matters, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 9.08.03 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to collateral and guaranty matters, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 9.08.04 In the event of any conflict between the provisions of this Section 9.08.04 and any other provision of this Agreement or any other Loan Document with respect to collateral and guaranty matters, the provisions of this Section 9.08.04 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 9.08.04, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 9.08.05 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to collateral and guaranty matters, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 9.08.06 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with collateral and guaranty matters, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to collateral and guaranty matters and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 9.08.07 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this

Agreement with respect to collateral and guaranty matters. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 9.08.08 To the extent that any provision of this Section 9.08.08 relating to collateral and guaranty matters is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 9.08.09 Notwithstanding anything to the contrary contained herein, collateral and guaranty matters shall be subject to the terms and conditions set forth in this Section 9.08.09, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 9.08.10 For purposes of this Section 9.08.10, the term "collateral and guaranty matters" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to collateral and guaranty matters, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 9.08.11 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to collateral and guaranty matters, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 9.08.12 In the event of any conflict between the provisions of this Section 9.08.12 and any other provision of this Agreement or any other Loan Document with respect to collateral and guaranty matters, the provisions of this Section 9.08.12 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 9.08.12, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 9.08.13 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to collateral and guaranty matters, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 9.08.14 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with collateral and guaranty matters, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to collateral and guaranty matters and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 9.08.15 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to collateral and guaranty matters. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 9.08.16 To the extent that any provision of this Section 9.08.16 relating to collateral and guaranty matters is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 9.11 Withholding Tax.

Section 9.11.01 Notwithstanding anything to the contrary contained herein, withholding tax shall be subject to the terms and conditions set forth in this Section 9.11.01, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 9.11.02 For purposes of this Section 9.11.02, the term "withholding tax" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to withholding tax, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 9.11.03 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to withholding tax, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 9.11.04 In the event of any conflict between the provisions of this Section 9.11.04 and any other provision of this Agreement or any other Loan Document with respect to withholding tax, the provisions of this Section 9.11.04 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 9.11.04, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 9.11.05 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to withholding tax, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 9.11.06 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with withholding tax, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to withholding tax and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 9.11.07 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to withholding tax. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this

Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 9.11.08 To the extent that any provision of this Section 9.11.08 relating to withholding tax is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 9.11.09 Notwithstanding anything to the contrary contained herein, withholding tax shall be subject to the terms and conditions set forth in this Section 9.11.09, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 9.11.10 For purposes of this Section 9.11.10, the term "withholding tax" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to withholding tax, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 9.11.11 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to withholding tax, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 9.11.12 In the event of any conflict between the provisions of this Section 9.11.12 and any other provision of this Agreement or any other Loan Document with respect to withholding tax, the provisions of this Section 9.11.12 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 9.11.12, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 9.11.13 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to withholding tax, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 9.11.14 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with withholding tax, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to withholding tax and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 9.11.15 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to withholding tax. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 9.11.16 To the extent that any provision of this Section 9.11.16 relating to withholding tax is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 9.13 Right to Indemnity.

Section 9.13.01 Notwithstanding anything to the contrary contained herein, right to indemnity shall be subject to the terms and conditions set forth in this Section 9.13.01, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 9.13.02 For purposes of this Section 9.13.02, the term "right to indemnity" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to right to indemnity, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 9.13.03 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to right to indemnity, including, without limitation, all federal, state

and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 9.13.04 In the event of any conflict between the provisions of this Section 9.13.04 and any other provision of this Agreement or any other Loan Document with respect to right to indemnity, the provisions of this Section 9.13.04 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 9.13.04, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 9.13.05 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to right to indemnity, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 9.13.06 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with right to indemnity, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to right to indemnity and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 9.13.07 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to right to indemnity. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 9.13.08 To the extent that any provision of this Section 9.13.08 relating to right to indemnity is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such

invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 9.13.09 Notwithstanding anything to the contrary contained herein, right to indemnity shall be subject to the terms and conditions set forth in this Section 9.13.09, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 9.13.10 For purposes of this Section 9.13.10, the term "right to indemnity" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to right to indemnity, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 9.13.11 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to right to indemnity, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 9.13.12 In the event of any conflict between the provisions of this Section 9.13.12 and any other provision of this Agreement or any other Loan Document with respect to right to indemnity, the provisions of this Section 9.13.12 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 9.13.12, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 9.13.13 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to right to indemnity, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 9.13.14 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with right to indemnity, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to right to indemnity

and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 9.13.15 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to right to indemnity. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 9.13.16 To the extent that any provision of this Section 9.13.16 relating to right to indemnity is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

ARTICLE X (CONTINUED)

MISCELLANEOUS PROVISIONS (DETAILED)

Section 10.02 Notices and Other Communications.

Section 10.02.01 Notwithstanding anything to the contrary contained herein, notices and other communications shall be subject to the terms and conditions set forth in this Section 10.02.01, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 10.02.02 For purposes of this Section 10.02.02, the term "notices and other communications" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to notices and other communications, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 10.02.03 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to notices and other communications, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 10.02.04 In the event of any conflict between the provisions of this Section 10.02.04 and any other provision of this Agreement or any other Loan Document with respect to notices and other communications, the provisions of this Section 10.02.04 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 10.02.04, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 10.02.05 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to notices and other communications, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 10.02.06 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with notices and other communications, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to notices and other communications and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 10.02.07 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to notices and other communications. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 10.02.08 To the extent that any provision of this Section 10.02.08 relating to notices and other communications is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 10.02.09 Notwithstanding anything to the contrary contained herein, notices and other communications shall be subject to the terms and conditions set forth in this Section 10.02.09, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 10.02.10 For purposes of this Section 10.02.10, the term "notices and other communications" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to notices and other communications, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 10.02.11 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to notices and other communications, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments,

decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 10.02.12 In the event of any conflict between the provisions of this Section 10.02.12 and any other provision of this Agreement or any other Loan Document with respect to notices and other communications, the provisions of this Section 10.02.12 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 10.02.12, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 10.02.13 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to notices and other communications, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 10.02.14 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with notices and other communications, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to notices and other communications and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 10.02.15 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to notices and other communications. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 10.02.16 To the extent that any provision of this Section 10.02.16 relating to notices and other communications is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall

be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 10.03 No Waiver; Cumulative Remedies.

Section 10.03.01 Notwithstanding anything to the contrary contained herein, no waiver; cumulative remedies shall be subject to the terms and conditions set forth in this Section 10.03.01, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 10.03.02 For purposes of this Section 10.03.02, the term "no waiver; cumulative remedies" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to no waiver; cumulative remedies, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 10.03.03 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to no waiver; cumulative remedies, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 10.03.04 In the event of any conflict between the provisions of this Section 10.03.04 and any other provision of this Agreement or any other Loan Document with respect to no waiver; cumulative remedies, the provisions of this Section 10.03.04 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 10.03.04, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 10.03.05 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to no waiver; cumulative remedies, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 10.03.06 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with no waiver; cumulative remedies, including, without limitation, copies of all

agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to no waiver; cumulative remedies and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 10.03.07 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to no waiver; cumulative remedies. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 10.03.08 To the extent that any provision of this Section 10.03.08 relating to no waiver; cumulative remedies is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 10.03.09 Notwithstanding anything to the contrary contained herein, no waiver; cumulative remedies shall be subject to the terms and conditions set forth in this Section 10.03.09, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 10.03.10 For purposes of this Section 10.03.10, the term "no waiver; cumulative remedies" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to no waiver; cumulative remedies, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 10.03.11 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to no waiver; cumulative remedies, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 10.03.12 In the event of any conflict between the provisions of this Section 10.03.12 and any other provision of this Agreement or any other Loan Document with respect to no waiver; cumulative remedies, the provisions of this Section 10.03.12 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 10.03.12, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 10.03.13 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to no waiver; cumulative remedies, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 10.03.14 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with no waiver; cumulative remedies, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to no waiver; cumulative remedies and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 10.03.15 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to no waiver; cumulative remedies. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 10.03.16 To the extent that any provision of this Section 10.03.16 relating to no waiver; cumulative remedies is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 10.04 Attorney Costs and Expenses.

Section 10.04.01 Notwithstanding anything to the contrary contained herein, attorney costs and expenses shall be subject to the terms and conditions set forth in this Section 10.04.01, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 10.04.02 For purposes of this Section 10.04.02, the term "attorney costs and expenses" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to attorney costs and expenses, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 10.04.03 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to attorney costs and expenses, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 10.04.04 In the event of any conflict between the provisions of this Section 10.04.04 and any other provision of this Agreement or any other Loan Document with respect to attorney costs and expenses, the provisions of this Section 10.04.04 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 10.04.04, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 10.04.05 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to attorney costs and expenses, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 10.04.06 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with attorney costs and expenses, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to attorney costs and expenses and shall make such records available for inspection by the

Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 10.04.07 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to attorney costs and expenses. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 10.04.08 To the extent that any provision of this Section 10.04.08 relating to attorney costs and expenses is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 10.04.09 Notwithstanding anything to the contrary contained herein, attorney costs and expenses shall be subject to the terms and conditions set forth in this Section 10.04.09, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 10.04.10 For purposes of this Section 10.04.10, the term "attorney costs and expenses" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to attorney costs and expenses, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 10.04.11 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to attorney costs and expenses, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 10.04.12 In the event of any conflict between the provisions of this Section 10.04.12 and any other provision of this Agreement or any other Loan Document with respect to attorney costs

and expenses, the provisions of this Section 10.04.12 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 10.04.12, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 10.04.13 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to attorney costs and expenses, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 10.04.14 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with attorney costs and expenses, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to attorney costs and expenses and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 10.04.15 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to attorney costs and expenses. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 10.04.16 To the extent that any provision of this Section 10.04.16 relating to attorney costs and expenses is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 10.05 Indemnification by the Borrower.

Section 10.05.01 Notwithstanding anything to the contrary contained herein, indemnification by the borrower shall be subject to the terms and conditions set forth in this Section 10.05.01, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 10.05.02 For purposes of this Section 10.05.02, the term "indemnification by the borrower" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to indemnification by the borrower, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 10.05.03 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to indemnification by the borrower, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 10.05.04 In the event of any conflict between the provisions of this Section 10.05.04 and any other provision of this Agreement or any other Loan Document with respect to indemnification by the borrower, the provisions of this Section 10.05.04 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 10.05.04, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 10.05.05 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to indemnification by the borrower, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 10.05.06 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with indemnification by the borrower, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to indemnification by the borrower and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 10.05.07 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to indemnification by the borrower. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 10.05.08 To the extent that any provision of this Section 10.05.08 relating to indemnification by the borrower is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 10.05.09 Notwithstanding anything to the contrary contained herein, indemnification by the borrower shall be subject to the terms and conditions set forth in this Section 10.05.09, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 10.05.10 For purposes of this Section 10.05.10, the term "indemnification by the borrower" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to indemnification by the borrower, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 10.05.11 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to indemnification by the borrower, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 10.05.12 In the event of any conflict between the provisions of this Section 10.05.12 and any other provision of this Agreement or any other Loan Document with respect to indemnification by the borrower, the provisions of this Section 10.05.12 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 10.05.12, and shall be entitled to rely conclusively upon any

certificate or other document delivered by the Borrower in connection therewith.

Section 10.05.13 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to indemnification by the borrower, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 10.05.14 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with indemnification by the borrower, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to indemnification by the borrower and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 10.05.15 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to indemnification by the borrower. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 10.05.16 To the extent that any provision of this Section 10.05.16 relating to indemnification by the borrower is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 10.06 Marshalling; Payments Set Aside.

Section 10.06.01 Notwithstanding anything to the contrary contained herein, marshalling; payments set aside shall be subject to the terms and conditions set forth in this Section 10.06.01, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action

taken without such consent shall be void and of no force or effect.

Section 10.06.02 For purposes of this Section 10.06.02, the term "marshalling; payments set aside" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to marshalling; payments set aside, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 10.06.03 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to marshalling; payments set aside, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 10.06.04 In the event of any conflict between the provisions of this Section 10.06.04 and any other provision of this Agreement or any other Loan Document with respect to marshalling; payments set aside, the provisions of this Section 10.06.04 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 10.06.04, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 10.06.05 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to marshalling; payments set aside, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 10.06.06 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with marshalling; payments set aside, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to marshalling; payments set aside and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 10.06.07 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and

information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to marshalling; payments set aside. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 10.06.08 To the extent that any provision of this Section 10.06.08 relating to marshalling; payments set aside is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 10.06.09 Notwithstanding anything to the contrary contained herein, marshalling; payments set aside shall be subject to the terms and conditions set forth in this Section 10.06.09, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 10.06.10 For purposes of this Section 10.06.10, the term "marshalling; payments set aside" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to marshalling; payments set aside, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 10.06.11 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to marshalling; payments set aside, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 10.06.12 In the event of any conflict between the provisions of this Section 10.06.12 and any other provision of this Agreement or any other Loan Document with respect to marshalling; payments set aside, the provisions of this Section 10.06.12 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 10.06.12, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 10.06.13 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to marshalling; payments set aside, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 10.06.14 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with marshalling; payments set aside, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to marshalling; payments set aside and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 10.06.15 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to marshalling; payments set aside. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 10.06.16 To the extent that any provision of this Section 10.06.16 relating to marshalling; payments set aside is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 10.07 Successors and Assigns (Detailed).

Section 10.07.01 Notwithstanding anything to the contrary contained herein, successors and assigns (detailed) shall be subject to the terms and conditions set forth in this Section 10.07.01, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action

taken without such consent shall be void and of no force or effect.

Section 10.07.02 For purposes of this Section 10.07.02, the term "successors and assigns (detailed)" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to successors and assigns (detailed), whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 10.07.03 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to successors and assigns (detailed), including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 10.07.04 In the event of any conflict between the provisions of this Section 10.07.04 and any other provision of this Agreement or any other Loan Document with respect to successors and assigns (detailed), the provisions of this Section 10.07.04 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 10.07.04, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 10.07.05 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to successors and assigns (detailed), and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 10.07.06 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with successors and assigns (detailed), including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to successors and assigns (detailed) and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 10.07.07 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and

information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to successors and assigns (detailed). Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 10.07.08 To the extent that any provision of this Section 10.07.08 relating to successors and assigns (detailed) is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 10.07.09 Notwithstanding anything to the contrary contained herein, successors and assigns (detailed) shall be subject to the terms and conditions set forth in this Section 10.07.09, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 10.07.10 For purposes of this Section 10.07.10, the term "successors and assigns (detailed)" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to successors and assigns (detailed), whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 10.07.11 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to successors and assigns (detailed), including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 10.07.12 In the event of any conflict between the provisions of this Section 10.07.12 and any other provision of this Agreement or any other Loan Document with respect to successors and assigns (detailed), the provisions of this Section 10.07.12 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 10.07.12, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 10.07.13 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to successors and assigns (detailed), and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 10.07.14 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with successors and assigns (detailed), including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to successors and assigns (detailed) and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 10.07.15 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to successors and assigns (detailed). Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 10.07.16 To the extent that any provision of this Section 10.07.16 relating to successors and assigns (detailed) is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 10.08 Confidentiality (Detailed).

Section 10.08.01 Notwithstanding anything to the contrary contained herein, confidentiality (detailed) shall be subject to the terms and conditions set forth in this Section 10.08.01, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken

without such consent shall be void and of no force or effect.

Section 10.08.02 For purposes of this Section 10.08.02, the term "confidentiality (detailed)" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to confidentiality (detailed), whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 10.08.03 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to confidentiality (detailed), including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 10.08.04 In the event of any conflict between the provisions of this Section 10.08.04 and any other provision of this Agreement or any other Loan Document with respect to confidentiality (detailed), the provisions of this Section 10.08.04 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 10.08.04, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 10.08.05 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to confidentiality (detailed), and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 10.08.06 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with confidentiality (detailed), including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to confidentiality (detailed) and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 10.08.07 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into

this Agreement with respect to confidentiality (detailed). Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 10.08.08 To the extent that any provision of this Section 10.08.08 relating to confidentiality (detailed) is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 10.08.09 Notwithstanding anything to the contrary contained herein, confidentiality (detailed) shall be subject to the terms and conditions set forth in this Section 10.08.09, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 10.08.10 For purposes of this Section 10.08.10, the term "confidentiality (detailed)" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to confidentiality (detailed), whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 10.08.11 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to confidentiality (detailed), including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 10.08.12 In the event of any conflict between the provisions of this Section 10.08.12 and any other provision of this Agreement or any other Loan Document with respect to confidentiality (detailed), the provisions of this Section 10.08.12 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 10.08.12, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 10.08.13 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to confidentiality (detailed), and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 10.08.14 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with confidentiality (detailed), including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to confidentiality (detailed) and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 10.08.15 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to confidentiality (detailed). Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 10.08.16 To the extent that any provision of this Section 10.08.16 relating to confidentiality (detailed) is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 10.09 Setoff.

Section 10.09.01 Notwithstanding anything to the contrary contained herein, setoff shall be subject to the terms and conditions set forth in this Section 10.09.01, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 10.09.02 For purposes of this Section 10.09.02, the term "setoff" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to setoff, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 10.09.03 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to setoff, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 10.09.04 In the event of any conflict between the provisions of this Section 10.09.04 and any other provision of this Agreement or any other Loan Document with respect to setoff, the provisions of this Section 10.09.04 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 10.09.04, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 10.09.05 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to setoff, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 10.09.06 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with setoff, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to setoff and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 10.09.07 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to setoff. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 10.09.08 To the extent that any provision of this Section 10.09.08 relating to setoff is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 10.09.09 Notwithstanding anything to the contrary contained herein, setoff shall be subject to the terms and conditions set forth in this Section 10.09.09, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 10.09.10 For purposes of this Section 10.09.10, the term "setoff" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to setoff, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 10.09.11 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to setoff, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 10.09.12 In the event of any conflict between the provisions of this Section 10.09.12 and any other provision of this Agreement or any other Loan Document with respect to setoff, the provisions of this Section 10.09.12 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 10.09.12, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 10.09.13 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to setoff, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 10.09.14 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in

connection with setoff, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to setoff and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 10.09.15 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to setoff. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 10.09.16 To the extent that any provision of this Section 10.09.16 relating to setoff is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 10.10 Interest Rate Limitation.

Section 10.10.01 Notwithstanding anything to the contrary contained herein, interest rate limitation shall be subject to the terms and conditions set forth in this Section 10.10.01, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 10.10.02 For purposes of this Section 10.10.02, the term "interest rate limitation" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to interest rate limitation, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 10.10.03 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to interest rate limitation, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented

from time to time.

Section 10.10.04 In the event of any conflict between the provisions of this Section 10.10.04 and any other provision of this Agreement or any other Loan Document with respect to interest rate limitation, the provisions of this Section 10.10.04 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 10.10.04, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 10.10.05 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to interest rate limitation, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 10.10.06 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with interest rate limitation, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to interest rate limitation and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 10.10.07 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to interest rate limitation. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 10.10.08 To the extent that any provision of this Section 10.10.08 relating to interest rate limitation is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 10.10.09 Notwithstanding anything to the contrary contained herein, interest rate limitation shall be subject to the terms and conditions set forth in this Section 10.10.09, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 10.10.10 For purposes of this Section 10.10.10, the term "interest rate limitation" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to interest rate limitation, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 10.10.11 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to interest rate limitation, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 10.10.12 In the event of any conflict between the provisions of this Section 10.10.12 and any other provision of this Agreement or any other Loan Document with respect to interest rate limitation, the provisions of this Section 10.10.12 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 10.10.12, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 10.10.13 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to interest rate limitation, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 10.10.14 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with interest rate limitation, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to interest rate limitation and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 10.10.15 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to interest rate limitation. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 10.10.16 To the extent that any provision of this Section 10.10.16 relating to interest rate limitation is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 10.11 Counterparts.

Section 10.11.01 Notwithstanding anything to the contrary contained herein, counterparts shall be subject to the terms and conditions set forth in this Section 10.11.01, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 10.11.02 For purposes of this Section 10.11.02, the term "counterparts" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to counterparts, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 10.11.03 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to counterparts, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 10.11.04 In the event of any conflict between the provisions of this Section 10.11.04 and any other provision of this Agreement or any other Loan Document with respect to counterparts, the provisions of this Section 10.11.04 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section

10.11.04, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 10.11.05 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to counterparts, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 10.11.06 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with counterparts, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to counterparts and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 10.11.07 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to counterparts. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 10.11.08 To the extent that any provision of this Section 10.11.08 relating to counterparts is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 10.11.09 Notwithstanding anything to the contrary contained herein, counterparts shall be subject to the terms and conditions set forth in this Section 10.11.09, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 10.11.10 For purposes of this Section 10.11.10, the term "counterparts" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to counterparts, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 10.11.11 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to counterparts, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 10.11.12 In the event of any conflict between the provisions of this Section 10.11.12 and any other provision of this Agreement or any other Loan Document with respect to counterparts, the provisions of this Section 10.11.12 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 10.11.12, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 10.11.13 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to counterparts, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 10.11.14 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with counterparts, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to counterparts and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 10.11.15 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to counterparts. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this

Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 10.11.16 To the extent that any provision of this Section 10.11.16 relating to counterparts is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 10.12 Integration.

Section 10.12.01 Notwithstanding anything to the contrary contained herein, integration shall be subject to the terms and conditions set forth in this Section 10.12.01, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 10.12.02 For purposes of this Section 10.12.02, the term "integration" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to integration, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 10.12.03 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to integration, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 10.12.04 In the event of any conflict between the provisions of this Section 10.12.04 and any other provision of this Agreement or any other Loan Document with respect to integration, the provisions of this Section 10.12.04 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 10.12.04, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 10.12.05 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to integration, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them

under this Agreement, the other Loan Documents and applicable Law.

Section 10.12.06 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with integration, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to integration and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 10.12.07 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to integration. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 10.12.08 To the extent that any provision of this Section 10.12.08 relating to integration is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 10.12.09 Notwithstanding anything to the contrary contained herein, integration shall be subject to the terms and conditions set forth in this Section 10.12.09, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 10.12.10 For purposes of this Section 10.12.10, the term "integration" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to integration, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 10.12.11 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to integration, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any

Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 10.12.12 In the event of any conflict between the provisions of this Section 10.12.12 and any other provision of this Agreement or any other Loan Document with respect to integration, the provisions of this Section 10.12.12 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 10.12.12, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 10.12.13 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to integration, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 10.12.14 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with integration, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to integration and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 10.12.15 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to integration. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 10.12.16 To the extent that any provision of this Section 10.12.16 relating to integration is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 10.13 Survival of Representations.

Section 10.13.01 Notwithstanding anything to the contrary contained herein, survival of representations shall be subject to the terms and conditions set forth in this Section 10.13.01, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 10.13.02 For purposes of this Section 10.13.02, the term "survival of representations" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to survival of representations, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 10.13.03 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to survival of representations, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 10.13.04 In the event of any conflict between the provisions of this Section 10.13.04 and any other provision of this Agreement or any other Loan Document with respect to survival of representations, the provisions of this Section 10.13.04 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 10.13.04, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 10.13.05 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to survival of representations, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 10.13.06 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with survival of representations, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to survival of representations and shall make such records available for inspection by the

Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 10.13.07 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to survival of representations. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 10.13.08 To the extent that any provision of this Section 10.13.08 relating to survival of representations is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 10.13.09 Notwithstanding anything to the contrary contained herein, survival of representations shall be subject to the terms and conditions set forth in this Section 10.13.09, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 10.13.10 For purposes of this Section 10.13.10, the term "survival of representations" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to survival of representations, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 10.13.11 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to survival of representations, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 10.13.12 In the event of any conflict between the provisions of this Section 10.13.12 and any other provision of this Agreement or any other Loan Document with respect to survival of

representations, the provisions of this Section 10.13.12 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 10.13.12, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 10.13.13 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to survival of representations, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 10.13.14 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with survival of representations, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to survival of representations and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 10.13.15 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to survival of representations. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 10.13.16 To the extent that any provision of this Section 10.13.16 relating to survival of representations is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 10.14 Severability.

Section 10.14.01 Notwithstanding anything to the contrary contained herein, severability shall be subject to the terms and conditions set forth in this Section 10.14.01, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 10.14.02 For purposes of this Section 10.14.02, the term "severability" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to severability, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 10.14.03 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to severability, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 10.14.04 In the event of any conflict between the provisions of this Section 10.14.04 and any other provision of this Agreement or any other Loan Document with respect to severability, the provisions of this Section 10.14.04 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 10.14.04, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 10.14.05 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to severability, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 10.14.06 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with severability, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to severability and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 10.14.07 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and

information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to severability. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 10.14.08 To the extent that any provision of this Section 10.14.08 relating to severability is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 10.14.09 Notwithstanding anything to the contrary contained herein, severability shall be subject to the terms and conditions set forth in this Section 10.14.09, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 10.14.10 For purposes of this Section 10.14.10, the term "severability" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to severability, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 10.14.11 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to severability, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 10.14.12 In the event of any conflict between the provisions of this Section 10.14.12 and any other provision of this Agreement or any other Loan Document with respect to severability, the provisions of this Section 10.14.12 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 10.14.12, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 10.14.13 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and

the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to severability, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 10.14.14 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with severability, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to severability and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 10.14.15 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to severability. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 10.14.16 To the extent that any provision of this Section 10.14.16 relating to severability is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

EXHIBIT D**FORM OF COMPLIANCE CERTIFICATE**

[Date]

LendCo Private Credit Fund II LP

as Administrative Agent

Re: Compliance Certificate pursuant to Section 6.02(a) of the Credit Agreement dated as of March 15, 2021 (as amended, the "Credit Agreement") among FirstBank Corp, as Borrower, the Lenders party thereto, and LendCo Private Credit Fund II LP, as Administrative Agent.

Ladies and Gentlemen:

The undersigned Responsible Officer hereby certifies as of the date hereof that he/she is the _____ of the Borrower, and that, as such, he/she is authorized to execute and deliver this Certificate to the Administrative Agent on the behalf of the Borrower, and that:

1. Attached hereto as Schedule 1 is a calculation of Consolidated EBITDA for the Test Period ended [DATE], showing each component thereof and each add-back claimed, with a reference to the specific clause of the definition of Consolidated EBITDA in Section 1.01 of the Credit Agreement that permits each such add-back, and the amount of each applicable cap (including the Restructuring Add-Back Cap, which has been calculated using the circular resolution methodology described in clause (e) of such definition).
2. Attached hereto as Schedule 2 is a calculation of Total Indebtedness as of [DATE], identifying each item of Indebtedness included therein and each item claimed as Excluded Indebtedness (with a reference to the specific clause of the definition of Excluded Indebtedness in Section 1.01 of the Credit Agreement that permits such exclusion and, in the case of clause (e) of such definition, a copy of the applicable Excluded Indebtedness Consent).
3. Attached hereto as Schedule 3 is a calculation of Net Debt as of [DATE], showing Unrestricted Cash and the application of the Cash Cap.
4. Attached hereto as Schedule 4 is a calculation of each Financial Covenant set forth in Section 7.10 of the Credit Agreement, showing the computed ratio or amount and the applicable threshold.
5. [Check one:] ☐ The Borrower is in compliance with all Financial Covenants set forth in Section 7.10 of the Credit Agreement as of the date hereof. ☐ The Borrower is NOT in compliance with the following Financial Covenants as of the date hereof: [specify]. The

Borrower [is / is not] exercising its equity cure right pursuant to Section 8.04 of the Credit Agreement.

6. No Default or Event of Default has occurred and is continuing as of the date hereof [except as follows: _____].

FIRSTBANK CORP

as Borrower

By: _____

Name: _____

Title: _____

Date: _____

EXHIBIT A

FORM OF COMMITTED LOAN NOTICE

Section A.01 Notwithstanding anything to the contrary contained herein, committed loan notice shall be subject to the terms and conditions set forth in this Section A.01, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section A.02 For purposes of this Section A.02, the term "committed loan notice" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to committed loan notice, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section A.03 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to committed loan notice, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section A.04 In the event of any conflict between the provisions of this Section A.04 and any other provision of this Agreement or any other Loan Document with respect to committed loan notice, the provisions of this Section A.04 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section A.04, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section A.05 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to committed loan notice, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section A.06 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with committed loan notice, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto.

The Borrower shall maintain complete and accurate records with respect to committed loan notice and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section A.07 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to committed loan notice. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section A.08 To the extent that any provision of this Section A.08 relating to committed loan notice is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section A.09 Notwithstanding anything to the contrary contained herein, committed loan notice shall be subject to the terms and conditions set forth in this Section A.09, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section A.10 For purposes of this Section A.10, the term "committed loan notice" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to committed loan notice, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section A.11 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to committed loan notice, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section A.12 In the event of any conflict between the provisions of this Section A.12 and any other provision of this Agreement or any other Loan Document with respect to committed loan notice, the provisions of this Section A.12 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section A.12, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section A.13 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to committed loan notice, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section A.14 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with committed loan notice, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to committed loan notice and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section A.15 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to committed loan notice. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section A.16 To the extent that any provision of this Section A.16 relating to committed loan notice is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section A.17 Notwithstanding anything to the contrary contained herein, committed loan notice shall be subject to the terms and conditions set forth in this Section A.17, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section A.18 For purposes of this Section A.18, the term "committed loan notice" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to committed loan notice, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section A.19 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to committed loan notice, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section A.20 In the event of any conflict between the provisions of this Section A.20 and any other provision of this Agreement or any other Loan Document with respect to committed loan notice, the provisions of this Section A.20 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section A.20, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section A.01 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to committed loan notice, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section A.02 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with committed loan notice, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to committed loan notice and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section A.03 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to committed loan notice. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section A.04 To the extent that any provision of this Section A.04 relating to committed loan notice is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

EXHIBIT B

FORM OF SWING LINE LOAN NOTICE

Section B.01 Notwithstanding anything to the contrary contained herein, swing line loan notice shall be subject to the terms and conditions set forth in this Section B.01, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section B.02 For purposes of this Section B.02, the term "swing line loan notice" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to swing line loan notice, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section B.03 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to swing line loan notice, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section B.04 In the event of any conflict between the provisions of this Section B.04 and any other provision of this Agreement or any other Loan Document with respect to swing line loan notice, the provisions of this Section B.04 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section B.04, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section B.05 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to swing line loan notice, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section B.06 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with swing line loan notice, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto.

The Borrower shall maintain complete and accurate records with respect to swing line loan notice and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section B.07 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to swing line loan notice. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section B.08 To the extent that any provision of this Section B.08 relating to swing line loan notice is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section B.09 Notwithstanding anything to the contrary contained herein, swing line loan notice shall be subject to the terms and conditions set forth in this Section B.09, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section B.10 For purposes of this Section B.10, the term "swing line loan notice" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to swing line loan notice, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section B.11 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to swing line loan notice, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section B.12 In the event of any conflict between the provisions of this Section B.12 and any other provision of this Agreement or any other Loan Document with respect to swing line loan notice, the provisions of this Section B.12 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section B.12, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section B.13 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to swing line loan notice, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section B.14 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with swing line loan notice, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to swing line loan notice and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section B.15 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to swing line loan notice. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section B.16 To the extent that any provision of this Section B.16 relating to swing line loan notice is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section B.17 Notwithstanding anything to the contrary contained herein, swing line loan notice shall be subject to the terms and conditions set forth in this Section B.17, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section B.18 For purposes of this Section B.18, the term "swing line loan notice" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to swing line loan notice, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section B.19 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to swing line loan notice, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section B.20 In the event of any conflict between the provisions of this Section B.20 and any other provision of this Agreement or any other Loan Document with respect to swing line loan notice, the provisions of this Section B.20 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section B.20, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section B.01 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to swing line loan notice, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section B.02 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with swing line loan notice, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to swing line loan notice and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section B.03 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to swing line loan notice. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section B.04 To the extent that any provision of this Section B.04 relating to swing line loan notice is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

EXHIBIT C-1

FORM OF TERM NOTE

Section 1.01 Notwithstanding anything to the contrary contained herein, term note shall be subject to the terms and conditions set forth in this Section 1.01, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 1.02 For purposes of this Section 1.02, the term "term note" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to term note, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 1.03 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to term note, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 1.04 In the event of any conflict between the provisions of this Section 1.04 and any other provision of this Agreement or any other Loan Document with respect to term note, the provisions of this Section 1.04 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 1.04, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 1.05 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to term note, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 1.06 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with term note, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to term note and shall make such records available for inspection by the Administrative Agent and its representatives at all

reasonable times during normal business hours upon reasonable prior notice.

Section 1.07 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to term note. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 1.08 To the extent that any provision of this Section 1.08 relating to term note is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 1.09 Notwithstanding anything to the contrary contained herein, term note shall be subject to the terms and conditions set forth in this Section 1.09, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 1.10 For purposes of this Section 1.10, the term "term note" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to term note, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 1.11 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to term note, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 1.12 In the event of any conflict between the provisions of this Section 1.12 and any other provision of this Agreement or any other Loan Document with respect to term note, the provisions of this Section 1.12 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 1.12, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 1.13 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to term note, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 1.14 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with term note, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to term note and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 1.15 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to term note. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 1.16 To the extent that any provision of this Section 1.16 relating to term note is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 1.17 Notwithstanding anything to the contrary contained herein, term note shall be subject to the terms and conditions set forth in this Section 1.17, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 1.18 For purposes of this Section 1.18, the term "term note" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to term note, whether now existing or hereafter arising, and whether or

not such obligations are evidenced by any note, guaranty or other instrument.

Section 1.19 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to term note, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 1.20 In the event of any conflict between the provisions of this Section 1.20 and any other provision of this Agreement or any other Loan Document with respect to term note, the provisions of this Section 1.20 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 1.20, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 1.01 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to term note, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 1.02 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with term note, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to term note and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 1.03 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to term note. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 1.04 To the extent that any provision of this Section 1.04 relating to term note is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any

other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

EXHIBIT C-2

FORM OF REVOLVING CREDIT NOTE

Section 2.01 Notwithstanding anything to the contrary contained herein, revolving credit note shall be subject to the terms and conditions set forth in this Section 2.01, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 2.02 For purposes of this Section 2.02, the term "revolving credit note" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to revolving credit note, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 2.03 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to revolving credit note, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 2.04 In the event of any conflict between the provisions of this Section 2.04 and any other provision of this Agreement or any other Loan Document with respect to revolving credit note, the provisions of this Section 2.04 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 2.04, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 2.05 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to revolving credit note, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 2.06 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with revolving credit note, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto.

The Borrower shall maintain complete and accurate records with respect to revolving credit note and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 2.07 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to revolving credit note. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 2.08 To the extent that any provision of this Section 2.08 relating to revolving credit note is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 2.09 Notwithstanding anything to the contrary contained herein, revolving credit note shall be subject to the terms and conditions set forth in this Section 2.09, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 2.10 For purposes of this Section 2.10, the term "revolving credit note" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to revolving credit note, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 2.11 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to revolving credit note, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 2.12 In the event of any conflict between the provisions of this Section 2.12 and any other provision of this Agreement or any other Loan Document with respect to revolving credit note, the provisions of this Section 2.12 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 2.12, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 2.13 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to revolving credit note, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 2.14 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with revolving credit note, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to revolving credit note and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 2.15 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to revolving credit note. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 2.16 To the extent that any provision of this Section 2.16 relating to revolving credit note is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section 2.17 Notwithstanding anything to the contrary contained herein, revolving credit note shall be subject to the terms and conditions set forth in this Section 2.17, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section 2.18 For purposes of this Section 2.18, the term "revolving credit note" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to revolving credit note, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section 2.19 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to revolving credit note, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section 2.20 In the event of any conflict between the provisions of this Section 2.20 and any other provision of this Agreement or any other Loan Document with respect to revolving credit note, the provisions of this Section 2.20 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section 2.20, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section 2.01 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to revolving credit note, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section 2.02 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with revolving credit note, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to revolving credit note and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section 2.03 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to revolving credit note. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section 2.04 To the extent that any provision of this Section 2.04 relating to revolving credit note is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

EXHIBIT E

FORM OF ASSIGNMENT AND ASSUMPTION

Section E.01 Notwithstanding anything to the contrary contained herein, assignment and assumption shall be subject to the terms and conditions set forth in this Section E.01, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section E.02 For purposes of this Section E.02, the term "assignment and assumption" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to assignment and assumption, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section E.03 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to assignment and assumption, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section E.04 In the event of any conflict between the provisions of this Section E.04 and any other provision of this Agreement or any other Loan Document with respect to assignment and assumption, the provisions of this Section E.04 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section E.04, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section E.05 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to assignment and assumption, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section E.06 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with assignment and assumption, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials

relating thereto. The Borrower shall maintain complete and accurate records with respect to assignment and assumption and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section E.07 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to assignment and assumption. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section E.08 To the extent that any provision of this Section E.08 relating to assignment and assumption is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section E.09 Notwithstanding anything to the contrary contained herein, assignment and assumption shall be subject to the terms and conditions set forth in this Section E.09, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section E.10 For purposes of this Section E.10, the term "assignment and assumption" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to assignment and assumption, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section E.11 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to assignment and assumption, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section E.12 In the event of any conflict between the provisions of this Section E.12 and any other provision of this Agreement or any other Loan Document with respect to assignment and assumption, the provisions of this Section E.12 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section E.12, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section E.13 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to assignment and assumption, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section E.14 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with assignment and assumption, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to assignment and assumption and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section E.15 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to assignment and assumption. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section E.16 To the extent that any provision of this Section E.16 relating to assignment and assumption is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section E.17 Notwithstanding anything to the contrary contained herein, assignment and assumption shall be subject to the terms and conditions set forth in this Section E.17, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section E.18 For purposes of this Section E.18, the term "assignment and assumption" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to assignment and assumption, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section E.19 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to assignment and assumption, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section E.20 In the event of any conflict between the provisions of this Section E.20 and any other provision of this Agreement or any other Loan Document with respect to assignment and assumption, the provisions of this Section E.20 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section E.20, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section E.01 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to assignment and assumption, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section E.02 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with assignment and assumption, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to assignment and assumption and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section E.03 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to assignment and assumption. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section E.04 To the extent that any provision of this Section E.04 relating to assignment and assumption is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

EXHIBIT F

FORM OF GUARANTY

Section F.01 Notwithstanding anything to the contrary contained herein, guaranty shall be subject to the terms and conditions set forth in this Section F.01, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section F.02 For purposes of this Section F.02, the term "guaranty" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to guaranty, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section F.03 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to guaranty, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section F.04 In the event of any conflict between the provisions of this Section F.04 and any other provision of this Agreement or any other Loan Document with respect to guaranty, the provisions of this Section F.04 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section F.04, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section F.05 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to guaranty, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section F.06 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with guaranty, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to guaranty and shall make such records available for inspection by the Administrative Agent and its representatives at all

reasonable times during normal business hours upon reasonable prior notice.

Section F.07 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to guaranty. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section F.08 To the extent that any provision of this Section F.08 relating to guaranty is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section F.09 Notwithstanding anything to the contrary contained herein, guaranty shall be subject to the terms and conditions set forth in this Section F.09, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section F.10 For purposes of this Section F.10, the term "guaranty" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to guaranty, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section F.11 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to guaranty, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section F.12 In the event of any conflict between the provisions of this Section F.12 and any other provision of this Agreement or any other Loan Document with respect to guaranty, the provisions of this Section F.12 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section F.12, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section F.13 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to guaranty, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section F.14 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with guaranty, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to guaranty and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section F.15 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to guaranty. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section F.16 To the extent that any provision of this Section F.16 relating to guaranty is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section F.17 Notwithstanding anything to the contrary contained herein, guaranty shall be subject to the terms and conditions set forth in this Section F.17, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section F.18 For purposes of this Section F.18, the term "guaranty" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to guaranty, whether now existing or hereafter arising, and whether or

not such obligations are evidenced by any note, guaranty or other instrument.

Section F.19 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to guaranty, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section F.20 In the event of any conflict between the provisions of this Section F.20 and any other provision of this Agreement or any other Loan Document with respect to guaranty, the provisions of this Section F.20 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section F.20, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section F.01 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to guaranty, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section F.02 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with guaranty, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to guaranty and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section F.03 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to guaranty. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section F.04 To the extent that any provision of this Section F.04 relating to guaranty is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any

other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

EXHIBIT G

FORM OF SECURITY AGREEMENT

Section G.01 Notwithstanding anything to the contrary contained herein, security agreement shall be subject to the terms and conditions set forth in this Section G.01, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section G.02 For purposes of this Section G.02, the term "security agreement" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to security agreement, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section G.03 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to security agreement, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section G.04 In the event of any conflict between the provisions of this Section G.04 and any other provision of this Agreement or any other Loan Document with respect to security agreement, the provisions of this Section G.04 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section G.04, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section G.05 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to security agreement, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section G.06 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with security agreement, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to security agreement

and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section G.07 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to security agreement. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section G.08 To the extent that any provision of this Section G.08 relating to security agreement is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section G.09 Notwithstanding anything to the contrary contained herein, security agreement shall be subject to the terms and conditions set forth in this Section G.09, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section G.10 For purposes of this Section G.10, the term "security agreement" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to security agreement, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section G.11 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to security agreement, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section G.12 In the event of any conflict between the provisions of this Section G.12 and any other provision of this Agreement or any other Loan Document with respect to security

agreement, the provisions of this Section G.12 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section G.12, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section G.13 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to security agreement, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section G.14 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with security agreement, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to security agreement and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

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Section G.16 To the extent that any provision of this Section G.16 relating to security agreement is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section G.17 Notwithstanding anything to the contrary contained herein, security agreement shall be subject to the terms and conditions set forth in this Section G.17, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written

consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section G.18 For purposes of this Section G.18, the term "security agreement" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to security agreement, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section G.19 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to security agreement, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section G.20 In the event of any conflict between the provisions of this Section G.20 and any other provision of this Agreement or any other Loan Document with respect to security agreement, the provisions of this Section G.20 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section G.20, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section G.01 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to security agreement, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section G.02 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with security agreement, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to security agreement and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section G.03 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this

Agreement with respect to security agreement. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section G.04 To the extent that any provision of this Section G.04 relating to security agreement is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

EXHIBIT H

FORM OF JOINDER AGREEMENT

Section H.01 Notwithstanding anything to the contrary contained herein, joinder agreement shall be subject to the terms and conditions set forth in this Section H.01, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section H.02 For purposes of this Section H.02, the term "joinder agreement" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to joinder agreement, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section H.03 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to joinder agreement, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section H.04 In the event of any conflict between the provisions of this Section H.04 and any other provision of this Agreement or any other Loan Document with respect to joinder agreement, the provisions of this Section H.04 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section H.04, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section H.05 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to joinder agreement, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section H.06 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with joinder agreement, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to joinder agreement

and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section H.07 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to joinder agreement. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section H.08 To the extent that any provision of this Section H.08 relating to joinder agreement is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section H.09 Notwithstanding anything to the contrary contained herein, joinder agreement shall be subject to the terms and conditions set forth in this Section H.09, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section H.10 For purposes of this Section H.10, the term "joinder agreement" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to joinder agreement, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section H.11 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to joinder agreement, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section H.12 In the event of any conflict between the provisions of this Section H.12 and any other provision of this Agreement or any other Loan Document with respect to joinder

agreement, the provisions of this Section H.12 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section H.12, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section H.13 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to joinder agreement, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section H.14 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with joinder agreement, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to joinder agreement and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section H.15 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this Agreement with respect to joinder agreement. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section H.16 To the extent that any provision of this Section H.16 relating to joinder agreement is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

Section H.17 Notwithstanding anything to the contrary contained herein, joinder agreement shall be subject to the terms and conditions set forth in this Section H.17, and no Loan Party shall take any action inconsistent with the provisions of this Section without the prior written consent of the

Administrative Agent and the Required Lenders. Any such action taken without such consent shall be void and of no force or effect.

Section H.18 For purposes of this Section H.18, the term "joinder agreement" shall include, without limitation, all direct and indirect obligations, contingent or otherwise, of the Borrower and its Restricted Subsidiaries arising under or in connection with any agreement, instrument, document or arrangement relating to joinder agreement, whether now existing or hereafter arising, and whether or not such obligations are evidenced by any note, guaranty or other instrument.

Section H.19 The Borrower shall, and shall cause each Restricted Subsidiary to, comply with all applicable Laws relating to joinder agreement, including, without limitation, all federal, state and local statutes, rules, regulations, ordinances, orders, judgments, decrees and injunctions of any Governmental Authority, and all applicable restrictions imposed by any Governmental Authority, in each case as the same may be amended, modified or supplemented from time to time.

Section H.20 In the event of any conflict between the provisions of this Section H.20 and any other provision of this Agreement or any other Loan Document with respect to joinder agreement, the provisions of this Section H.20 shall control and govern. The Administrative Agent shall have no duty to inquire into or verify the Borrower's compliance with the provisions of this Section H.20, and shall be entitled to rely conclusively upon any certificate or other document delivered by the Borrower in connection therewith.

Section H.01 Without limiting the generality of the foregoing, the Borrower acknowledges and agrees that the Administrative Agent and the Lenders are entering into this Agreement and the other Loan Documents in reliance upon the Borrower's representations, warranties and covenants contained herein and therein with respect to joinder agreement, and that any breach of such representations, warranties or covenants shall constitute an Event of Default hereunder, entitling the Administrative Agent and the Lenders to exercise all rights and remedies available to them under this Agreement, the other Loan Documents and applicable Law.

Section H.02 The Borrower shall deliver to the Administrative Agent, promptly upon request, such information and documentation as the Administrative Agent may reasonably request in connection with joinder agreement, including, without limitation, copies of all agreements, instruments, documents, certificates, reports, statements and other materials relating thereto. The Borrower shall maintain complete and accurate records with respect to joinder agreement and shall make such records available for inspection by the Administrative Agent and its representatives at all reasonable times during normal business hours upon reasonable prior notice.

Section H.03 Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it has deemed appropriate, made its own credit analysis and decision to enter into this

Agreement with respect to joinder agreement. Each Lender also acknowledges that it will, independently and without reliance upon the Administrative Agent or any other Lender, and based on such documents and information as it shall from time to time deem appropriate, continue to make its own decisions in taking or not taking action under or based upon this Agreement, any other Loan Document or any related agreement or any document furnished hereunder or thereunder.

Section H.04 To the extent that any provision of this Section H.04 relating to joinder agreement is determined by a court of competent jurisdiction to be invalid, illegal or unenforceable in any respect under any applicable Law, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, and this Agreement shall be construed as if such invalid, illegal or unenforceable provision had never been contained herein; provided that the economic substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party hereto.

SCHEDULE 1.01(a)**COMMITMENTS**

Lender	Term Commitment	Revolving Credit Commitment
LendCo Private Credit Fund II LP	\$150,000,000	\$50,000,000
TOTAL	\$150,000,000	\$50,000,000

SCHEDULE 5.11**SUBSIDIARIES AND EQUITY INTERESTS**

Entity Name	Jurisdiction	Ownership %	Type
FirstBank Holdings LLC	Delaware	100%	Intermediate holding company
FirstBank Operations Corp	Delaware	100%	Primary operating subsidiary
FirstBank Capital Partners LLC	Delaware	51%	Sponsor management entity
FB International GmbH	Germany	100%	European operations
FirstBank Canada Inc.	Ontario, Canada	100%	Canadian operations

SIGNATURE PAGE

IN WITNESS WHEREOF, the parties hereto have caused this Credit Agreement to be duly executed as of the date first written above.

FIRSTBANK CORP,
as Borrower

By: _____

Name: Michael R. Hartwell

Title: Chief Financial Officer

Date: March 15, 2021

LENDCO PRIVATE CREDIT FUND II LP,
as Administrative Agent and Lender

By: _____

Name: _____

Title: _____

Date: _____